

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

Complainants.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

Respondents.

Consolidated With

DOCKET NO. 1953(I)

KAIRAT NURGAZINOV,

Complainants.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

Respondents.

MOTION TO FURTHER SUPPLEMENT

I, Sergey Kapustin, on my own behalf, and on behalf of Effect Auto Sales, Inc., G Auto Sales, Inc., Global Auto, Inc., SK Imports, Inc. d/b/a Global Cars, and Global Cargo Oy, hereby seek permission to further supplement my earlier filed motion to intervene in order to address additional relevant developments that have occurred following the filing of the motion to intervene.

I need immediate assistance of the Commission to stop any further fraud and witness
tempering by Mr. Nussbaum.

This Motion is supported by my Affirmation.

Signed on August 3, 2016

A handwritten signature in blue ink, appearing to read 'Sergey Kapustin', written over a horizontal line.

Sergey Kapustin

FEDERAL MARITIME COMMISSION

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IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

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**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

Respondents.

**AFFIRMATION OF SERGEY KAPUSTIN IN SUPPORT OF
MOTION TO FURTHER SUPPLEMENT**

Sergey Kapustin, affirms the following to be true under penalties of perjury under 28 U.S.C. § 1746, and says:

1. I make this affirmation in order to support my motion to further supplement the previously filed motion to intervene.

2. The reason for this motion is that very recently new developments have taken place involving Mr. Nussbaum that are relevant to the motion to intervene.

3. Attached is a further updated affirmation which includes additional material at paragraphs 64 through 70 which discuss these new relevant developments and new appendix 21 .

4. I am again asking for this further updated affirmation to replace or supplement the prior affirmation submitted in support of my motion for permission to intervene.

The foregoing is true and correct to the best of my knowledge under penalties of perjury under 28 U.S.C. § 1746.

Signed on August ³____, 2016



Sergey Kapustin

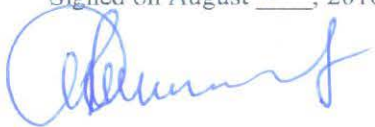
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the attached motion to supplement upon all parties of record by first class mail and email at the addresses below, and that the original and five copies are being filed with the Secretary of the Federal Maritime Commission:

Marcus A. Nussbaum
P.O. Box 245599
Brooklyn, NY 11224
marcus.nussbaum@gmail.com

Eric C. Jeffrey
Nixon Peabody LLP
799 9th Street NW, Suite 500
Washington DC 20001
ejeffrey@nixonpeabody.com

Signed on August 3, 2016



Sergey Kapustin

Appendix 1

MARCUS A. NUSSBAUM, ESQ.

Mail Drop: P.O. Box 245599, Brooklyn, NY 11224

Tel: 888-426-4370 | Fax: 347-572-0439

Email: marcus.nussbaum@gmail.com

Web: www.nussbaumlawfirm.com

September 28, 2015

Via Email to skapustin@yahoo.com

GLOBAL AUTO, INC.

G AUTO SALES, INC.

EFFECT AUTO SALES, INC.

Attn: Sergey Kapustin

Caption: *Global Auto, Inc., et al., v. Hitrinov, et al.*

Docket No.: 13 Civ. 2479 (SLT)(RER)

Dear Mr. Kapustin:

I look forward to working with you in connection with the above-referenced matter. Our formal retainer agreement follows confirming the principal terms and scope of our engagement.

1. **Nature of Services.** GLOBAL AUTO, INC., G AUTO SALES, INC., and EFFECT AUTO SALES, INC. (the "Clients") hereby retain Marcus A. Nussbaum, Esq. ("Counsel") to perform the following services:

Pro bono representation of the Clients solely for the purposes of appearing with Clients at a deposition on or about October 7, 2015 and defending the Clients at said deposition. Any representation outside of appearing at said deposition shall be covered by a separate retainer agreement.

2. **Respective Responsibilities of the Client and Counsel.** Counsel will represent the Client in connection with the matter described. The Client will cooperate with Counsel in discharging such responsibilities and will undertake any other Client responsibilities reasonably necessary with regard to the matter.
3. **Fees.** The above stated representation shall be *pro bono*.
4. **Costs and Expenses.** Not applicable.
5. **Billing.** Not applicable.
6. **Right to Withdraw.** The Client may terminate services to be rendered pursuant to this Agreement at any time upon written notice to Counsel. Counsel may terminate services to be rendered pursuant to this Agreement at any time upon written notice to the Client, subject to compliance with the Rules of Professional Conduct of the New York State Bar Association and applicable law and rules of the Court.
7. **No Guarantee.** Counsel has made no promises or guarantees to the Client about the outcome of the Client's matter, or the maximum amount of legal fees or costs which may be incurred, and nothing in this Agreement nor any estimates as to such matters shall be

construed as such a promise or guarantee.

8. **File Disposal.** The Client agrees that should Counsel request the Client's permission to dispose of a file(s) that have been inactive for a period of three (3) years, the Client has the option of picking up the files(s) and should the Client fail to do so, the Client consents to Counsel disposing of the file(s) in a manner Counsel sees fit.
9. **Miscellaneous.** To enable Counsel to effectively to provide these services, you agree to disclose fully and accurately all facts and keep Counsel apprised of all development relating to the matter. This constitutes the entire agreement between us and cannot be altered except by a writing signed by the two of us. Pursuant to Title 22 NYCRR, Part 137, should a fee dispute arise, you have the option of submitting such dispute for binding arbitration.
10. **Full Disclosure.** The Client acknowledges receiving a copy of this Agreement and having had all questions about the Agreement, if any, answered to the Client's satisfaction.

If all is in order, please sign and return a copy of this Agreement. I will then sign and return a fully executed copy to you.

Very truly yours,

By: _____
Marcus A. Nussbaum, Esq.

AGREED AND ACCEPTED:

GLOBAL AUTO, INC.
G AUTO SALES, INC.
EFFECT AUTO SALES, INC.

By: _____
Sergey Kapustin

Appendix 2

From: Svetlana - Global Auto USA [account@globalautousa.com]
Sent: Monday, December 17, 2012 12:44 PM
To: EUL-Yuliya Mikhalkovich
Subject: invoice needed
Attachments: C104211.doc

From: EUL-Maria Mittrakhovich [mailto:MariaMittrakhovich@eulines.com]
Sent: Monday, December 17, 2012 11:22 AM
To: account@globalautousa.com
Subject: TCNU8761450

*Best regards,
Maria Mittrakhovich*

*Empire United Lines., Inc
52 Butler Street
Elizabeth, NJ 07206
Tel: 908 469 9401
Fax: 908 469 9404
e-mail: mariamittrakhovich@eulines.com*

DOCK RECEIPT/ BILL OF LADING

SHIPPER/EXPORTER EMPIRE UNITED LINES 2303 CONEY ISLAND AVE BROOKLYN, NY 11223 TEL: 718-998-6900		DOCUMENT NO BOOKING#038EUL1046438 EXPORT REFERENCE OUR REF# 104211	
CONSIGNEE CARCONT Ltd Merituulentie 424. 48310 Kotka, Finland Tel: +358 5 260 47 22/ Fax: +358 5 260 47 55		FORWARDING AGENT I REFERENCES	
NOTIFY PARTY		DOMESTIC ROUTING/EXPORT INSTRUCTIONS NO SED REQUIRED: AES-ITN : X2012	
OCEAN/VESSEL Kaethe C. Rickmers 1250R FOR TRANSSHIPMENT BREMERHAVEN	PORT OF LOADING NEW YORK PORT OF DISCHARGE KOTKA	ONWARD INLAND ROUTING CSC PREPAID	

CARRIER'S RECEIPT		PARTICULARS FURNISHED BY SHIPPER		
MARKS AND NUMBERS	NO OF CONT. OR OTHER PKGS.	DESCRIPTION OF GOODS	GROSS WEIGHT	MEASUREMENT
CONTAINER# TCNU8761450 SEAL #7876388	1 X 40'HC	S.T.C.3 CARS 2010 GMC ACADIA SLT-2 VIN# 1GKLVNED6AJ138200 2010 ACURA RDX VIN# 5J8TB2H29AA000682 2010 TOYOTA YARIS VIN# JTDDBT4K31A5282314 SIGNATURE..... GAS HAS BEEN DRAINED,BATTERIES DISCONNECTED FREIGHT PREPAID. CSC PREPAID SPD COLLECT EXPRESS RELEASE		

DELIVERED BY: LIGHTER TRUCK ARRIVED--- DATETIME..... UNLOADED-- DATETIME..... CHECKED BY IN SHIP PLACED ON DOCK LOCATION	RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDESIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHELL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED, COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES FOR THE MASTER BY..... RECEIVING CLERK DATE.....
---	--

From: Svetlana - Global Auto USA [account@globalautousa.com]
Sent: Sunday, November 11, 2012 5:38 PM
To: EUL-Yuliya Mikhalkovich
Subject: invoice needed
Attachments: c103783.doc

From: EUL-Maria Mittrakhovich [mailto:MariaMittrakhovich@eulines.com]
Sent: Wednesday, November 07, 2012 12:46 PM
To: account@globalautousa.com
Subject: TGHU8737440

*Best regards,
Maria Mittrakhovich*

*Empire United Lines., Inc
52 Butler Street
Elizabeth, NJ 07206
Tel: 908 469 9401
Fax: 908 469 9404
e-mail: mariamittrakhovich@eulines.com*

DOCK RECEIPT/ BILL OF LADING

SHIPPER/EXPORTER EMPIRE UNITED LINES 2303 CONEY ISLAND AVE BROOKLYN, NY 11223 TEL: 718-998-6900		DOCUMENT NO BOOKING #038EUL1039353 EXPORT REFERENCE OUR REF#103783	
CONSIGNEE CARCONT Ltd Merituulentie 424. 48310 Kotka, Finland Tel: +358 5 260 47 22/ Fax: +358 5 260 47 55		FORWARDING AGENT I REFERENCES	
NOTIFY PARTY		DOMESTIC ROUTING/EXPORT INSTRUCTIONS NO SED REQUIRED: AES-ITN : X2012	
OCEAN/VESSEL Kaethe C. Rickmers 1245R FOR TRANSSHIPMENT BREMERHAVEN	PORT OF LOADING NEW YORK PORT OF DISCHARGE KOTKA	ONWARD INLAND ROUTING CSC PREPAID	

CARRIER'S RECEIPT		PARTICULARS FURNISHED BY SHIPPER		
MARKS AND NUMBERS	NO OF CONT. OR OTHER PKGS.	DESCRIPTION OF GOODS	GROSS WEIGHT	MEASUREMENT
CONTAINER# TGHU8737440 SEAL #7876117	1 X 40'HC	S.T.C.3 CARS 2009 VOLKSWAGEN TIGUAN VIN#WVGCV75N29W525297 2011 JEEP COMPASS VIN#1J4NF5FB7BD282296 2009 MERCEDES-BENZ C300 VIN#WDDGF81X49R073295 SIGNATURE..... GAS HAS BEEN DRAINED,BATTERIES DISCONNECTED FREIGHT PREPAID. CSC PREPAID SPD COLLECT EXPRESS RELEASE		

DELIVERED BY: LIGHTER TRUCK ARRIVED--- DATETIME..... UNLOADED-- DATETIME..... CHECKED BY IN SHIP PLACED ON DOCK LOCATION	RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDESIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHELL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED, COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES FOR THE MASTER BY..... RECEIVING CLERK DATE.....
---	--

From: Svetlana - Global Auto USA [account@globalautousa.com]
Sent: Tuesday, November 06, 2012 2:43 PM
To: EUL-Yuliya Mikhalkovich; Michael Hitrinov; EUL-Alex Krapivin
Subject: release needed

Yuliya,

Please release the following vehicle. Please note that we brought 2 titles today for

2009 Tiguan VIN#525297

2009 C Class VIN#073295

2010 VOLKSWAGEN CC	WVWML7AN0AE513412
2010 SUBARU LEGACY	4S3BMCA60A3228095
2010 VOLKSWAGEN CC	WVWML7AN1AE528534

--

С уважением,

Светлана,
Global Auto USA.

Телефон: +1 (215) 942-8570.

Skype: svetlana.global.auto.usa

E-mail: account@globalautousa.com

Веб-сайт: www.GlobalAutoUSA.com - Автомобили из США. Продажа авто из Америки.

No virus found in this message.

Checked by AVG - www.avg.com

Version: 2012.0.2221 / Virus Database: 2441/5377 - Release Date: 11/06/12

From: Svetlana - Global Auto USA [account@globalautousa.com]
Sent: Thursday, October 25, 2012 3:59 PM
To: EUL-Yuliya Mikhalkovich; EUL-Alex Krapivin; Michael Hitrinov
Subject: release needed

Good Day,

Please be advised that we delivered a title for 2001 Jeep Compass VIN#282296.

Please release the following vehicle.

2010 LEXUS RX 350	2T2BK1BA3AC027856
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--

С уважением,

Светлана,
Global Auto USA.

Телефон: +1 (215) 942-8570.

Skype: svetlana.global.auto.usa

E-mail: account@globalautousa.com

Веб-сайт: www.GlobalAutoUSA.com - Автомобили из США. Продажа авто из Америки.

No virus found in this message.

Checked by AVG - www.avg.com

Version: 2012.0.2221 / Virus Database: 2441/5353 - Release Date: 10/25/12

From: Svetlana - Global Auto USA [account@globalautousa.com]
Sent: Thursday, October 18, 2012 1:12 PM
To: Michael Hitrinov; EUL-Maria Mitrakhovich; EUL-Alex Krapivin
Subject: coming vehicles

Michael,

3 vehicles listed below are delivered to your warehouse

2011 Jeep Compass 1J4NF5FB7BD282296
2010 Subaru Outback 4S4BRBAC0A3374154
2008 Subaru Tribeca Limited 4S4WX90D284402874

These two will be delivered today

2009 BMW X5 Turbo Diesel 5UXFF03549LJ96843
2010 Mercury Mariner 4M2CN8B74AKJ17359

So, per our agreement we delivered 12 cars and paid all shipping which was due.
Please send me updated table.

--

С уважением,

Светлана,
Global Auto USA.

Телефон: +1 (215) 942-8570.
Skype: svetlana.global.auto.usa
E-mail: account@globalautousa.com
Веб-сайт: www.GlobalAutoUSA.com - Автомобили из США. Продажа авто из Америки.

Appendix 3

Hi, Michael,

I understand very well your position and hope that when we return to the USA, we shall achieve an understanding and will continue our cooperation. Namely, cooperation, and that means that one side cannot pronounce a verdict so sharply and stop the entire process in one blink. You have decided that you no longer want to have an ownership in the cars inventory. Ok. We have nothing against it. But to demand to compensate you everything at once and to stop the release is wrong, taking into account the fact that you have at your disposal a sufficient number of cars and that in no case would suffer in any arrangement. You are insured on all sides.

But at present we are not talking about it. We ask you to make a release for the car from which neither yours nor my wealth would change. Those people are your clients, too. I appeal to you to be reasonable. Your business capabilities would not suffer in this case.

You no longer wish to add cars to your balance sheet. We understand and respect your decision. But let us come to this without starting any unpleasant troubles and unwillingness to work together. In the course of so many years we have been working side by side and know one another better than our parents know us. After our conversation, we were sure that you would take a break, and then start writing standard phrases. It always occurs like that, but the time goes on and we grow older. Why should we go to the American hills? Let's work without stresses, Michael. We have a new working project, related to shipping, let us meet and talk it over. It's better to go forward, and not to give food for the chatter of the "well-wishers".

PS. Otkrepi ML

Respectfully, Irina

From: Maria Kapustina [mailto:kapustinamaria@yahoo.com]

Sent: Thursday, February 07, 2013 8:11 AM

To: Michael Hifrinov

Subject: Re: Cars Inventory

Hi Michael,

I ochen xorosho ponimayu tvoyu poziciyu i nadeyus kogda mi vernemsa v USA, mi dostignem dogovorennosti i prodolzhim nashe sotrydnichestvo. Imenno sotrydnichestvo, a eto znachit, chto odna storona ne mozhet tak rezko vinesti verdict i ostanovit ves process v odin mig. Ti reshil, chto bolshe ne xochesh imet owenership v cars inventory. OK. Mi nichego ne imeem protiv. No trebovat compensirovat tebe vse srazy i ostanovit release, pri tom chto ti raspolagaesh dostatochnim kolichestvom mashin i ti ne v koem raze ne postradaesh pri lyubom rasklade. Ti zastraxovan so vsekh storon.

No rech seychas dazhe ne ob etom. Mi prosim tebya sdelat release na mashiny, ot kotoroy ne tvoe ne moe blagosostoyanie ne izmenitsya. Eti lyudi yavlyautsya i tvoimi klientami tozhe. Prizivayu k blagorazymiu, tvoi biznes sposobnosti pri etom ne postradayut.

Ti ne xochesh bolshe dobavlyat cars v balance, ponimaem i yvazhaem tvoe reshenie, no davay pridem k etomy ne ystraivaya dryg drygy nepriyatnix oshysheniy i ne zhelaniya rabotat vmeste. Mi stolko let rabotaem bok o bok, i znaem dryg dryga lychshe chem nas znayut nashi roditeli. Posle nashego razgovora mi bili yvereni, chto ti vozmesh payzy, a potom nachnesh pisat standartnimi frazami. Tak proisxodit vsегда, no vremya idet vpered, mi stareem. Zachem nam eti amerikanskiye gorki? Davay, Michael, rabotat bez stressov.

Y nas noviy proekt po rabote, svyazanniy s shippingom, priedem bydem razgovarivat. Lychshe idti v pered, i ne davat pishi dlya razgovora dobrozhelatelyam.

PS. Otkrepi ML

S Yvazheniem, Irina.

CERTIFICATE OF ACCURACY

STATE OF NEW YORK)
) s.s.
COUNTY OF WESTCHESTER)

The undersigned, Wolodymyr B. Mykula, who after being duly sworn, deposes and says:

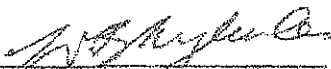
That he is a translator of the Russian and English languages by profession and as such has been connected with the Continental Translation Service, Inc., 110 West 40th Street, Suite 606, New York, NY 10018;

That he is thoroughly conversant with these languages;

That he has carefully made the attached translation from the original document written in the Russian language, namely,

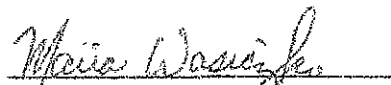
Email correspondence between the managements of Global Auto USA and Empire United Lines Co., Inc; and

That the attached translation is a true and correct English version of such original to the best of his knowledge and belief.



Wolodymyr B. Mykula

SUBSCRIBED AND SWORN TO BEFORE ME
THIS 22nd DAY OF MAY, 2013.



Notary Public

MARIA WASICZKO
Notary Public, State of New York
No. 01WA822859
Qualified in Westchester County
Term Expires April 30, 2015

Appendix 4

From: Igor Azikov [<mailto:igor@effectauto.com>]

Sent: Thursday, October 25, 2012 6:58 PM

To: Michael Hitrinov <Michael@eulines.com>

Subject: Release for Effect Auto Sales, Inc

Good evening Michael,

We would like to get a release for 2010 VW CC VIN: WVWML7AN9AE507141. We dropped off 2008 Mercedes-Benz C300 VIN: WDDGF81X49R073295 as a collateral and ready to pay \$100 fee.

Please send us release at your earliest convenience.

Thank you.

Igor A.

Effect Auto Sales, Inc

Appendix 5

From: Svetlana - Global Auto USA [account@globalautousa.com]
Sent: Sunday, June 19, 2011 11:34 PM
To: Michael Hlirinov
Cc: EUL-Alex Krapivin
Subject: container release and unloading

Good morning Michael,

During next week we expect several containers to arrive to Kotka. Since we do not have enough cars to secure the finance account, we would like to ask your company to unload consolidated containers and those that will arrive soon to Carcont's lot and release them the way you release vehicles from consolidated containers. To avoid any delays with releases we will pay outstanding shipping invoices. In addition, to bring our finance account to a positive balance we will bring cars to load during the week. Please let us know if you have any concerns or call Sergey to discuss any questions. Thank you.

--

С уважением,

Светлана,
Global Auto USA.

Телефон: +1 (215) 942-8570.
Skype: svetlana.global.auto.usa
E-mail: account@globalautousa.com
веб-сайт: www.GlobalAutoUSA.com - Автомобили из США. Продажа авто из Америки.



Empire United Co Inc

150-1 Carriage Lane, Delran, NJ 08075
711 Pennsylvania Ave, Southampton, PA 8966

Phone: +1 (215) 942-8570 (71,72),

+1 (908) 351-5888

+1 (908) 351-6299 fax

June 22 , 2011

Unload all Empire finance cars for Global Auto USA Inc. and Effect Auto Sales Inc at Carcont.
Global as exporter and Carcont as a receiver. Put Empire United as a shipper.
Global Cargo arrange the details in Finland with Carcont. Do not delay any loading and
unloading, we want to deliver more cars.

Sergey Kapustin

Global Auto USA
Effect Auto Sales

Appendix 6

DOCK RECEIPT/ BILL OF LADING

SHIPPER/EXPORTER EMPIRE UNITED LINES 2303 CONEY ISLAND AVE BROOKLYN, NY 11223 TEL: 718-998-6900		DOCUMENT NO BOOKING #038EUL1039353 EXPORT REFERENCE OUR REF#103783	
CONSIGNEE CARCONT Ltd Merituulentie 424, 48310 Kotka, Finland Tel: +358 5 260 47 22/ Fax: +358 5 260 47 55		FORWARDING AGENT / REFERENCES	
NOTIFY PARTY		DOMESTIC ROUTING/EXPORT INSTRUCTIONS NO. SED REQUIRED: AES-ITN : X2012	
OCEAN/VESSEL Kaethe C. Rickmers 1245R FOR TRANSSHIPMENT BREMERHAVEN	PORT OF LOADING NEW YORK PORT OF DISCHARGE KOTKA	CSC PREPAID	

CARRIER'S RECEIPT		PARTICULARS FURNISHED BY SHIPPER		
MARKS AND NUMBERS	NO OF CONT. OR OTHER PKGS.	DESCRIPTION OF GOODS	GROSS WEIGHT	MEASUREMENT
CONTAINER# TGHU8737440 SEAL #7876117	1 X 40'HC	S.T.C.3 CARS 2009 VOLKSWAGEN TIGUAN VIN#WVGCV75N29W525297 2011 JEEP COMPASS VIN#1J4NP5FB7BD282296 2009 MERCEDES-BENZ C300 VIN#WDDGF81X49R073295 SIGNATURE..... GAS HAS BEEN DRAINED, BATTERIES DISCONNECTED FREIGHT PREPAID, CSC PREPAID SPD COLLECT EXPRESS RELEASE		

DELIVERED BY: LIGHTER TRUCK ARRIVED-- DATE TIME..... UNLOADED-- DATE TIME..... CHECKED BY IN SHIP PLACED ON DOCK LOCATION	RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDERSIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHALL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED. COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES. FOR THE MASTER BY..... RECEIVING CLERK DATE.....
--	---

DOCK RECEIPT/ BILL OF LADING

SHIPPER/EXPORTER EMPIRE UNITED LINES 2303 CONEY ISLAND AVE BROOKLYN, NY 11223 TEL: 718-998-6900		DOCUMENT NO BOOKING#038EUL1046438 EXPORT REFERENCE OUR REF# 104211	
CONSIGNEE CARCONT Ltd Merituulentie 424 48310 Kotka, Finland Tel: +358 5 260 47 22/ Fax: +358 5 260 47 55		FORWARDING AGENT REFERENCES	
NOTIFY PARTY		DOMESTIC ROUTING/EXPORT INSTRUCTIONS NO SED REQUIRED; AES-ITN : X2012	
OCEAN/VESSEL Kaethe C. Rickmers 1250R FOR TRANSHIPMENT BREMERHAVEN	PORT OF LOADING NEW YORK PORT OF DISCHARGE KOTKA	ONWARD INLAND ROUTING CSC PREPAID	

CARRIER'S RECEIPT		PARTICULARS FURNISHED BY SHIPPER		
MARKS AND NUMBERS	NO OF CONT. OR OTHER PKGS.	DESCRIPTION OF GOODS	GROSS WEIGHT	MEASUREMENT
CONTAINER# TCNU8761450 SEAL #7876388	1 X 40'HC ✓	S.T.C.3 CARS 2010 GMC ACADIA SLT-2 VIN# 1GKLVNED6A3138200 2010 ACURA RDX VIN# 5GBTE2H29AA000682 2010 TOYOTA YARIS VIN# JTDE74K31A5282314 SIGNATURE..... GAS HAS BEEN DRAINED, BATTERIES DISCONNECTED FREIGHT PREPAID. CSC PREPAID SPD COLLECT EXPRESS RELEASE		

DELIVERED BY: LIGHTER TRUCK ARRIVED-- DATE TIME..... UNLOADED-- DATE TIME..... CHECKED BY IN SHIP PLACED ON DOCK LOCATION:	RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDERSIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHALL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED. COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES. FOR THE MASTER BY RECEIVING CLERK DATE
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MASTER BILL OF LADING

SHIPPER/EXPORTER EMPIRE UNITED LINES 2303 CONEY ISLAND AVE BROOKLYN, NY 11223 TEL: 718-998-6900		DOCUMENT NO BOOKING#038EUL1045297	
CONSIGNEE CARCONT Ltd Merituulentie 424. 48310 Kotka, Finland Tel: +358 5 260 47 22/ Fax: +358 5 260 47 55		EXPORT REFERENCE OUR REF# 104452	
NOTIFY PARTY		FORWARDING AGENT I REFERENCES	
DOMESTIC ROUTING/EXPORT INSTRUCTIONS NO SED REQUIRED: AES-ITN : X20130103021862 X20130103022095		ONWARD INLAND ROUTING CSC PREPAID	
OCEAN/VESSEL MSC Sarah NU301R FOR TRANSSHIPMENT BREMERHAVEN	PORT OF LOADING NEW YORK	PORT OF DISCHARGE KOTKA	

CARRIER'S RECEIPT		PARTICULARS FURNISHED BY SHIPPER		
MARKS AND NUMBERS	NO OF CONT. OR OTHER PKGS.	DESCRIPTION OF GOODS	GROSS WEIGHT	MEASUREM ENT
CONTAINER# TCKU9873233 SEAL #7876363	1 X 40'HC	S.T.C.3 CARS 2009 BMW X6 VIN# 5UXFG43569L223352 2009 TOYOTA PRIUS VIN# JTDKB20U897858466 2009 TOYOTA CAMRY VIN# 4T1BE46K19U306703 2 ENGINES ON PALLETS GAS HAS BEEN DRAINED,BATTERIES DISCONNECTED FREIGHT PREPAID. CSC PREPAID SPD COLLECT EXPRESS RELEASE	1647 KG 1523 KG 1646 KG 200 KG	

DELIVERED BY: LIGHTER TRUCK ARRIVED--- DATETIME..... UNLOADED-- DATETIME..... CHECKED BY IN SHIP PLACED ON DOCK LOCATION	RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDESIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHELL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED, COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES FOR THE MASTER BY..... RECEIVING CLERK DATE.....
---	---

Appendix 7

[\[Print\]](#)**Shipment Information**

Filer ID 113154282
Shipment Reference Number 038EUL1045297-2
ITN: X20150103022095
Current Date/Time: 100 Apr 28 14:50:45 2016 EDT

Departure Date 01/11/16
Transportation Reference Number 1045297
Origin State NEW YORK (NY)
Country of Dest. FINLAND (FI)
Export Port NEW YORK, NY (1001)
Unloading Port KOTKA, FINLAND (40549)
Mode of Transportation VESSEL (10)
Carrier SCAC/TATA UNKNOWN CARRIER (UNKN)

Conveyance Name MSC SARAH NU301R
Routed Transaction? No
Related Companies? No
Hazardous? No

USPPI

Name GLOBAL AUTO INC.
ID Number 223673425 (EIN)
Contact SERGEY SERGEY
Phone 9083515888
Cargo Origin 150-1 CARRIAGE LANE
 DELRAN, NJ 08075

Ultimate Consignee

Name CARCONT LTD
Consignee Type ()
Contact
Phone 35852604722
Address MERITUULENTIE 424
 KOTKA, FI-48310

Freight Forwarder

Name EMPIRE UNITED LINES
ID Number 113154282 (EIN)
Contact MICHAEL HITRINOV
Phone 7189986900
Address 2303 CONEY ISLAND AVE
 BROOKLYN, NY 11223 US

Commodities

Item	EIC	Schedule B/HTS/Description	Qty	Gross Wt.	Value	Origin	License	Vehicle
1	OS	8703900000 2009 TOYOTA PRIUS License Details License Type: NLR NO LICENSE REQUIRED, OR ONLY CONTROLLED FOR ANTI-TERRORISM (AT) (C33) Used Vehicle Details Vehicle ID: JTDKB20U897858466 ID Type: Product ID Vehicle Title: Vehicle State:	1	NO	1523 KG	\$ 12197	D	C33 Yes
2	OS	8703900000 2009 TOYOTA CAMRY License Details License Type: NLR NO LICENSE REQUIRED, OR ONLY CONTROLLED FOR ANTI-TERRORISM (AT) (C33) Used Vehicle Details Vehicle ID: 4T1BE46K19U306703 ID Type: Product ID Vehicle Title: Vehicle State:	1	NO	1658 KG	\$ 9905	D	C33 Yes

Equipment

Equipment Number
 TCKU9873233

Seal Number
 7876363

[\[Print\]](#)

Shipment Information

Filer ID 113154282
Shipment Reference Number 038EUL1046438
ITN: X20121218003923
Current Date/Time: 2016 Apr 28 14:18:28 2016 EDT

Departure Date 12/22/12
Transportation Reference Number 123456789
Origin State NEW YORK (NY)
Country of Dest. FINLAND (FI)
Export Port NEW YORK, NY (1001)
Unloading Port KOTKA, FINLAND (40549)
Mode of Transportation VESSEL (10)
Carrier/SCAC/IATA UNKNOWN-CARRIER (UNKN)

Conveyance Name KAETHE C. RICKMERS 1250
Routed Transaction? No
Related Companies? No
Hazardous? No

USPPI

Name GLOBAL AUTO INC.
ID Number 223673425 (EIN)
Contact SERGEY SERGEY
Phone 9083515888
Cargo Origin 150-1 CARRIAGE LANE
 DELRAN, NJ 08075

Ultimate Consignee

Name CARCONT LTD
Consignee Type ()
Contact
Phone 35852604722
Address MERITUULENTIE 424
 KOTKA, FI 48310

Freight Forwarder

Name EMPIRE UNITED LINES
ID Number 113154282 (EIN)
Contact MICHAEL HITRINOV
Phone 7189986900
Address 2303 CONEY ISLAND AVE
 BROOKLYN, NY 11223 US

Commodities

Item EIC Schedule B/HTS/Description

1 OS 8703900000
2010 GMC ACADIA SLT-2

License Details

License Type: NLR NO LICENSE REQUIRED, OR ONLY CONTROLLED FOR
ANTI-TERRORISM (AT) (C33)

Used Vehicle Details

Vehicle ID: 1GKLVNED6A1138200
 ID Type: Product ID
 Vehicle Title:
 Vehicle State

2 OS 8703900000
2010 ACURA RDX

License Details

License Type: NLR NO LICENSE REQUIRED, OR ONLY CONTROLLED FOR
ANTI-TERRORISM (AT) (C33)

Used Vehicle Details

Vehicle ID: 5J8TB2H29AA000682
 ID Type: Product ID
 Vehicle Title:
 Vehicle State

Qty	Gross Wt.	Value	Origin	License	Vehicle
1 NO	2160 KG	\$ 27700 D	C33	Yes	

1 NO	1652 KG	\$ 21400 D	C33	Yes	
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Equipment

Equipment Number
 TCNU8761450

Seal Number
 7876388

[\[Print\]](#)

Shipment Information

Filer ID 113154282
 Shipment Reference Number 038EUL1039353
 ITN: X20121108005351
 Current Date/Time: 04/28/2016 14:22:47 2016 EDT

Departure Date 11/13/12
 Transportation Reference Number 182733
 Origin State New York (NY)
 Country of Departure FINLAND (FI)
 Export Port NEW YORK, NY (1001)
 Unloading Port KOTKA, FINLAND (40549)
 Mode of Transportation VESSEL (10)
 Carrier SCAC/IATA UNKNOWN-CARRIER (UNKN)
 Conveyance Name KAETHE C. RICKMERS 1245
 Routed Transaction? No
 Related Companies? No
 Hazardous? No

USPPI

Name GLOBAL AUTO INC.
 ID Number 223673425 (EIN)
 Contact SERGEY SERGEY
 Phone 9083515888
 Cargo Origin 150-1 CARRIAGE LANE
 DELRAN, NJ 08075

Ultimate Consignee

Name CARCONT LTD
 Consignee Type ()
 Contact
 Phone 35852604722
 Address MERITUULENTIE 424
 KOTKA, FI 48310

Freight Forwarder

Name EMPIRE UNITED LINES
 ID Number 113154282 (EIN)
 Contact MICHAEL HITRINOV
 Phone 7189986900
 Address 2303 CONEY ISLAND AVE
 BROOKLYN, NY 11223 US

Commodities

Item EIC Schedule B/HTS/Description

1 OS 8703900000
 2009 VOLKSWAGEN TIGUAN

License Details

License Type: NLR NO LICENSE REQUIRED, OR ONLY CONTROLLED FOR
 ANTI-TERRORISM (AT) (C33)

Used Vehicle Details

Vehicle ID: WVGBV75N29W525297
 ID Type: Product ID
 Vehicle Title:
 Vehicle State

2 OS 8703900000
 2011 JEEP COMPASS

License Details

License Type: NLR NO LICENSE REQUIRED, OR ONLY CONTROLLED FOR
 ANTI-TERRORISM (AT) (C33)

Used Vehicle Details

Vehicle ID: 1J4NF5F87BD282296
 ID Type: Product ID
 Vehicle Title:
 Vehicle State

3 OS 8703900000
 2009 MERCEDES-BENZ C300

License Details

License Type: NLR NO LICENSE REQUIRED, OR ONLY CONTROLLED FOR
 ANTI-TERRORISM (AT) (C33)

Used Vehicle Details

Vehicle ID: WDDGF81X49R073295
 ID Type: Product ID
 Vehicle Title:
 Vehicle State

Qty	Gross Wt.	Value	Origin	License	Vehicle
1 NO	1521 KG	\$ 15888 D	C33	Yes	

1 NO	1774 KG	\$ 10600 D	C33	Yes	
------	---------	------------	-----	-----	--

1 NO	1523 KG	\$ 20800 D	C33	Yes	
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Equipment

Equipment Number
 TGHU8737440

Seal Number
 7876117

Appendix 8

4280-613

NEW YORK STATE

000932
86170-969
AUTO COLLECTION GROUP
NEW JERSEY
T
WDDGF81X4 9R073295

Title and Identification No.
WDDGF81X49R073295
WDDGF81X49R073295

Year	Make	Model Code	Body/Hull
2009	ME/BE	C4A	4DSD

Fuel	Cyl./Prop.	New or Used	Type of Title
GAS	6	NEW	VEHICLE

Document No.
001142R
Date Issued
5/14/09

Name and Address of Owner(s)

ODOMETER READING: 00009
ACTUAL MILEAGE 00009

DAIMLER TRUST
P.O. BOX 585
ROANOKE VA 24060

This document is your proof of ownership for this vehicle. Do not or manufactured home. Keep it in a safe place not with your license or registration or in your vehicle or boat. To transfer or your vehicle, boat or manufactured home, complete the transfer section on the back and give this title to the new owner.

Lienholder

Lienholder

DAIMLER TRUST CO.
P.O. BOX 927545
SACRAMENTO CA 95899

ONE ITEM RECORDED

Lienholder

Lienholder

ONE ITEM RECORDED

ONE ITEM RECORDED

ANY CHANGE OF REGISTRATION WILL VOID THIS TITLE - ANY FALSE STATEMENT IS A MISDEMEANOR

ODOMETER DISCLOSURE STATEMENT

I, the undersigned, hereby certify that the odometer reading of the motor vehicle described on this certificate when transferring ownership is as stated below, and that the odometer is in proper working order and is not subject to tampering.

ODOMETER READING

49243

(in tenths)

ODOMETER WAS REPAIRED FOR: (check one)
☐ Five Digit odometer with
☐ Six Digit odometer with

DAMAGE DISCLOSURE STATEMENT (To be Completed by Owner/Dealer on Face of Title)

I, the undersigned, hereby certify that the vehicle described on this certificate has been or has not been wrecked, damaged or destroyed to such an extent that the total value of the vehicle has been reduced to such an extent that the vehicle is not worth the purchase price as shown on the certificate of title. If the vehicle has been wrecked, damaged or destroyed, the undersigned hereby certifies that the vehicle is not worth the purchase price as shown on the certificate of title.

I, the undersigned, hereby certify that the vehicle described on this certificate has been or has not been wrecked, damaged or destroyed to such an extent that the total value of the vehicle has been reduced to such an extent that the vehicle is not worth the purchase price as shown on the certificate of title. If the vehicle has been wrecked, damaged or destroyed, the undersigned hereby certifies that the vehicle is not worth the purchase price as shown on the certificate of title.

Signature of Buyer	Signature of Seller	State	ZIP code	Date of Purchase
Elizabeth	Elizabeth	VA	22902	10-26-12
Signature of Buyer	Signature of Seller	State	ZIP code	Date of Purchase
Elizabeth	Elizabeth	VA	22902	10-26-12

SECTION II - Registration by Manufacturer, Home Dealer or Registered Used Dealer or Out-of-State Dealer

ODOMETER DISCLOSURE STATEMENT

I, the undersigned, hereby certify that the odometer reading of the motor vehicle described on this certificate when transferring ownership is as stated below, and that the odometer is in proper working order and is not subject to tampering.

ODOMETER READING

(in tenths)

ODOMETER WAS REPAIRED FOR: (check one)
☐ Five Digit odometer with
☐ Six Digit odometer with

I, the undersigned, hereby certify that the vehicle described on this certificate has been or has not been wrecked, damaged or destroyed to such an extent that the total value of the vehicle has been reduced to such an extent that the vehicle is not worth the purchase price as shown on the certificate of title. If the vehicle has been wrecked, damaged or destroyed, the undersigned hereby certifies that the vehicle is not worth the purchase price as shown on the certificate of title.

I, the undersigned, hereby certify that the vehicle described on this certificate has been or has not been wrecked, damaged or destroyed to such an extent that the total value of the vehicle has been reduced to such an extent that the vehicle is not worth the purchase price as shown on the certificate of title. If the vehicle has been wrecked, damaged or destroyed, the undersigned hereby certifies that the vehicle is not worth the purchase price as shown on the certificate of title.

Signature of Buyer	Signature of Seller	State	ZIP code	Date of Purchase
Signature of Buyer	Signature of Seller	State	ZIP code	Date of Purchase

My Reg. No. 6 5133390

COMMONWEALTH OF VIRGINIA

DEPARTMENT OF MOTOR VEHICLES

CERTIFICATE OF TITLE FOR A VEHICLE

KEEP IN SAFE PLACE - ANY ALTERATION OR ERASURE VOIDS THIS TITLE

THE DEPARTMENT OF MOTOR VEHICLES, COMMONWEALTH OF VIRGINIA, HEREBY CERTIFIES THAT AN APPLICATION FOR A CERTIFICATE OF TITLE HAS BEEN MADE FOR THE VEHICLE DESCRIBED HEREON PURSUANT TO THE PROVISIONS OF THE MOTOR VEHICLE LAWS OF THIS COMMONWEALTH, THAT THE APPLICANT NAMED ON THE FACE HEREON HAS BEEN DULY RECORDED AS THE LAWFUL OWNER OF SAID VEHICLE, AND THAT, FROM THE STATEMENTS OF THE OWNER AND THE RECORDS ON FILE WITH THIS DEPARTMENT, THE HEREON DESCRIBED VEHICLE IS SUBJECT TO THE SECURITY INTEREST RECORDS ON FILE WITH THIS DEPARTMENT, AND AS DESCRIBED HEREON, IF ANY, THE MOTOR VEHICLE LAWS OF THIS COMMONWEALTH ALSO PROVIDE THAT ALL TITLE AND REGISTRATION INFORMATION IN THE OFFICE OF THE DEPARTMENT OF MOTOR VEHICLES IS PRIVILEGED AND ONLY SUBJECT TO DISSEMINATION TO AUTHORIZED AGENCIES, BUSINESS ORGANIZATIONS OR AGENTS, GOVERNMENTAL ENTITIES AND INDIVIDUALS UNDER THE CONDITIONS SPECIFIED BY MOTOR VEHICLE CODE SECTIONS 46.2-209 AND 46.2-210.

ESTABLISHED 10/12/12 382 382CMW ORIGINAL

VEHICLE IDENTIFICATION NO. 4T1BE46K19U306703	YEAR 2009	MAKE TOY	VEHICLE BODY 4D SDN	TITLE NO. 58584255
EMPTY WGT. 3307	GROSS WGT.	GVWR	GVWR	AXLES 2
FUEL GAS	SALES TAX PAID VA EXEMPT	ODOMETER 94842	DATE ISSUED 10/17/12	
OTHER PERTINENT DATA OS		ODOMETER BRAND ACTUAL	PRIOR TITLE NO.	

Name(s) and address(es) of vehicle owner:
TOYOTA MOTOR CREDIT CORP
PO. BOX 105386
ATLANTA GA 30348-5386

THIS IS NOT A TITLE NUMBER
G25753487

NO LIENS

A Federal and State law requires that you state the mileage in connection with the transfer of ownership. Failure to complete or providing a false statement may result in fines and/or imprisonment. The undersigned hereby certifies that the vehicle described in this title has been transferred to the following (printed name and address of Buyer(s)).

Buyer(s) Name Effect Auto Sales Inc	City, State, Zip Elizabeth NJ 07202
Street 500 South Broad Street	
DATE OF SALE 11-5-12	SALE PRICE
ODOMETER READING (No. Terms) 94842	I certify to the best of my knowledge that the odometer reading is the actual mileage of the vehicle unless one of the following statements is checked: ☒ 1. The mileage noted is in excess of its mechanical limit. ☐ 2. The odometer reading is not the actual mileage.
Signature of Seller(s) <i>[Signature]</i>	Printed Name of Seller(s) [Signature]
Signature of Buyer(s)	Printed Name of Buyer(s)
I am aware of the above odometer certification made by the Seller(s)	
I am aware of the above odometer certification made by the Seller(s)	
DETACH HERE	
Dealer's No.	Licensing Jurisdiction

VOID IF ALTERED

VOID IF ALTERED

ANY ALTERATIONS OR ERASURE WILL VOID THIS CERTIFICATE OF TITLE AND IT MUST THEN BE SURRENDERED TO SECURE A REPLACEMENT.

PURCHASER MUST SECURE A NEW TITLE, OR SURRENDER THIS ONE TO DMV WITHIN 30 DAYS OF SALE DATE.

VS-6 (REV. 07/06)

DEALER REASSIGNMENT I am aware of the dealer's odometer certification. Date of Sale _____ Sale Price _____ Buyer(s) Printed Name _____ Buyer(s) Signature _____ Buyer(s) Address _____ City _____ State _____ Zip Code _____ ODOMETER READING (Mileage) _____ (No. of Miles) _____ I certify to the best of my knowledge that the odometer reading is the actual mileage unless one of the following statements is checked: ☐ 1. The mileage stated is in excess of mechanical limits. ☐ 2. The odometer reading is not the actual mileage. WARNING-ODOMETER DISCREPANCY Dealer(s) Signature _____ Dealer(s) Printed Name _____ Dealer Number _____ Licensing Jurisdiction _____ The dealer certifies that the vehicle described in this title was transferred to the above buyer and that the odometer reading has been disclosed to the buyer.		DEALER REASSIGNMENT I am aware of the dealer's odometer certification. Date of Sale _____ Sale Price _____ Buyer(s) Printed Name _____ Buyer(s) Signature _____ Buyer(s) Address _____ City _____ State _____ Zip Code _____ ODOMETER READING (Mileage) _____ (No. of Miles) _____ I certify to the best of my knowledge that the odometer reading is the actual mileage unless one of the following statements is checked: ☐ 1. The mileage stated is in excess of mechanical limits. ☐ 2. The odometer reading is not the actual mileage. WARNING-ODOMETER DISCREPANCY Dealer(s) Signature _____ Dealer(s) Printed Name _____ Dealer Number _____ Licensing Jurisdiction _____ The dealer certifies that the vehicle described in this title was transferred to the above buyer and that the odometer reading has been disclosed to the buyer.	
LIEN LIENOR'S NAME _____ LIENOR CODE _____ DATE OF LIEN _____ ADDRESS _____ CITY _____ STATE _____ ZIP _____		APPLICATION FOR REGISTRATION (LICENSE PLATES ISSUED) VEHICLE COLOR _____ REGISTRATION PERIOD (check one): ☐ One Year ☐ Two Years (\$2 discount applies) REGISTRATION TYPE (check one): ☐ Private ☐ Rental ☐ Volunteer Emergency Vehicle ☐ For Hire FOR-HIRE VEHICLE USE (check all that apply): ☐ Interstate Operations Only (Less than 26,001 lbs.) ☐ Exempt Commodity Operations ☐ Operating Authority ☐ Leased to a Motor Carrier If you checked Operating Authority or Leased to a Motor Carrier, check all of the following for which the vehicle is used: ☐ Carrier Passengers (Regular Routes) ☐ Carrier Passengers (Irregular Routes) ☐ Non-Profit/Tax-Exempt ☐ Employee Hauler ☐ Trencher ☐ Bulk Property Carrier ☐ Contract Bus Carrier ☐ Contract Passenger Carrier ☐ Sight-Seeing Carrier ☐ Household Goods Carrier ☐ Property Carrier PERMANENT PLATES may be issued to trailers (except travel trailers), semi-trailers, truck/tractor trucks with a GVWR or GCWR of more than 26,000 lbs.; taxis; common carrier for-hire vehicles; truck/tractor trucks with a GVWR or GCWR of 7,501 lbs. to 26,000 lbs.; if used for business only or farming. TRAILER PERMANENT - One-time fee (check one): ☐ Regular Size ☐ Small Size (Gross weight of trailer must be 4,000 lbs. or less) FOR-HIRE PASSENGER PERMANENT (check one): ☐ E Permanent ☐ Passenger Permanent ☐ Great Seal Permanent ☐ Mountain to Seashore Permanent INSURANCE CERTIFICATION. I/WE CERTIFY THAT (CHECK ONE): ☐ THIS VEHICLE IS INSURED BY A LIABILITY POLICY ISSUED THROUGH AN INSURANCE COMPANY LICENSED TO DO BUSINESS IN VIRGINIA AND IT WILL REMAIN INSURED WHILE REGISTERED. ☐ THIS VEHICLE IS NOT INSURED; THEREFORE, I/WE ARE REMITTING THE APPLICABLE UNINSURED MOTOR VEHICLE FEE. (This fee provides NO insurance coverage). A VEHICLE MUST BE INSURED WITH LIABILITY COVERAGE WHEN IT IS REGISTERED, AND IT MUST REMAIN INSURED WHILE REGISTERED, WHETHER OR NOT IT IS OPERATED, OR THE UNINSURED MOTOR VEHICLE FEE MUST BE PAID. PENALTIES ARE SEVERE FOR VIOLATION OF THIS REQUIREMENT.	
CERTIFICATION OF BUYER POWER OF ATTORNEY FOR NON-RESIDENT(S) AND CORPORATION(S) NOT DOMICILED IN VIRGINIA PURSUANT TO THE PROVISIONS OF SECTION 22-501 OF THE CODE OF VIRGINIA, I/WE APPOINT THE COMMISSIONER OF THE DEPARTMENT OF MOTOR VEHICLES OF THE COMMONWEALTH OF VIRGINIA, TO BE MY/OUR TRUE AND LEGAL AGENT UPON WHOM ALL LEGAL PROCEEDINGS AGAINST ME/US MAY BE SERVED IN ANY LEGAL PROCEEDING ARISING FROM THE OPERATION AND/OR USE OF ANY MOTOR VEHICLE REGISTERED IN MY/OUR NAME(S) IN THE COMMONWEALTH OF VIRGINIA. I/WE AGREE THAT ANY LAWFUL PROCESS OR NOTICE TO ME/US WHICH IS SERVED ON THE COMMISSIONER SHALL HAVE THE SAME LEGAL EFFECT AS IF SERVED ON ME/US WITHIN THE COMMONWEALTH OF VIRGINIA.		DMV USE ONLY SALE PRICE \$ _____ BEFORE TRADE-IN ALLOWANCE TAX \$ _____ (OWNERS TAX MAY APPLY) TITLE FEE \$ _____ TRANSFER FEE \$ _____ REG FEE \$ _____ WT INCREASE FEE \$ _____ PERSONALIZED PLATE FEE \$ _____ UMV FEE \$ _____ OTHER \$ _____ TOTAL \$ _____	

Reassignment Form, Control No., (If applicable)

LOG# _____ PLATE TYPE _____ PLATE NO. _____ EXPIRE DATE _____ TITLE NUMBER _____

COMMONWEALTH OF VIRGINIA

DEPARTMENT OF MOTOR VEHICLES

CERTIFICATE OF TITLE FOR A VEHICLE

KEEP IN SAFE PLACE - ANY ALTERATION OR ERASURE VOIDS THIS TITLE

THE DEPARTMENT OF MOTOR VEHICLES, COMMONWEALTH OF VIRGINIA, HEREBY CERTIFIES THAT AN APPLICATION FOR A CERTIFICATE OF TITLE HAS BEEN MADE FOR THE VEHICLE DESCRIBED HEREON PURSUANT TO THE PROVISIONS OF THE MOTOR VEHICLE LAWS OF THIS COMMONWEALTH, THAT THE APPLICANT NAMED ON THE FACE HEREON HAS BEEN DULY RECORDED AS THE LAWFUL OWNER OF SAID VEHICLE, AND THAT, FROM THE STATEMENTS OF THE OWNER AND THE RECORDS ON FILE WITH THIS DEPARTMENT, THE HEREON DESCRIBED VEHICLE IS SUBJECT TO THE SECURITY INTEREST RECORDS ON FILE WITH THIS DEPARTMENT, AND AS DESCRIBED HEREON, IF ANY. THE MOTOR VEHICLE LAWS OF THIS COMMONWEALTH ALSO PROVIDE THAT ALL TITLE AND REGISTRATION INFORMATION IN THE OFFICE OF THE DEPARTMENT OF MOTOR VEHICLES IS PRIVILEGED AND ONLY SUBJECT TO DISSEMINATION TO AUTHORIZED AGENCIES, BUSINESS ORGANIZATIONS OR AGENTS, GOVERNMENTAL ENTITIES AND INDIVIDUALS UNDER THE CONDITIONS SPECIFIED BY MOTOR VEHICLE CODE SECTIONS 46.2-201 AND 46.2-210.

383 383CJS ORIGINAL

VEHICLE IDENTIFICATION NO.		YEAR	MAKE	VEHICLE BODY	HIPEND
1GKLVNED6A01138209		2010	GMC	SPORT UTILITY	77531703
EMPTY WGT.	GROSS WGT.	GVWR	GCWR	AXLES	FUEL
4993				2	GAS
SALES TAX PAID		ODOMETER		DATE ISSUED	
1259.82		8*		11/12/09	
OTHER PERTINENT DATA			ODOMETER BRAND		
OS			ACTUAL		

Name(s) and address(es) of vehicle owners:
ARI FLEET LT
9000 MIDLANTIC DRIVE
MOUNT LAUREL NJ 08054

THIS IS NOT A TITLE NUMBER

G10789382

NO LIENS

A Federal and State law requires that you state the mileage in connection with the transfer of ownership. Failure to complete or providing a false statement may result in fines and/or imprisonment. The undersigned hereby certifies that the vehicle described in this title has been transferred to the following (printed name and address of Buyer(s)).

Buyer(s) Name: Palisades Dealer Funding LLC

Street: 72-12 Avenue Blvd City/State/Zip: Woodside NY 11307

DATE OF SALE: _____ SALE PRICE: _____

ODOMETER READING (No Tens): _____

I certify to the best of my knowledge that the odometer reading is the actual mileage of the vehicle unless one of the following statements is checked:

☐ 1. The mileage stated is in excess of the mechanical limit. ☐ 2. The odometer reading is not the actual mileage.

Signature of Seller(s): ARI FLEET LT Printed Name of Seller(s): _____

Signature of Buyer(s): _____ Printed Name of Buyer(s): _____

I am aware of the above odometer certification made by the Seller(s).

I am aware of the above odometer certification made by the Seller(s).

DETAACH HERE

Dealer's No. _____ Licensing Jurisdiction _____

VOID IF ALTERED

VOID IF ALTERED

ANY ALTERATIONS OR ERASURES WILL VOID THIS CERTIFICATE OF TITLE AND IT MUST THEN BE SURRENDERED TO SECURE A REPLACEMENT.
PURCHASER MUST SECURE A NEW TITLE, OR SURRENDER THIS ONE TO DMV WITHIN 30 DAYS OF SALE DATE.
VS-61 (REV. 07/99)

Federal and State law requires that you state the mileage in connection with the transfer of ownership. Failure to complete the odometer disclosure statement or providing a false statement may result in fines and/or imprisonment.									
B		I am aware of the dealer's odometer certification. Date of Sale _____ Sale Price _____							
DEALER REASSIGNMENT		Buyer(s) Printed Name _____		Buyer(s) Signature _____					
		Buyer(s) Address _____		City _____		State _____		Zip Code _____	
		ODOMETER DISCLOSURE		I certify to the best of my knowledge that the odometer reading is the actual mileage unless one of the following statements is checked. ☐ 1. The mileage stated is in excess of mechanical limits. ☐ 2. The odometer reading is not the actual mileage. WARNING-ODOMETER DISCREPANCY \$ _____					
		Dealer(s) Signature _____		Dealer(s) Printed Name _____		Dealer Number _____		Licensing Jurisdiction _____	
The dealer certifies that the vehicle described in this title was transferred to the above buyer and that the odometer reading has been disclosed to the buyer.									
C		I am aware of the dealer's odometer certification. Date of Sale _____ Sale Price _____							
DEALER REASSIGNMENT		Buyer(s) Printed Name _____		Buyer(s) Signature _____					
		Buyer(s) Address _____		City _____		State _____		Zip Code _____	
		ODOMETER DISCLOSURE		I certify to the best of my knowledge that the odometer reading is the actual mileage unless one of the following statements is checked. ☐ 1. The mileage stated is in excess of mechanical limits. ☐ 2. The odometer reading is not the actual mileage. WARNING-ODOMETER DISCREPANCY \$ _____					
		Dealer(s) Signature _____		Dealer(s) Printed Name _____		Dealer Number _____		Licensing Jurisdiction _____	
The dealer certifies that the vehicle described in this title was transferred to the above buyer and that the odometer reading has been disclosed to the buyer.									
D									
DOES YOUR VEHICLE QUALIFY FOR CAR TAX RELIEF?									
If you can answer YES to any of the following questions, your motor vehicle is considered by State Law to have a business use and does NOT qualify for Personal Property Tax Relief. ☐ 1. Is more than 50% of the vehicle's annual mileage used as a business expense for federal income tax purposes OR reimbursed by an employer? ☐ 2. Is more than 50% of the depreciation associated with the vehicle deducted as a business expense for Federal Income Tax purposes? ☐ 3. Is the cost of the vehicle expensed pursuant to Section 179 of the Internal Revenue Service Code? ☐ 4. If the vehicle is leased by an individual, does the leasing company pay the tax without reimbursement from the individual?									
This vehicle is for ☐ Personal Use ☐ Business Use Check one of the boxes. See business use criteria above.									
E									
LIENOR'S NAME _____ LIENOR CODE _____ DATE OF LIEN _____									
LIENOR'S ADDRESS _____ CITY _____ STATE _____ ZIP _____									
F									
VEHICLE COLOR _____									
REGISTRATION PERIOD (check one): ☐ One Year ☐ Two Years (\$2 discount applies)									
REGISTRATION TYPE (check one): ☐ Private ☐ Rental ☐ Volunteer Emergency Vehicle ☐ For Hire									
FOR-HIRE VEHICLE USE (check all that apply): ☐ Interstate Operations Only (Less than 26,001 lbs.) ☐ Exempt Commodity Operations: ☐ Operating Authority ☐ Leased to a Motor Carrier									
If you checked Operating Authority or Leased to a Motor Carrier, check all of the following for which the vehicle is used: ☐ Carrier Passengers (Regular Routes) ☐ Carrier Passengers (Irregular Routes) ☐ Non-Profit/Tax-Exempt ☐ Employee Hauler ☐ Taxi/ Cab ☐ Bulk Property Carrier ☐ Contract Bus Carrier ☐ Contract Passenger Carrier ☐ Sight-Seeing Carrier ☐ Household Goods Carrier ☐ Property Carrier									
PERMANENT PLATES may be issued to trailers (except travel trailers), semi-trailers, truck/tractor trucks with a GVWR or GCWR of 7,501 lbs. to 26,000 lbs. If used for business only or hauling.									
TRAILER PERMANENT - one-time fee (check one): ☐ Regular Size ☐ Small Size (Gross weight of trailer must be 4,000 lbs. or less)									
FOR-HIRE PASSENGER PERMANENT (check one): ☐ E Permanent ☐ Passenger Permanent ☐ Great Seal Permanent ☐ Mountain to Seashore Permanent									
INSURANCE CERTIFICATION. I WE CERTIFY THAT (CHECK ONE): ☐ THIS VEHICLE IS INSURED BY A LIABILITY POLICY ISSUED THROUGH AN INSURANCE COMPANY LICENSED TO DO BUSINESS IN VIRGINIA AND IT WILL REMAIN INSURED WHILE REGISTERED. ☐ THIS VEHICLE IS NOT INSURED; THEREFORE, I WE ARE REMITTING THE APPLICABLE UNINSURED MOTOR VEHICLE FEE. (This fee provides NO insurance coverage). A VEHICLE MUST BE INSURED WITH LIABILITY COVERAGE WHEN IT IS REGISTERED, AND IT MUST REMAIN INSURED WHILE REGISTERED, WHETHER OR NOT IT IS OPERATED, OR THE UNINSURED MOTOR VEHICLE FEE MUST BE PAID. PENALTIES ARE SEVERE FOR VIOLATION OF THIS REQUIREMENT.									
POWER OF ATTORNEY FOR NON-RESIDENT(S) AND CORPORATION(S) NOT DOMICILED IN VIRGINIA PURSUANT TO THE PROVISIONS OF SECTION 46-2-201 OF THE CODE OF VIRGINIA, I WE APPOINT THE COMMISSIONER OF THE DEPARTMENT OF MOTOR VEHICLES OF THE COMMONWEALTH OF VIRGINIA, TO BE MY/OUR TRUE AND LEGAL AGENT UPON WHOM ALL LEGAL PROCEEDINGS AGAINST ME/US MAY BE SERVED IN ANY LEGAL PROCEEDING ARISING FROM THE OPERATION AND/OR USE OF ANY MOTOR VEHICLE REGISTERED IN MY/OUR NAME(S) IN THE COMMONWEALTH OF VIRGINIA. I WE AGREE THAT ANY LAWFUL PROCESS OR NOTICE TO ME/US WHICH IS SERVED ON THE COMMISSIONER SHALL HAVE THE SAME LEGAL EFFECT AS IF SERVED ON ME/US WITHIN THE COMMONWEALTH OF VIRGINIA.									
G									
CERTIFICATION									
NO PAPER TITLE - Check this box ☐ If you do not want a paper title issued to you. An electronic Certificate of Title will remain on the file for this vehicle at DMV.									
If this application is for joint ownership, do you wish clear rights of ownership to be transferred to the surviving owner in the event of the death of either the owner or co-owner? ☐ YES ☐ NO									
Are any of the vehicle owners on active military duty or service? ☐ YES ☐ NO									
I/we certify and affirm under penalty of perjury that the information contained in this application is true and correct to the best of my/our knowledge. I/we understand it is unlawful to knowingly make a false statement and any violation may be prosecuted as a felony as provided in Virginia law.									
SIGNATURE OF APPLICANT _____ DATE _____									
SOCIAL SECURITY NUMBER/FIN OF APPLICANT _____									
SIGNATURE OF CO-APPLICANT _____ DATE _____									
SOCIAL SECURITY NUMBER/FIN OF CO-APPLICANT _____									
STREET ADDRESS _____									
CITY _____ STATE _____ ZIP _____									
VEHICLE PRINCIPALLY GARAGED IN CITY, TOWN, COUNTY OR STATE OF: ☐ CITY OR TOWN OF _____ ☐ COUNTY OF _____									
DMV USE ONLY						WITH LIEN			
SALE PRICE \$ _____						☐ YES ☐ NO			
BEFORE TRADE-IN ALLOWANCE \$ _____						Proof of Address (legally mail address presented)			
TAX \$ _____						CLERK'S STAMP			
TITLE FEE \$ _____									
TRANSFER FEE \$ _____									
REG FEE \$ _____									
WT INCREASE FEE \$ _____									
PERSONALIZED PLATE FEE \$ _____									
UMV FEE \$ _____									
OTHER \$ _____									
TOTAL \$ _____									

LOG# _____
PLATE TYPE _____
PLATE NO. _____
EXPIRE DATE _____
TITLE NUMBER _____
DMV USE ONLY

Reassignment Form, Control No., (if applicable) _____



MV-907A No.

New York State Department of Motor Vehicles
WHOLESALE CERTIFICATE OF SALE
This Certificate Is Not Valid for Retail Transactions

W 1544044

VEHICLE INFORMATION:

Year	Make	Model	Body Type	Color	Weight (Unladen)	Fuel Type	Cylinders	Actual Seating Capacity
10	CNV	1240A	Van			Gas	4	
Vehicle Identification Number			Serial	Transporter Plate No.				
1E1UN1501601138200								

DEALER INFORMATION:

Name and Address (Print)

Palisades Dealer Funding LLC

PURCHASER INFORMATION:

Name and Address (Print)

11111 AVENUE 600 S OROVAL ST ELIZABETH

Date of Sale

PRIOR OWNER INFORMATION:

Source of Ownership (Name and Address)

111 FIRST ST 9000 MIDWAY RD HUNT HAVEN

Date of Purchase

10-11-12

ODOMETER DISCLOSURE STATEMENT—Dealer must complete this section

Federal and state laws require that you state the mileage of the vehicle described on this certificate, when transferring ownership. Failure to do so, or not telling the truth about the mileage, may result in fines and/or imprisonment.

The odometer on the vehicle described above has: ☐ 5 digits ☐ 6 digits, not including tenths☐ I certify that, to the best of my knowledge, this odometer reading reflects the "ACTUAL MILEAGE" of the vehicle described above.☐ I certify that, to the best of my knowledge, this odometer reading "EXCEEDS MECHANICAL LIMITS."☒ I certify that, to the best of my knowledge, this odometer reading is "NOT THE ACTUAL MILEAGE." WARNING: ODOMETER DISCREPANCY.

ODOMETER READING			
8	3	7	2

(no tenths)

DEALER CERTIFICATION:

I certify that the vehicle described above was sold to the purchaser on the date indicated. False statements made on this certificate are punishable as a Class A misdemeanor pursuant to Section 210.45 of the Penal Law.

DEALER (or authorized representative) SIGN name in full	PRINT name in full	Date	Sealer's Facility No.
	Palisades Dealer Funding LLC		1100-50
PURCHASER SIGN name in full	PRINT name in full	Date	Purchaser's Facility No.
	FRANK AND		

PART 1 - ORIGINAL

ANY CHANGE OR ALTERATION VOIDS THIS CERTIFICATE

PIERCE, CHARLES, T
6 IDA LN
ELLENVILLE NY 12428

004547

CERTIFICATE OF TITLE

NEW YORK STATE



Title and Identification No.	Year	Make	Model Code	Body/Full	Document No.	
1U4NF5EB7ED282296	2011	JEEP	CMP	SUBV	087305X	
1U4NF5EB7ED282296						
Color	Wt/Sts/Lb	Fuel	Cyl/Prop	New or Used	Type of Title	Date Issued
GY	3286	GAS	4	USED	VEHICLE	7/27/12

Name and Address of Owner(s)

PIERCE, CHARLES, T
6 IDA LN
ELLENVILLE NY 12428

ODOMETER READING: 00011

ACTUAL MILEAGE 00011

REBUILT SALVAGE/NY

This document is your proof of ownership for the vehicle, boat or manufactured home. Keep it in a safe place, not with your license or registration or in your vehicle or boat. To dispose of your vehicle, boat or manufactured home, complete the transfer section on the back and give this title to the new owner.

Lienholder

Lienholder

* NO LIENS RECORDED *

* NO LIENS RECORDED *

Lienholder

Lienholder

* NO LIENS RECORDED *

* NO LIENS RECORDED *

DEPARTMENT OF MOTOR VEHICLES

ANY CHANGE OR ERASURE WILL VOID THIS TITLE -- ANY FALSE STATEMENT IS A MISDEMEANOR

SECTION I - Transfer by Owner

ODOMETER DISCLOSURE STATEMENT

Note: This vehicle cannot be registered or titled in the name of the new owner unless mileage is disclosed.

Federal and State Law require that you state the mileage of the vehicle described on this certificate when transferring ownership. Failure to do so, or providing a false statement, may result in fines and/or imprisonment.

I certify that, to the best of my knowledge, this odometer reading (check one):

- ☐ 1. reflects the ACTUAL MILEAGE as seen on the odometer of the vehicle described on the front;
☐ 2. EXCEEDS MECHANICAL LIMITS (odometer started over at zero)
☐ 3. not the actual mileage. WARNING - ODOMETER DISCREPANCY.

ODOMETER READING

1560

(no tenths)

ODOMETER HAS SPACE FOR: (Check one)

- ☐ Five Digits, excluding tenths
☒ Six Digits, excluding tenths

DAMAGE DISCLOSURE STATEMENT (To be Completed by Owner Named on Face of Title)

I certify that, to the best of my knowledge, this vehicle: ☐ has been or ☒ has not been wrecked, destroyed or damaged to such an extent that the total estimate or actual cost of parts and labor to rebuild or reconstruct the vehicle to the condition it was in before an accident, and for legal operation on the road or highways, is more than 75% of the retail value of the vehicle at the time of loss. (Checking the "has" box means that the vehicle must have an anti-theft examination before being registered and that the title issued will have the statement "Rebuilt Salvage NY" on it.)

If we transfer the vehicle, boat or manufactured home described on this certificate, At the time of transfer, this title is subject only to the liens or encumbrances listed on this certificate, if any. I also certify that this is the most recent title issued for this vehicle, boat or manufactured home.

Note: Section 2113 of the Vehicle and Traffic Law requires that application for a title must be made within 30 days of transfer.

Seller	Seller's Signature	Charles T. Pierce			Seller's Name (Print in Full)	CHARLES T. PIERCE		
	Street Address	City	State	ZIP code	Date of Statement			
	6 IDA LANE	ELLENVILLE	NY	12428	10/10/12			
Buyer	Buyer's Signature	SAW MILL AUTO SALES			Buyer's Name (Print in Full)	SAW MILL AUTO SALES		
	Street Address	City	State	ZIP code	Date of Statement			
			12 WORTH STREET	YONKERS, NY 10701	10/10/12			

SECTION II - Reassignment by Manufactured Home Dealer or Registered Boat Dealer or Out-of-State Dealer

ODOMETER DISCLOSURE STATEMENT

Note: This vehicle cannot be registered or titled in the name of the new owner unless mileage is disclosed.

Federal and State Law require that you state the mileage of the vehicle described on this certificate when transferring ownership. Failure to do so, or providing a false statement, may result in fines and/or imprisonment.

I certify that, to the best of my knowledge, this odometer reading (check one):

- ☐ 1. reflects the ACTUAL MILEAGE of the vehicle described on the front;
☐ 2. EXCEEDS MECHANICAL LIMITS (odometer started over at zero)
☐ 3. not the actual mileage. WARNING ODOMETER DISCREPANCY.

ODOMETER READING

(no tenths)

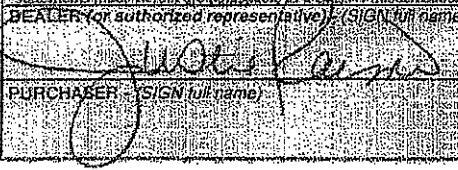
ODOMETER HAS SPACE FOR: (Check one)

- ☐ Five Digits, excluding tenths
☐ Six Digits, excluding tenths

If we transfer the vehicle, boat or manufactured home described on this certificate, At the time of transfer, this title is subject only to the liens or encumbrances listed on this certificate, if any. I also certify that this is the most recent title issued for this vehicle, boat or manufactured home.

Note: Section 2113 of the Vehicle and Traffic Law requires that application for a title must be made within 30 days of transfer.

Seller	Seller's Signature				Seller's Name (Print in Full)			
	Street Address	City	State	ZIP code	Date of Statement			
Buyer	Buyer's Signature				Buyer's Name (Print in Full)			
	Street Address	City	State	ZIP code	Date of Statement			

TYPE OF SALE		New York State Department of Motor Vehicles				RETAIL CERTIFICATE OF SALE		 * 4 3 3 6 4 9 0 1 *													
☐ WHOLESALE OR ☒ RETAIL ☐ New ☒ Used ☐ Demo ☐ Salvage																					
VEHICLE INFORMATION: F8630		No. 43364901																			
Year	Make	Model	Body Type	Color	Weight (Unladen)	Fuel Type	Cylinders	Adult Seating Capacity													
2011	JEEP	COMPASS	SUBN	GN	3286	G	4	4													
Vehicle Identification Number		Inspection Certificate Number		Date of Inspection		Inspection Station Number															
1J4NF5FB7BD182296		NA		NA		NA															
Plate/Permit Number	Number of Dealer Plate Loans		☐ Lease Buyout (Insp. Not Required)		Selling Price (\$ units only)																
NA	NA				NA																
DEALER INFORMATION (Print Name and Address)																					
SAW MILL AUTO SALES, 12 NORTH ST, YONKERS, NY 10701																					
PURCHASER INFORMATION (Print Name and Address)							Date of Sale														
EFFECT AUTO SALES INC 500 SO BROAD ST ELIZABETH, NJ 07202							10/24/12														
PRIOR OWNER INFORMATION (Print Name and Address, Source of Ownership)							Date of Purchase														
CHARLES T PIERCE, 61 DALN ELLENVILLE, NY 12428							10/10/12														
ODOMETER DISCLOSURE STATEMENT																					
Federal and state laws require that you state the mileage of the vehicle described on this certificate, when transferring ownership. Failure to do so, or not telling the truth about the mileage may result in fines and/or imprisonment.																					
The odometer on the vehicle described above has: ☐ 5 digits ☒ 6 digits, not including tenths																					
☒ I certify that, to the best of my knowledge, this odometer reading reflects the "ACTUAL MILEAGE" of the vehicle described above.						<table border="1" style="width:100%; border-collapse: collapse;"> <tr> <th colspan="4" style="text-align: center;">ODOMETER READING</th> </tr> <tr> <td style="text-align: center;">1</td> <td style="text-align: center;">5</td> <td style="text-align: center;">6</td> <td style="text-align: center;">0</td> </tr> <tr> <td colspan="4" style="text-align: center;">(no tenths)</td> </tr> </table>				ODOMETER READING				1	5	6	0	(no tenths)			
ODOMETER READING																					
1	5	6	0																		
(no tenths)																					
☐ I certify that, to the best of my knowledge, this odometer reading "EXCEEDS MECHANICAL LIMITS."																					
☐ I certify that, to the best of my knowledge, this odometer reading is "NOT THE ACTUAL MILEAGE. WARNING: ODOMETER DISCREPANCY?"																					
DEALER CERTIFICATION:																					
I certify: The vehicle described above was sold to the purchaser on the date indicated. At the time of delivery, the purchaser was entitled to register the vehicle. This vehicle complied with equipment requirements of the Commissioner's Regulations. At the time of delivery, such equipment was in condition and repair to render satisfactory and adequate service on the public highway under normal use. Equipment certification does not apply to vehicle sold as new, wholesale, or salvage. All New York State and local taxes due as a result of this sale have been collected from the purchaser. False statements made herein are punishable as a Class A misdemeanor pursuant to Section 210.45 of the Penal Law.																					
DEALER (or authorized representative) (SIGN full name)		PRINT full name of dealer or authorized rep.			Date		Dealer Family No.														
		JUSTINE RAINA			10/24/12		7109629														
PURCHASER (SIGN full name)		PRINT full name of purchaser			Date		Selling Dealer, NYS Sales Tax ID														
		EFFECT AUTO SALES			10/24/12		271492321														

ANY CHANGE OR ALTERATION VOIDS THIS CERTIFICATE

Appendix 9



G-Auto Sales, Inc. Договор-Инвойс

www.GlobalAutoUSA.com

www.GAUTOUSA.com

G Auto Sales, Inc.

150-1 Carriage Lane, Delran, NJ 08075

+ 7 (495) 721-8449

+ 7 (812) 336-4264

kotkears@gmail.com

cars@globalautousa.com

Дата: 8/22/2012

Инвойс №: 67779

Банковские реквизиты:

Название банка: Citizens Bank

Адрес банка: 1 Citizens Drive
Riverside, RI 02915

Покупатель:

ФИО: Овчинников И.Ю.

Адрес: г. Ханты-Мансийск ул. Обская, д.22 кв.7

Телефон: +79028141265

oiur@rambler.ru

ovigur@mail.ru

№ счёта: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

убедительная просьба ко всем клиентам. После перевода денег отправляйте подтверждение (Ваше имя, сумма, номер лота или последние 6 цифр VIN) на e-mail адрес бухгалтерии: account@globalautousa.com

Перед тем как забирать свой автомобиль, обязательно закажите открепление - сверьтесь с бухгалтерией и сообщите ФИО человека, который будет забирать авто. Без открепления будет взиматься штраф в размере 15 евро.

Кол-во	Лот №	Год	Марка/модель	VIN	Цена за ед.	Сумма
1	15095	2009	GMC Acadia	1GKLVNED6A1138200	28900	28900
				deposit	27500	27500
Скидка (если предоставлена)						
Исдержки, взимаемые нашим банком за перевод денег						20
Произведена оплата						
ИТОГО:						1420



Майкл Головеря,
Президент компании G Auto Sales, Inc.

1. Предоплата со стороны Покупателя не является окончательной покупкой автомобиля; а гарантирует его бронирование на определенный срок, обговариваемый отдельно.
2. В случае внесенной предоплаты и несвоевременной доплаты полной стоимости автомобиля, компания G Auto Sales, Inc. оставляет за собой право выставить неоплаченный авто на продажу.
3. В случае расторжения договора на приобретение автомобиля со стороны Покупателя, Клиент получает кредит с компанией или возврат денежных средств за вычетом 10% от стоимости автомобиля.
4. Возврат производится после продажи автомобиля другому клиенту.
5. За резервирование автомобиля на сайте компании G Auto Sales, Inc. Покупатель подтверждает, что ознакомился с правилами оформления сделки купли-продажи автомобиля и согласен с ними.
6. Компания G Auto Sales, Inc. гарантирует легитимность и законность происхождения продаваемых автомобилей.
7. Покупатель должен заказать открепительное удостоверение за 5 рабочих дней в бухгалтерии компании.
8. Клиент обязуется оплатить портовые расходы и расходы по складу в г. Ханты-Мансийск.

5. Все

Благодарим за сотрудничество!

Если у Вас возникли вопросы по оплате, пишите на email: account@globalautousa.com



G-Auto Sales, Inc.

www.GlobalAutoUSA.com

www.GAUUSA.com

G Auto Sales, Inc.

150-1 Carriage Lane, Denville, NJ 08075

+ 7 (495) 721-8448

+ 7 (812) 335-4264

kotkatsis@gmail.com

cars@globalautousa.com

Contract-Invoice

Date: 22.08.2012

Invoice No.: 97779

Bank essential elements/

Bank name: Citizens Bank
Bank address: 1 Citizens Drive
Riverside, RI 02915

Buyer:

Name: Ovechnikov Igor
Address: Khanty-Mansiysk, Obskaya st. 22/7
Tel: +79028341265
olur@rambler.ru

Account No: 6236012168
ABA: 036076150
SWIFT CODE: CTZIUS33

We ask all the clients, after transfer of money, send, please, confirmation (your name, turn, lot number of the car, 6 numbers of VIN) to e-mail address of the Accounting Office: account@globalautousa.com

ovigor@mail.ru
Before taking of your automobile, order release - check with the Accounting Office and inform about the name of the person who will take the auto. Without such release, the penalty in the amount of 1% Euro must be collected.

Qty	Lot No	Year	Mark/Model	VIN	Unit price	Sum
1	15085	2008	GMC Acadia	1GKLVNED5A1138200	28900	28900
				deposit	27500	27500
Discount (if any):						
Bank commission for money transfer:						20
Payment made:						
TOTAL:						1420



Qual group of G-Auto Sales, Incorporated



(Signature)

Michael Goloberya,
President of G-Auto Sales, Inc.

- Advance payment of the Buyer is not the final purchase of the automobile, but guarantees its reservation for a definite term stipulated separately.
- In case of advance payment and ultimate payment of the full cost of the automobile, G Auto Sales, Inc. reserves the right to sell such automobile.
- In case of termination of the contract for purchase of the automobile by the Buyer, a client gets credit from the company or return of money less 10% of the automobile cost. Such return is made after sale of the automobile to another client.
- Having reserved the automobile on the website of G-Auto Sales, Inc., the Buyer confirms that he is familiarized with the rules of execution of sales/purchases of the automobile and agree with them.
- Bank commissions and commissions of bank intermediaries are paid by the Buyer.
- G Auto Sales, Inc. guarantees legality of the origin of sold automobiles.
- The buyer should to order an observance certificate for 5 days in the company's accounting department.
- The client undertakes to pay for port costs and warehouse costs in Kotka City.

Thank you for your cooperation!

If you have any questions by payment, write to email: account@globalautousa.com

CERTIFICATE OF ACCURACY

This is to certify that this is a true and correct English translation of the attached of the original document.

"I Gulbakhor Eshmuratova declare and state under penalty of perjury under the laws of the United States of America that the annexed English translation is a true and accurate translation of the annexed original Russian language document"

Made in Khanty-Mansiysk, Khanty-Mansi Autonomous okrug-Yugra, Tyumen Region, Russian Federation, on this 05th day of May, 2016.

Translator Gulbakhor B. Eshmuratova _____

Текст с русского на английский язык перевела
Эшмуратова Гулбахор Бомуратовна. _____



G-Auto Sales, Inc.

www.GlobalAutoUSA.com

www.GAUTOUSA.com

G-Auto Sales, Inc.

150-1 Carriage Lane, Delran, NJ 08075

DOCUMENT №

Договор-Инвойс

Дата: 10/5/2012

Инвойс №: 98324

Банковские реквизиты:

Название банка: Citizens Bank

Адрес банка: 1 Citizens Drive
Riverside, RI 02915

Покупатель:

Рзаева Ирина Владимировна

ФИО:

Рзаева Ирина Владимировна

Адрес:

РФ, г. Сыктывкар, ул. Сорвачёва, д. 18, кв. 1

№ счёта: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

Убедительная просьба ко всем клиентам. После перевода денег отправляйте подтверждение (Ваше имя, сумма, номер лота или последние 6 цифр VIN) на e-mail адрес бухгалтерии: account@globalautousa.com

Перед тем как забирать свой автомобиль, обязательно закажите открепление - свяжитесь с бухгалтерией и сообщите ФИО человека, который будет забирать авто. Без открепления будет взиматься штраф в размере 15 евро.

Кол-во	Лот №	Год	VIN	Цена за ед.	Сумма
1	15064	2011	1J4NF5FB78D282296	\$15,900	\$15,900
Скидка (если предоставлена)					
Издержки, взимаемые нашим банком за перевод денег					\$20
Произведена оплата					
ИТОГО:					\$15,920



Матка Головеря,

Президент компании G-Auto Sales, Inc.

- Предоплата со стороны Покупателя не является окончательной покупкой автомобиля, а гарантирует его бронирование на определенный срок, обговариваемый отдельно.
- В случае внесенной предоплаты и несвоевременной оплаты полной стоимости автомобиля, компания G-Auto Sales, Inc. оставляет за собой право выставить неоплаченный авто на продажу.
- В случае расторжения договора на приобретение автомобиля со стороны Покупателя, клиент получает кредит с компанией или возврат денежных средств за вычетом 10% от стоимости автомобиля. Возврат производится после продажи автомобиля другому клиенту.
- Зарезервировать автомобиль на сайте компании G-Auto Sales, Inc. Покупатель подтверждает, что ознакомился с правилами оформления сделки купли-продажи автомобиля и согласен с ними.
- Все банковские затраты и комиссии брокера-посредника оплачиваются покупателем.
- Компания G-Auto Sales, Inc. гарантирует легитимность и законность происхождения продаваемых автомобилей.
- Покупатель должен заказать отправительное удостоверение за 5 рабочих дней в бухгалтерию компании.

Благодарим за сотрудничество!

Если у Вас возникли вопросы по оплате, пишите на email: account@globalautousa.com

Translated from Russian into English

/On the letterhead of G-Auto Sales, Inc./

CONTRACT-INVOICE

Date: 05.10.2012

Invoice No: 98324

BANK ESSENTIAL ELEMENTS:

Bankname: CitizensBank

Bank address: 1 Citizens Drive,
Riverside, RI 02915

BUYER: RZAEVA IRINA VLADIMIROVNA

Russia, Syktyvkar,
Address 18 Sorvacheva str. Apt. 1

Account No: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

We ask all the clients: after
transfer of money,
send, please, confirmation (your
name, sum, lot number of last 6
numbers of VIN) to the e-mail
address of the accounting
office:
account@globalautousa.com

Before taking of your automobile,
order release-check with the
accounting office and inform about
the name of the person who will take
the auto. Without such release the
penalty in the amount of 15 Euro
must be collected.

Q-ty	Lot#	Year	VIN	Unit price	Sum
1	15064	2011	1J4NF5FB7BD282296	\$15 900	\$15 900
Discount (if any)					
Bank commission for money transfer					\$20
Payment made					
Total:					\$15 920

/Signature/

Michael Goloverya,
President of G-Auto Sales, Inc.

/Oval stamp of G-Auto, Inc./

1. Advance payment of the buyer is not the final purchase of the automobile, but guarantees it's reservation for the definite term stipulated separately.
2. In case of advance payment and untimely payment of the full cost of the automobile, G-Auto Sales Inc. reserves the right to sell such automobile.
3. In case of termination of the contract for purchase of the automobile by the buyer, a client gets credit from the company or return of money less 10% of the automobile cost. Such return is made after sale of the automobile to another client.
4. Having reserved the automobile on the web site of G-Auto Sales, Inc., the Buyer confirms that he is familiarized with the rules of execution of sales/purchase of the automobile and agree with them.
5. Bank commissions and commissions of bank intermediaries are paid by the Buyer.
6. G-Auto Sales, Inc., guarantees legality of the origin of sold automobiles.
7. The client undertakes to pay for the port costs and warehouse costs in Kotka City

Thank you for your cooperation!

If you have any questions on payment, write to email:
account@globalautousa.com

End of Translation

"I, Евгений Евгеньевич Никольский declare and state under penalty of perjury under the laws of the United States of America that the annexed English translation is a true and accurate translation of the annexed original Russian language document."

Город Сыктывкар, Республика Коми, тринадцатого апреля две-тысячи шестнадцатого года.

Барбокина Екатерина Николаевна Бар

Город Сыктывкар, Республика Коми.

Тринадцатого апреля две-тысячи шестнадцатого года.

Я, Кромкина Ксения Васильевна, нотариус Сыктывкарского нотариального округа Республики Коми, свидетельствую подлинность подписи, сделанной переводчиком с русского языка на английский язык Барбокиной Екатериной Николаевной в моем присутствии. Личность ее установлена.

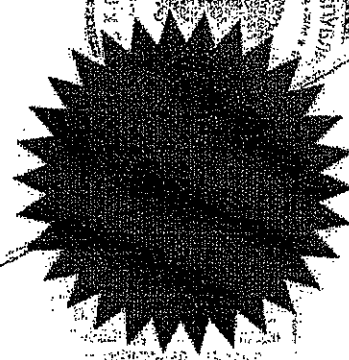
Зарегистрировано в реестре за № 2Г-1069.

Взыскано по тарифу: 500 руб. 00 коп.

В том числе взыскано за услуги правового
и технического характера: 400 руб. 00 коп.



Кромкина К.В.



[Handwritten signature]



G-Auto Sales, Inc.

Договор-Инвойс

www.GlobalAutoUSA.com

www.GAUTOUSA.com

G Auto Sales, Inc.

150-1 Carriage Lane, Dairan, NJ 08075

+ 7 (495) 721-8449

+ 7 (812) 336-4264

korkacar@gmail.com

cars@globalautousa.com

Дата: 11/29/2012

Инвойс №: 67936

Банковские реквизиты:

Название банка: Citizens Bank

Адрес банка: 1 Citizens Drive

Riverside, RI 02915

Покупатель:

ФИО: Нургазинов Кайрат

Адрес: РК

kairat_nurga@mail.ru

Тел: +77771463483

№ счета: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

Убедительная просьба ко всем клиентам. После перевода денег отправляйте подтверждение (Ваше имя, сумма, номер лота или последние 6 цифр VIN) на e-mail: account@globalautousa.com

Перед тем как забирать свой автомобиль, обязательно закажите открепление - сверьтесь с бухгалтерией и сообщите ФИО человека, который будет забирать авто. Без открепления будет взиматься штраф в размере 15 евро.

Кол-во	Лот №	Год	Марка/Модель	VIN	Цена за ед.	Сумма
1	15212	2010	Toyota Camry	4T1BE46K19U306703	12900	12900
				deposit	10500	10500
				Скидка (если предоставлена)		
				Издоржки, взимаемые нашим банком за перевод денег		20
				Произведена оплата		
				ИТОГО:		2420



Майкл Головеря,
Президент компании G-Auto Sales, Inc.

1. Продавец обязуется передать в собственность покупателя автомобиль (марка, модель, год выпуска, VIN, цвет, комплектация, пробег) на условиях, указанных в настоящем договоре.
2. В случае заключения договора купли-продажи автомобиля, покупатель обязуется оплатить автомобильную сумму, указанную в договоре, в течение 10 (десяти) рабочих дней с момента подписания договора.
3. В случае расторжения договора купли-продажи автомобиля, покупатель обязуется возместить продавцу все расходы, понесенные им в связи с продажей автомобиля, включая, но не ограничиваясь, расходы на рекламу, оформление документов, транспортные расходы и т.д.
4. В случае заключения договора купли-продажи автомобиля, покупатель обязуется предоставить продавцу все необходимые документы, подтверждающие его личность и платежеспособность, а также предоставить доступ к своему банковскому счету для проведения оплаты.
5. Компания G-Auto Sales, Inc. гарантирует, что все автомобили, продаваемые ею, являются легальными и имеют все необходимые документы.
6. Компания G-Auto Sales, Inc. гарантирует, что все автомобили, продаваемые ею, являются новыми и не имеют никаких повреждений.
7. Покупатель должен оплатить откреплённый автомобиль до момента его выезда с территории продавца.
8. В случае оплаты откреплённого автомобиля, покупатель обязуется предоставить продавцу все необходимые документы, подтверждающие его личность и платежеспособность, а также предоставить доступ к своему банковскому счету для проведения оплаты.

Благодарим за сотрудничество!

Если у Вас возникли вопросы по оплате, пишите на email: account@globalautousa.com

/On the letterhead of G-Auto Sales, Inc./

Contract-Invoice

Date: 29/11/2012

Invoice No. 67936

Bank essential elements:

Bank name: Citizens Bank
1 Citizens Drive
Riverside, RI 02915

Buyer:

Name: NURGAZINOV Kairat
Address: Republic of Kazakhstan
kairat_nura@mail.ru
Tel.: +7771463483

Account No. 6236012168
ABA: 036076150
SWIFT COD: CITIUS33

We ask all the clients: after transfer of money, send, please, confirmation (your name, sum, lot number of the last 6 numbers of VIN) to e-mail address of the Accounting Office: account@globalautosales.com

Before taking of your automobile, order release - check with the Accounting Office and inform about the name of the person who will take the auto. Without such release, the penalty in the amount of 15 Euro must be collected.

Q-ty	Lot No.	Year	Mark/Model	VIN	Unit price	Sum
1	15212	2010	TOYOTA	4T1B246K19U306703	12900	12900
				Deposit	10500	10500
					Discount (if any)	
				Bank commission for money transfer		20
				Payment made		
				TOTAL		2420

Michael Goloberya
President of G-Auto Sales, Inc.
/signature/

/Oval stamp of G-Auto Sales, Incorporated/

1. Advance payment of the Buyer is not the final purchase of the automobile, but guarantees its reservation for a definite term stipulated separately.
 2. In case of advance payment and untimely payment of the full cost of the automobile, G-Auto Sales, Inc. reserves the right to sell such automobile.
 3. In case of termination of the contract for purchase of the automobile by the Buyer, a client gets credit from the company or return of money less 10% of the automobile cost. Such return is made after sale of the automobile to another client.
 4. Having reserved the automobile on the website of G-Auto Sales, Inc., the Buyer confirms that he is familiarized with the rules of execution of sales/purchase of the automobile and agree with them.
- Bank commissions and commissions of bank of intermediaries are paid by the Buyer.
7. G-Auto Sales, Inc. guarantees legality of the origin of sold automobiles.
 8. The client undertakes to pay for port costs and warehouse costs in Kotka City.

Thank you for your cooperation!

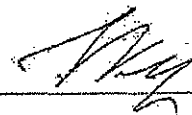
If you have any questions on payment, write to email: account@globalautosales.com

CERTIFICATE OF ACCURACY

This is to certify that this is a true and correct English translation of the attached copy of the original document.

Made in the City of Almaty, Republic of Kazakhstan, on this 29th day of February, 2016.

Translator Nadezhda G. Kuzmicheva



<Round stamp of the translator: KUZMICHEVA N.G.,
Individual Entrepreneur, Certificate Series 10915 No 0139900,
Almaty City, Republic of Kazakhstan * IIN 530406400201 * >





G-Auto Sales, Inc. Договор-Инвойс

www.GlobalAutoUSA.com

www.GAUTOUSA.com

G Auto Sales, Inc.

150-1 Carriage Lane, Delran, NJ 08075

+ 7 (495) 721-8449

+ 7 (812) 335-4264

sales@globalautousa.com

cars@globalautousa.com

Дата: 24/10/2012

Инвойс №: W4722

Банковские реквизиты:

Название банка: Citizens Bank

Адрес банка: 1 Citizens Drive

Riverside, RI 02915

Покупатель:

ФИО: Некипелов Денис Николаевич

Адрес: СПб пр-т Наставников 45-1-183

9112717070

nekipelov@inbox.ru

№ счёта: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

Убедительная просьба ко всем клиентам. После перевода денег отправляйте подтверждение (Ваши имя, сумма, номер посылки или последние 6 цифр VIN) на e-mail адрес бухгалтерии: account@globalautousa.com

Перед тем как забирать свой автомобиль, обязательно закажите открепление - свяжитесь с бухгалтерией и сообщите ФИО человека, который будет забирать авто. Без открепления будет взиматься штраф в размере 15 евро.

Коп-во	Лот №	Год	Марка/модель	VIN	Цена за ед.	Сумма
1	14653	2009	Mercedes-Benz C300	WDDGF81X49R073295	19,900	19,900
Скидка (если предоставлена)						
Издержки, взимаемые нашим банком за перевод денег						20
Произведена оплата						
ИТОГО:						19,920



Майк Головеря,

Президент компании G-Auto Sales, Inc.

1. Предоплата со стороны Покупателя не является окончательной покупкой автомобиля, а гарантирует его бронирование на определенный срок, обговариваемый отдельно.
2. В случае внесенной предоплаты и несвоевременной доплаты полной стоимости автомобиля, компания G-Auto Sales, Inc. оставляет за собой право выставить неоплаченный авто на продажу.
3. В случае расторжения договора на приобретения автомобиля со стороны Покупателя, клиент получает кредит с компанией или возврат денежных средств за вычетом 10% от стоимости автомобиля.
4. Возврат производится после продажи автомобиля другому клиенту.
4. Зарезервировав автомобиль на сайте компании G-Auto Sales, Inc. Покупатель подтверждает, что ознакомился с правилами оформления сделки купли-продажи автомобиля и согласен с ними.
5. Все банковские затраты и комиссии банков-посредников оплачиваются покупателем.
6. Компания G-Auto Sales, Inc. гарантирует легитимность и законность происхождения продаваемых автомобилей.
7. Клиент обязуется оплатить портовые сборы и расходы по складу в г. Котка.
8. Покупатель должен заказать открепительное удостоверение за 5 рабочих дней в бухгалтерии компании.

Благодарим за сотрудничество!

Если у Вас возникли вопросы по оплате, пишите на email: account@globalautousa.com

Appendix 10

I, RZAEVA IRINA

Was informed by Global Auto, which I purchased the car from, that the car disappeared from the warehouse of CarCont Ltd. The car was paid for by me, that can be confirmed by a copy of the payment document, a copy of the documents for the car, and a confirmation e-mail, that the car has been delivered

(year 2011, Make JEEP, Model COMPASS, VIN 1J4NF5FB7BD282296) to Finland.

I am asking to investigate the situation. Clarify the involvement of all the companies associated with the car purchase and transportation, namely: Global Auto (seller), Empire United (shipper), CarCont Ltd. (warehouse in Finland). And the following involved: Sergey Kapustin (whose signature is on the invoice, which I paid for the purchased car), Michael Hitrinov (owner of companies Empire United, CarCont Ltd.), Empire United / Carcont employees: Vyacheslav Gaidash, Daria Osipova, Denis Shavrikov.

I'm ready to cooperate in any possible way, ready to provide all available information.

Please, report any information that appears to the following e-mail: Irina@specproff.ru

date :February 4, 2013

signature:

 Irina Rzaeva

THIS has been sent to the addressee

igor.hitrinov@nordlex.fi

harlangesq@comcast.net

Tbackman@fmc.gov

foibelli@mscgva.ch Ferdinando Cibelli

skendall@mscgva.ch Simon Kendell

я, Нехипелов Денис Николаевич

Был информирован компанией Global Auto, у которой приобрел автомобиль, о том, что автомобиль бесследно исчез со склада временного хранения CarCent Ltd. Автомобиль был оплачен мной, что может быть подтверждено копией платежного документа, копией документа на автомобиль, и подтверждающим письмом на электронной почте, о получении автомобиля (Марка Mercedes-Benz, Модель C300 4Matic, VIN WDDGF81X49R073295) в Финляндию.

В связи с чем требую разобраться в данной ситуации. Выяснить причастность к ней всех компаний связанных с покупкой автомобиля и его транспортировкой, а именно: Global Auto (продавец), Empire United (транспортировка авто), CarCent Ltd, (склад хранения автомобиля в Финляндии). Также непосредственные лица: Сергей Капустин (чья подпись стоит на инвойсе, который оплачен мной для покупки авто), Михаил Хитунков (владелец компании Empire United, CarCent Ltd.), работники компании Empire United/CarCent: Вячеслав Гайдаш, Дарья Осипова, Денис Швариков.

Я готов к полному сотрудничеству, готов предоставлять всю имеющуюся информацию.

Просьба, сообщать о любой появляющейся информации мне на e-mail: Nekipelov@inbox.ru и Zvonareva79@mail.ru.

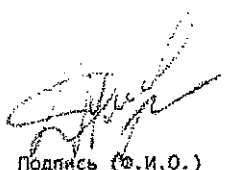
I, Nekipelov Denis

Was informed by Global Auto, which I purchased the car from, that the car disappeared from the warehouse of CarCent Ltd. The car was paid for by me; that can be confirmed by a copy of the payment document, a copy of the documents for the car, and a confirmation e-mail, that the car has been delivered to Finland (Make Mercedes-Benz, Model C300 4Matic, VIN WDDGF81X49R073295) in Finland.

I am asking to investigate the situation. Clarify the involvement of all the companies associated with the car purchase and transportation, namely: Global Auto (seller), Empire United (shipper), CarCent Ltd (warehouse in Finland). And the following involved: Sergey Kapustin (whose signature is on the invoice, which I paid for the purchased car), Michael Hitarov (owner of companies Empire United, CarCent Ltd.), Empire United / CarCent employees: Vyacheslav Gaidash, Daria Osipova, Denis Shvareikov.

I'm ready to cooperate in any possible way, ready to provide all available information.

Please, report any information that appears to the following e-mail: Nekipelov@inbox.ru и Zvonareva79@mail.ru


Подпись (Ф.И.О.)

Нехипелов Денис Николаевич

Mr. Nekipelov Denis

Я, Овчинников Игорь Юрьевич, был информирован компанией Global Auto, у которой приобрел автомобиль, о том, что автомобиль бесследно исчез со склада временного хранения CarCont Ltd. Автомобиль был оплачен мной, что может быть подтверждено копией платежного документа, копией документов на автомобиль, и подтверждающим письмом на электронной почте, о поступлении автомобиля (GMC Acadia 2010 SLT-2, VIN: 1GKLVNED6AJ138200) в Финляндию.

В связи с чем, требую разобраться в данной ситуации. Выяснить причастность к ней всех компаний связанных с покупкой автомобиля и его транспортировкой, а именно: Global Auto (продавец), Empire United (транспортировка авто), CarCont Ltd. (склад хранения автомобиля в Финляндии). Так же непосредственные лица: Сергей Капустин, Майкл Головеря (чья подпись стоит на инвойсе, который оплачен мной для покупки авто), Михаил Хитринов (владелец компаний Empire United, CarCont Ltd.), работники компаний Empire United/Carcont: Вячеслав Гайдаш, Дарья Осипова, Денис Шавриков.

Я готов к полному сотрудничеству, готов предоставить всю имеющуюся информацию.

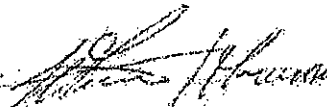
Просьба, сообщать о любой появившейся информации мне на e-mail: oiur@rambler.ru

I, Igor Ovchinnikov, was informed by Global Auto, which I purchased the car from, that the car disappeared from the warehouse of CarCont Ltd. The car was paid for by me, that can be confirmed by a copy of the payment document, a copy of the documents for the car, and a confirmation e-mail, that the car has been delivered to Finland (GMC Acadia 2010 SLT-2, VIN: 1GKLVNED6AJ138200) in Finland.

I am asking to investigate the situation. Clarify the involvement of all the companies associated with the car purchase and transportation, namely: Global Auto (seller), Empire United (shipper), CarCont Ltd. (warehouse in Finland). And the following involved: Sergey Kapustin, Michael Goloverya (whose signature is on the invoice, which I paid for the purchased car), Michael Hitrinov (owner of companies Empire United, CarCont Ltd.), Empire United / Carcont employees: Vyacheslav Gaidash, Daria Osipova, Denis Shavrikov.

I'm ready to cooperate in any possible way, ready to provide all available information.

Please, report any information that appears to the following e-mail: oiur@rambler.ru

05.03.2015 г.  /И.Овчинников/

Appendix 11

USER AGREEMENT

AND

TERMS AND CONDITIONS OF SERVICE

This User Agreement ("Agreement") is a contract between you ("You" or the "User") and GLOBAL AUTO USA (herein after referred to as "Company") and applies to your use of the Company services and any related Products available through GLOBALAUTOUSA.COM (collectively the "Service"). If you do not agree to be bound by the terms and conditions of this Agreement, you cannot use or access our Service. You agree that this Agreement constitutes "a writing signed by You" under any applicable law or regulation.

You must read, agree with, and accept all of the terms and conditions contained in this Agreement, the Privacy Policy and the Anti-Money Laundering Compliance Policy, which include those terms and conditions expressly set out below and those incorporated by reference. By accepting this Agreement, you also agree that your use of Company websites and Services as well as those of our partners and associates will be governed by the Terms and Conditions posted on those websites. Company may amend this Agreement at any time by posting the amended terms on our site.

In this Agreement, "User", "you" or "your" means any person or entity using the Service. Unless otherwise stated, "Company," "we" or "our" will refer collectively to Global Auto, Inc., as well as SK Import, Inc., a Pennsylvania corporation and G Auto Sales, Inc., a New Jersey corporation.

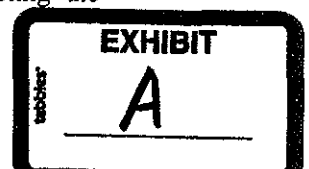
For purposes of this Agreement "Product" is defined as a motorized vehicle used on land or water and located in or outside the United States. The definition of the term Product also includes any related accessories and parts thereto.

1. YOUR USE OF GLOBALAUTOUSA.COM

Our Services are only available to individuals or businesses that can form legally binding contracts under applicable law. Without limiting the foregoing, our Service is not available to minors (under 18), persons who are suspended from our Service, or to persons who present an unacceptable level of risk. Your use of our Services is at all times subject to the terms and conditions contained in this Agreement.

2. THE LEGAL RELATIONSHIP BETWEEN YOU AND COMPANY.

Company acts as a Product reseller and Product shipper to help fulfill your purchase order needs. We act only upon your direction and your requests to use our Services by providing purchasing and reselling of merchandise, as well as delivery and dispute resolution services. You agree that you will not receive interest or other earnings on the Product or funds that you deposit with Company. By placing purchase orders and sending payments through the Service or adding funds to your balance, you appoint Company to transfer the Product to the recipient that you designate, subject to the terms and restrictions of this Agreement. If the balance in your account is not sufficient to fund your order fully, Company will obtain the remaining funds per your instructions before completing the



transaction. When you send a payment for a Product, until that payment is accepted (which may occur instantly), you remain the owner of those funds and Company holds those funds and title to the Product as your agent, but you will not be able to withdraw those funds or send the funds to any other recipient unless the initial transaction is cancelled.

3. COMPANY IS A WHOLESALE PRODUCT RESELLER FOR EXPORT AND SHIPPER.

Company acts as a wholesale Product reseller for export and shipper by creating, hosting, maintaining and providing our Service to you via the Internet. In the process of a transaction, Company becomes the title holder of the Product as described on the online auction. All Product dispute resolution issues must be directed to Company exclusively, and all Product returns and exchanges must be processed through Company and its facilities. Company reserves the right not to release any Product or Product title for any reason.

All Products are shipped by Company for export outside the United States, Free On Board (F.O.B.) Newark, New Jersey, USA or alternate USA port. Port Receipts and Bills of Lading are completed and issued by the transporting entity and/or shipping company. User is solely responsible for securing insurance to cover the Product while in transit to port of destination. User is responsible for paying all delivery, shipping, transit and storage charges applicable to the purchased product and which User understands are separate from the price paid by User for the Product itself. User agrees that it is the sole responsibility of User to comply with customs import procedures applicable to foreign title Products. Customs inspection, import fees and proof of emissions compliance may be required and are sole the responsibility of the User.

COMPANY IS NOT AND WILL NOT ACT AS AN IMPORTER OF PRODUCT. USER IS SOLELY AND EXCLUSIVELY RESPONSIBLE FOR ALL CUSTOMS AND IMPORT DUTIES, CERTIFICATIONS, CHARGES AND FEES RELATED TO THE CLEARANCE OF PRODUCT AT PORT OF DESTINATION AND FURTHER IMPORT INTO THE COUNTRY OF USER'S DESIGNATION. COMPANY'S RESPONSIBILITY RELATED TO CUSTOMS AND TRANSPORT IS F.O.B. NEWARK, NEW JERSEY, USA OR ALTERNATE USA PORT SELECTED BY COMPANY.

4. USER VERIFICATION.

We obtain identify of our users when they register on our site and wire payments through their bank. Company may require additional Verification of Users information if you are asking for return of funds, copies of account records and at time of pickup of the Product. You authorize Company, directly or through third parties, to make any inquiries we consider necessary to validate your information. This may include requesting that you provide government issued identification, detailed personal information and verifying the information you provide against third party databases. However, because User verification on the Internet is difficult, Company cannot and does not guarantee any User's identity.

5. QUALIFICATIONS FOR USE.

Our services are available only to, and may only be used by individuals who can form legally binding contracts under applicable law. Without limiting the foregoing, our services

are not available to children (persons under the age of 18). If you do not qualify, please do not use our Site. If you are making a purchase as a business entity, you represent that you have the authority to bind the entity to this Agreement.

Company does not associate or conduct business with individuals found on the Specially Designated Nationals and Blocked Persons list (SDN list) of known or suspected terrorists or terrorist organizations. The scope of the regulations (and what Company may and may not do) varies with the specific economic sanctions program. Refer to the OFAC site (www.ustreas.gov/ofac) for further updated information.

6. YOUR INFORMATION AND RESTRICTED ACTIVITIES.

"Your Information" is defined as any information you provide to us or other users in the registration, payment process, or other features of our Service. You are solely responsible for Your Information. To enable Company to use the information you supply us with, so that we are not violating any rights you might have in that information, you agree to grant us a non-exclusive, worldwide, royalty-free, perpetual, irrevocable, right to exercise the copyright, publicity, and database rights you have in Your Information. Company will use and protect Your Information in accordance with our Privacy Policy.

Your Information and your activities (including your payments and receipt of Products) through our Service shall not: (a) be false, inaccurate or misleading; (b) be fraudulent or involve the sale of counterfeit or stolen items; (c) violate Company's Policies; (d) infringe on any third party's copyright, patent, trademark, trade secret or other property rights or rights of publicity or privacy; (e) violate any law, statute, ordinance, contract or regulation; (f) be obscene or contain child pornography; or, (g) contain any viruses or other computer programming routines that may damage, detrimentally interfere with, intercept or expropriate any system, data or other personal information. If you use, or attempt to use the Service for purposes other than sending and receiving payments, selling and receiving Products, your transaction will be terminated and you will be subject to damages and other penalties.

7. PRIVACY AND SECURITY.

We do not sell or rent your personal information to third parties for marketing purposes without your consent and we only use Your Information as described in the Privacy Policy. We view protection of Users' privacy as a very important principle. We store and process Your Information on computers located in the United States that are protected by physical as well as technological security devices. Our current Privacy Policy is available at GLOBALAUTOUSA.COM. If you object to your information being transferred or used in this way, please do not use our Services.

8. SERVICES AND FEES.

All fees for our Services are set forth in the Service Schedule at GLOBALAUTOUSA.COM. All fees will be assessed in U.S. Dollars. Services provided by the Company directly and with the assistance of third parties include, but are not limited to:

- Sale of Product
- Representation User's interest at USA Auto Auctions

- Transportation of motorized vehicles from USA Auto Auctions to port of User designation
- Transportation of motorized vehicles in Company inventory to port of User designation
- Shipping of motorized vehicles from America to cargo ports of other countries
- Detailing of motorized vehicles
- Diagnostic inspection of motorized vehicles
- Repair of motorized vehicles
- Insurance of motorized vehicles in transit
- Transit and shipping document preparation
- Warehouse storage of purchased motorized vehicles

Additional information about Company's services and fees is available on the Company website. Your account and all transactions are made and displayed in U.S. dollars unless otherwise specified and may be subject to exchange rates. In addition, you may be responsible for costs of Company services relating to delivery of Products, expenses relating to conversion of currency, and any other expenses related to a particular purchase order, transaction or invoice.

In the event a Product is not fully paid for within the time specified by the Company, User agrees that Company may, in its sole and absolute discretion, cancel the transaction and relist the Product for sale or take any other commercially reasonable measures. User shall be responsible to pay a cancellation and/or relist fee, plus any collection costs, including court costs and reasonable attorney's fees. Cancellation and relist fees may vary by location of Product. User agrees to verify relist fees prior to bidding on and purchasing Products. Applicable relist fees are as follows:

1. After a Product purchase order has been received from User and an invoice issued by Company and the transaction funded in whole or in part by User, but the Product has been acquired by Company or is not located in Company's inventory, should the User desire to cancel the transaction for any reason, User will be responsible for paying a cancellation fee equal to 15% of final invoice amount.
2. Company reserves the right to substitute Product of equal value and make and model, if the initial Product ordered by User becomes unavailable for purchase from a third party, through no fault of the Company.
3. After a Product purchase order has been received from User and an invoice issued by Company, the transaction funded in whole or in part by User, and the Product has been acquired by Company or is located in Company's inventory, should the User desire to cancel the transaction for any reason, User will be responsible for paying a cancellation fee equal to 15% of final invoice amount and a flat fee of \$1,500 for the resale of Product by Company. The Company will resell the Product based on wholesale fair market value and refund any proceeds therefrom less applicable cancellation and resale fees with 30 days after the date of resale and actual receipt of funds for the Product from the resale.
4. After a Product purchase order has been received from User and an invoice issued by Company, the transaction funded in whole or in part by User, and the Product has been shipped by Company for export to User, should the User desire to cancel

the transaction for any reason, User will be responsible for paying a cancellation fee equal to 15% of final invoice amount and a flat fee of \$1,500 for the resale of Product by Company. The Company will make arrangements to resell the Product based on wholesale fair market value and refund any proceeds therefrom less applicable cancellation and resale fees, expenses related to documentation of the resale, as well as applicable shipping and storage fees, within 30 days after the date of resale and actual receipt of funds for the Product from the resale.

5. Any Product exported by Company to User that arrives at port of destination must be fully paid for and the transaction closed by User within 7 days after notification by Company to User that the Product has arrived. Failure to fully fund and close the transaction within 7 days of receiving the arrival notification from Company shall constitute default by the User of the parties Agreement and these Terms and Conditions of Service. Failure to cure any subsequent default notice issued by the Company within 7 days of its receipt by User, will automatically trigger the provisions of Paragraph 3 of this section.

9. PRODUCT PURCHASE ORDERS.

In order to place Product purchase orders through our Service we require you to provide Company with identification as further described and covered in our Privacy Policy. We may require additional information from you depending on your location and other factors. When you make a payment through Company that is funded with an electronic wire transfer from your bank account, Company, for domestic transactions, will make electronic transfers via the Automated Clearing House (ACH) system from your bank account in the amount which you specify. However, for international transactions direct bank to bank wire transfers are used by Company are not subject to the Automated Clearing House system. You agree that your transfer requests constitute your authorization for such transfers. Company will never make transfers from your bank account without your authorization.

10. COMPANY'S RIGHTS.

Without limiting other remedies, we may update inaccurate or incorrect information you provide to us, contact you electronically, by telephone or via U.S. and International mails, immediately warn our community of your actions, place a hold on funds in your account, limit funding sources and payments, limit access to an account and any or all of the account's functions, and refuse to provide our Services to you if: (a) you breach this Agreement or the documents it incorporates by reference; (b) we are unable to verify or authenticate any information you provide to us; (c) we believe that your activities pose a significant fraud risk to us; or (d) your use of our Services is deemed by Company to be in violation of Federal, State or International laws. Company reserves the right to hold funds beyond the normal distribution periods for transactions it deems suspicious or for accounts conducting high transaction volumes to ensure integrity of the funds. Additionally, to secure your performance of this Agreement, you grant to Company a lien on and security interest in your funds and account. In addition, you acknowledge that Company may setoff against any funds you own for any obligation you owe Company at any time and for any reason allowed by law. These obligations include both secured and unsecured debts and debts you owe individually or together with someone else. Company may consider this Agreement as your consent to Company's asserting its security interest or exercising its right of setoff should any

law require your consent. The rights described in this section are in addition to and apart from any other rights.

11. COMPANY'S INTELLECTUAL PROPERTY.

GLOBALAUTOUSA.COM and all related logos, Products and services described in this website are either trademarks or registered trademarks of Company, or its licensors, and may not be copied, imitated or used, in whole or in part, without the prior written permission of Company. In addition, all page headers, custom graphics, button icons, and scripts are service marks, trademarks, and/or trade dress of Company and may not be copied, imitated, or used, in whole or in part, without the prior written permission of Company.

12. WAIVER AND RELEASE.

In the event that you have a dispute with one or more Users, you release Company (and our officers, directors, agents, contractors and employees) from any and all claims, demands and damages (direct and consequential) of every kind and nature arising out of or in any way connected with such disputes.

13. DISCLAIMERS AND EXCLUSION OF WARRANTIES.

A. COMPANY shall make reasonable efforts to ensure that requests for electronic debits and credits involving bank accounts, money orders, and check issuances are processed in a timely manner but we make no representations or warranties regarding the amount of time needed to complete processing because our Service is largely dependent upon many factors outside of our control.

B. All Products sold through Company are sold for **EXPORT ONLY** and **"AS-IS WHERE-IS"**, **WITHOUT ANY WARRANTY, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO ANY WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE OR MERCHANTABILITY.** The term "Product(s)" shall mean all items posted for sale on COMPANY'S Website, including but not limited to cars, trucks, motorcycles, boats, jet skis, industrial equipment, salvage, trailers, RV's, etc. Company and its Product sellers expressly disclaim the accuracy or completeness of any and all information provided to User regarding Products, whether provided in written, verbal, or digital image form ("Vehicle Information"). Vehicle Information provided by Company and its Product sellers is for convenience only. User shall not rely on Vehicle Information in deciding whether or how much to pay for a Product offered for sale through Company. Vehicle Information includes but is not limited to: year, make, model, condition, ACV, damage amount, damage type, drivability, accessories, mileage, odometer disclosures, Product identification number (e.g. "VIN", "HIN", and serial number) title and title history. Company and its Product sellers expressly disclaim any and all representations, warranties, and guarantees regarding Products sold through Company. Company does not guarantee that keys are available for any Product sold through Company, regardless of whether keys are present in online Product images, or were present in the Product prior to the time of purchase. Certain jurisdictions permit Products to be sold with missing VIN plates; as a result, Company does not guarantee that Products are equipped with any or all VIN plates. Parts may be missing. Company does not guarantee that Products meet or can be modified to meet local emission and/or safety requirements. User agrees that Company Products are sold AS IS and are not represented as being in a road worthy condition, mechanically sound, or

maintained at any guaranteed level of quality. The Products may not be fit for use as a means of transportation and may require substantial repairs and expense.

C. It is the sole responsibility of the User to ascertain, confirm, research, inspect, and/or investigate Products and any and all Vehicle Information prior to paying for Products. Users are free to inspect the Products they intend to purchase or have purchased and can make arrangement for conducting same with Company. In addition, independent third party services are available to assist User in the inspection and repair of Products, as may be necessary.

D. Company does not guarantee that any Product sold can be legally registered in any state or country, and User accepts all risks associated with variations in Product title and registration laws between states, provinces, and countries that may negatively impact the marketability of Products purchased from Company.

14. LIMITATION OF LIABILITY.

IN NO EVENT SHALL COMPANY BE LIABLE FOR LOST PROFITS OR ANY SPECIAL, INCIDENTAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN CONNECTION WITH OUR WEB SITE, OUR SERVICE, OR THIS AGREEMENT (HOWEVER ARISING, INCLUDING NEGLIGENCE). OUR LIABILITY, AND THE LIABILITY OF OUR PARENT, SUBSIDIARIES, AFFILIATES, OFFICERS, EMPLOYEES AND SUPPLIERS, TO YOU OR ANY THIRD PARTIES IN ANY CIRCUMSTANCE IS LIMITED TO THE ACTUAL AMOUNT OF DIRECT DAMAGES.

15. INDEMNIFICATION, COSTS AND ATTORNEYS FEES.

User agrees to indemnify and hold Company, its parent, subsidiaries, affiliates, officers, directors and employees harmless from any claim or demand (including costs and attorneys' fees) made or incurred by any third party due to or arising out of User breach of this Agreement or the documents it incorporates by reference, or User violation of any law or the rights of a third party relating to User use of the Service.

If User uses the Company services in a manner that violates our policies, User account will be subject to limitation or immediate termination.

User agrees that, if Company commences arbitration or litigation against User in connection with this Agreement and Company is the prevailing party, it will also be entitled to recover reasonable attorneys' fees and any other costs incurred in such proceeding, in addition to any other relief to which Company may be entitled.

16. DISPUTE RESOLUTION, JURISDICTION AND GOVERNING LAW

A. User and Company each agree that any and all disputes or claims that have arisen or may arise between User and Company relating in any way to or arising out of this or previous versions of the User Agreement, User's use of or access to Company's Services, or any Products or services sold, offered, or purchased through Company's Services shall be resolved exclusively through final and binding arbitration, rather than in court.

The Federal Arbitration Act governs the interpretation and enforcement of this Agreement to Arbitrate. The application of the United Nations Convention of Contracts for the International Sale of Goods is expressly excluded. User consents to the forum selection, choice of law, jurisdiction, and venue provisions described below.

B. Prohibition of Class and Representative Actions and Non-Individualized Relief.

USER AND COMPANY AGREE THAT EACH OF US MAY BRING CLAIMS AGAINST THE OTHER ONLY ON AN INDIVIDUAL BASIS AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE ACTION OR PROCEEDING. UNLESS BOTH USER AND COMPANY AGREE OTHERWISE, THE ARBITRATOR MAY NOT CONSOLIDATE OR JOIN MORE THAN ONE PERSON'S OR PARTY'S CLAIMS, AND MAY NOT OTHERWISE PRESIDE OVER ANY FORM OF A CONSOLIDATED, REPRESENTATIVE, OR CLASS PROCEEDING. ALSO, THE ARBITRATOR MAY AWARD RELIEF (INCLUDING MONETARY, INJUNCTIVE, AND DECLARATORY RELIEF) ONLY IN FAVOR OF THE INDIVIDUAL PARTY SEEKING RELIEF AND ONLY TO THE EXTENT NECESSARY TO PROVIDE RELIEF NECESSITATED BY THAT PARTY'S INDIVIDUAL CLAIM(S). ANY RELIEF AWARDED CANNOT AFFECT OTHER COMPANY USERS.

C. Arbitration Procedures, Jurisdiction and Choice of Law

Any arbitrator shall apply the terms of the User Agreement as a court would. The arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any dispute arising out of or relating to the interpretation, applicability, enforceability or formation of this Agreement to Arbitrate, any part of it, or of the User Agreement including, but not limited to, any claim that all or any part of the Agreement to Arbitrate or User Agreement is void or voidable.

The arbitration will be conducted by the American Arbitration Association ("AAA") under its rules and procedures, including the AAA's Supplementary Procedures for Consumer-Related Disputes (as applicable), as modified by this Agreement to Arbitrate. The AAA's rules are available at www.adr.org. A form for initiating arbitration proceedings is available on the AAA's site at <http://www.adr.org>. In addition to filing this form with the AAA in accordance with its rules and procedures, User must send a copy of the completed form to us at the Company corporate headquarters in the State of Pennsylvania.

The arbitration shall be held in Philadelphia, Pennsylvania, or at another mutually agreed location. If the value of the relief sought is \$5,000 or less, User or Company may mutually agree to have the arbitration conducted by telephone or based solely on written submissions, which mutual agreement shall be binding on User and Company subject to the arbitrator's discretion to require an in-person hearing, if the circumstances warrant.

The arbitrator will decide the substance of all claims in accordance with the laws of the State of Pennsylvania, including recognized principles of equity, and will honor all claims of privilege recognized by law. The arbitrator shall not be bound by rulings in prior arbitrations involving different Company users, but is bound by rulings in prior arbitrations involving the same Company user to the extent required by applicable law. The arbitrator's award shall be final and binding and judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof.

Disputes between User and Company regarding our Services may be reported to Customer Support online, through GLOBALAUTOUSA.COM at any time, or by calling Company from 9 AM to 5 PM Eastern Time, or by contacting Company in writing submitted to Company corporate headquarters in the State of Pennsylvania.

17. NOTICE.

To the fullest extent permitted by applicable law, this Agreement and any other agreements, notices or other communications regarding User account and/or User's use of the Service ("Communications"), may be provided to User electronically and User agrees to receive all Communications from Company in electronic form. Electronic Communications may be posted on the pages within the Company website and/or delivered to User's e-mail address. User may print a copy of any Communications and retain it for User's records. All Communications in either electronic or paper format will be considered to be in "writing."

Except as explicitly stated otherwise, any notices shall be given by postal mail to Company, Attn: Legal Department, at the Company corporate headquarters in the State of Pennsylvania located at:

Alternatively, Company may give User notice by email to the email address User provided during the registration process or by regular mail to the address provided to Company during the Purchase Order process.

18. MISCELLANEOUS.

This Agreement contains the entire agreement between User and Company regarding use of services, and all matters directly and indirectly related thereto. This Agreement supersedes all prior written and oral understandings, writings, and representations and may only be amended upon notice by Company. If any provision of this Agreement is held to be unenforceable for any reason, such provision shall be reformed only to the extent necessary to make it enforceable. Failure of Company to enforce any provision shall not be deemed to be a waiver of any rights to enforce any provision of this or any other agreement. User may not transfer any rights or obligations User may have under this Agreement without the prior written consent of Company. Company reserves the right to transfer this Agreement or any right or obligation under this Agreement without User consent.

19. ACKNOWLEDGEMENT.

USER HEREBY ACKNOWLEDGES AND AFFIRMS THAT USER HAS READ THIS ENTIRE AGREEMENT AND THAT USER UNDERSTANDS AND AGREES AND ACCEPTS ALL ITS TERMS AND CONDITIONS.

Terms of Use **Cheap Used Cars, New Cars for Export**

USER AGREEMENT AND TERMS AND CONDITIONS OF SERVICE

This User Agreement ("Agreement") is a contract between you ("You" or the "User") and Effect Auto Sales Inc. (herein after referred to as "Company") and applies to your use of the Company services and any related Products available through EFFECTAUTO.COM (collectively the "Service"). If you do not agree to be bound by the terms and conditions of this Agreement, you cannot use or access Service. You agree that this Agreement constitutes a writing signed by You under any applicable law or regulation.

You must read, agree with, and accept all the terms and conditions contained in this Agreement, the Privacy Policy and the Anti-Money Laundering Compliance Policy, which include those terms and conditions expressly set out below and those incorporated by reference. By accepting this Agreement, you also agree that your use of Company websites and Services as well as those of our partners and associates will be governed by the Terms and Conditions posted on those websites. Company may amend this Agreement at any time by posting the amended terms on our site.

In this Agreement, "User", "you" or "your" means any person or entity using the Service. Unless otherwise stated, "Company," "we" or "our" will refer to Effect Auto Sales, Inc. a New Jersey corporation.

For purposes of this Agreement "Product" is defined as a motorized vehicle used on land or water and located in or outside the United States. The definition of the term Product also includes any related accessories and parts thereto.

1. YOUR USE OF EFFECTAUTO.COM

Our Services are only available to individuals or businesses that can form legally binding contracts under applicable law. Without limiting the foregoing, our Service is not available to minors (under 18), persons who are suspended from our Service, or to persons who present an unacceptable level of risk. Your use of our Services is at all times subject to the terms and conditions contained in this Agreement.

2. THE LEGAL RELATIONSHIP BETWEEN YOU AND COMPANY.

Company acts as a Product reseller and Product shipper to help fulfill your purchase order needs. We act only upon your direction and your requests to use our Services by providing purchasing and reselling of merchandise, as well as delivery and dispute resolution services. You agree that you will not receive interest or other earnings on the Product or funds that you deposit with Company. By placing purchase orders and sending payments through the Service or adding funds to your balance, you appoint Company to transfer the Product to the recipient that you designate, subject to the terms and restrictions of this Agreement. If the balance in your account is not sufficient to fund your order fully, Company will obtain the remaining funds per your instructions before completing the transaction. When you send a payment for a Product, until that payment is accepted (which may occur instantly), you remain the owner of those funds and Company holds those funds and title to the Product as your agent, but you will not be able to withdraw those funds or send the funds to any other recipient unless the initial transaction is cancelled.

3. COMPANY IS A WHOLESALE PRODUCT RESELLER FOR EXPORT AND SHIPPER.

Company acts as a wholesale Product reseller for export and shipper by creating, hosting, maintaining and providing our Service to you via the Internet. In the process of a transaction, Company becomes the title holder of the Product as described on the online auction.

All Product dispute resolution issues must be directed to Company exclusively, and all Product returns and exchanges must be processed through Company and its facilities. Company reserves the right not to release any Product or Product title for any reason. All Products are shipped by Company for export outside the United States, Free On Board (F.O.B.) Newark, New Jersey, USA or alternate USA port. Port Receipts and Bills of Lading are completed and issued by the transporting entity and/or shipping company. User is solely responsible for securing insurance to cover the Product while in transit to port of destination. User is responsible for paying all delivery, shipping, transit and storage charges applicable to the purchased product and which User understands are separate from the price paid by User for the Product itself. User agrees that it is the sole responsibility of User to comply with customs import procedures applicable to foreign title Products. Customs inspection, import fees and proof of emissions compliance may be required and are sole the responsibility of the User.

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We obtain identify of our users when they register on our site and wire payments through their bank. Company may require additional Verification of Users information if you are asking for return of funds, copies of account records and at time of pickup of the Product. You authorize Company, directly or through third parties, to make any inquiries we consider necessary to validate your information. This may include requesting that you provide government issued identification, detailed personal information and verifying the

information you provide against third party databases. However, because User verification on the Internet is difficult, Company cannot and does not guarantee any User's identity.

5. QUALIFICATIONS FOR USE.

Our services are available only to, and may only be used by individuals who can form legally binding contracts under applicable law. Without limiting the foregoing, our services are not available to children (persons under the age of 18). If you do not qualify, please do not use our Site. If you are making a purchase as a business entity, you represent that you have the authority to bind the entity to this Agreement.

Company does not associate or conduct business with individuals found on the Specially Designated Nationals and Blocked Persons list (SDN list) of known or suspected terrorists or terrorist organizations. The scope of the regulations (and what Company may and may not do) varies with the specific economic sanctions program. Refer to the OFAC site (www.ustrcas.gov/ofac) for further updated information.

6. YOUR INFORMATION AND RESTRICTED ACTIVITIES.

"Your Information" is defined as any information you provide to us or other users in the registration, payment process, or other features of our Service. You are solely responsible for Your Information. To enable Company to use the information you supply us with, so that we are not violating any rights you might have in that information, you agree to grant us a non-exclusive, worldwide, royalty-free, perpetual, irrevocable, right to exercise the copyright, publicity, and database rights you have in Your Information. Company will use and protect Your Information in accordance with our Privacy Policy.

Your Information and your activities (including your payments and receipt of Products) through our Service shall not: (a) be false, inaccurate or misleading; (b) be fraudulent or involve the sale of counterfeit or stolen items; (c) violate Company's Policies; (d) infringe on any third party's copyright, patent, trademark, trade secret or other property rights or rights of publicity or privacy; (e) violate any law, statute, ordinance, contract or regulation; (f) be obscene or contain child pornography; or, (g) contain any viruses or other computer programming routines that may damage, detrimentally interfere with, intercept or expropriate any system, data or other personal information. If you use, or attempt to use the Service for purposes other than sending and receiving payments, selling and receiving Products, your transaction will be terminated and you will be subject to damages and other penalties.

7. PRIVACY AND SECURITY.

We do not sell or rent your personal information to third parties for marketing purposes without your consent and we only use Your Information as described in the Privacy Policy. We view protection of Users' privacy as a very important principle. We store and process Your Information on computers located in the United States that are protected by physical as well as technological security devices. Our current Privacy Policy is available at EFFECTAUTO.COM. If you object to your information being transferred or used in this way, please do not use our Services.

8. SERVICES AND FEES.

All fees for our Services are set forth in the Service Schedule at EFFECTAUTO.COM. All fees will be assessed in U.S. Dollars. Services provided by the Company directly and with the assistance of third parties include, but are not limited to:

Sale of Product

Representation User's interest at USA Auto Auctions

Transportation of motorized vehicles from USA Auto Auctions to port of User designation

Transportation of motorized vehicles in Company inventory to port of User designation

Shipping of motorized vehicles from America to cargo ports of other countries

Detailing of motorized vehicles

Diagnostic inspection of motorized vehicles

Repair of motorized vehicles

Insurance of motorized vehicles in transit

Transit and shipping document preparation

Warehouse storage of purchased motorized vehicles

Additional information about Company's services and fees is available on the Company website. Your account and all transactions are made and displayed in U.S. dollars unless otherwise specified and may be subject to exchange rates. In addition, you may be responsible for costs of Company services relating to delivery of Products, expenses relating to conversion of currency, and any other expenses related to a particular purchase order, transaction or invoice.

In the event a Product is not fully paid for within the time specified by the Company, User agrees that Company may, in its sole and absolute discretion, cancel the transaction and relist the Product for sale or take any other commercially reasonable measures. User shall be responsible to pay a cancellation and/or relist fee, plus any collection costs, including court costs and reasonable attorney's fees. Cancellation and relist fees may vary by location of Product. User agrees to verify relist fees prior to bidding on and purchasing Products. Applicable relist fees are as follows:

- After a Product purchase order has been received from User and an invoice issued by Company and the transaction funded in whole or in part by User, but the Product has been acquired by Company or is not located in Companies inventory, should the User desire to cancel the transaction for any reason, User will be responsible for paying a cancellation fee equal to 15% of final invoice amount.
- Company reserves the right to substitute Product of equal value and make and model, if the initial Product ordered by User becomes unavailable for purchase from a third party, through no fault of the Company.
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- After a Product purchase order has been received from User and an invoice issued by Company, the transaction funded in whole or in part by User, and the Product has been shipped by Company for export to User, should the User desire to cancel the transaction for any reason, User will be responsible for paying a cancellation fee equal to 15% of final invoice amount and a flat fee of \$1,500 for the resale of Product by Company. The Company will make arrangements to resell the Product based on wholesale fair market value and refund any proceeds therefrom less applicable cancellation and resale fees, expenses related to documentation of the resale, as well as applicable shipping and storage fees, within 30 days after the date of resale and actual receipt of funds for the Product from the resale.
- Any Product exported by Company to User that arrives at port of destination must be fully paid for and the transaction closed by User within 7 days after notification by Company to User that the Product has arrived. Failure to fully fund and close the transaction within 7 days of receiving the arrival notification from Company shall constitute default by the User of the parties Agreement and these Terms and Conditions of Service. Failure to cure any subsequent default notice issued by the Company within 7 days of its receipt by User, will automatically trigger the provisions of Paragraph 3 of this section.

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In order to place Product purchase orders through our Service we require you to provide Company with identification as further described and covered in our Privacy Policy. We may require additional information from you depending on your location and other factors. When you make a payment through Company that is funded with an electronic wire transfer from your bank account, Company, for domestic transactions, will make electronic transfers via the Automated Clearing House (ACH) system from your bank account in the amount which you specify. However, for international transactions direct bank to bank wire transfers are used by Company are not subject to the Automated Clearing House system. You agree that your transfer requests constitute your authorization for such transfers. Company will never make transfers from your bank account without your authorization.

10. COMPANY'S RIGHTS.

Without limiting other remedies, we may update inaccurate or incorrect information you provide to us, contact you electronically, by telephone or via U.S. and International mails, immediately warn our community of your actions, place a hold on funds in your account, limit funding sources and payments, limit access to an account and any or all of the account's functions, and refuse to provide our Services to you if: (a) you breach this Agreement or the documents it incorporates by reference; (b) we are unable to verify or authenticate any information you provide to us; (c) we believe that your activities pose a significant fraud risk to us; or (d) your use of our Services is deemed by Company to be in violation of Federal, State or International laws. Company reserves the right to hold funds beyond the normal distribution periods for transactions it deems suspicious or for accounts conducting high transaction volumes to ensure integrity of the funds. Additionally, to secure your performance of this Agreement, you grant to Company a lien on and security interest in your funds and account. In addition, you acknowledge that Company may setoff against any funds you own for any obligation you owe Company at any time and for any reason allowed by law. These obligations include both secured and unsecured debts and debts you owe individually or together with someone else. Company may consider this Agreement as your consent to Company's asserting its security interest or exercising its right of setoff should any law require your consent. The rights described in this section are in addition to and apart from any other rights.

11. COMPANY'S INTELLECTUAL PROPERTY.

EFFECTAUTO.COM and all related logos, Products and services described in this website are either trademarks or registered trademarks of Company, or its licensors, and may not be copied, imitated or used, in whole or in part, without the prior written permission of Company. In addition, all page headers, custom graphics, button icons, and scripts are service marks, trademarks, and/or trade dress of Company and may not be copied, imitated, or used, in whole or in part, without the prior written permission of Company.

12. WAIVER AND RELEASE.

In the event that you have a dispute with one or more Users, you release Company (and our officers, directors, agents, contractors and employees) from any and all claims, demands and damages (direct and consequential) of every kind and nature arising out of or in any way connected with such disputes.

13. DISCLAIMERS AND EXCLUSION OF WARRANTIES.

A. COMPANY shall make reasonable efforts to ensure that requests for electronic debits and credits involving bank accounts, money orders, and check issuances are processed in a timely manner but we make no representations or warranties regarding the amount of time needed to complete processing because our Service is largely dependent upon many factors outside of our control.

B. All Products sold through Company are sold for **EXPORT ONLY** and **"AS-IS WHERE-IS"**, **WITHOUT ANY WARRANTY, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO ANY WARRANTY OF FITNESS FOR A PARTICULAR PURPOSE OR MERCHANTABILITY**. The term "Product(s)" shall mean all items posted for sale on COMPANY'S Website, including but not limited to cars, trucks, motorcycles, boats, jet skis, industrial equipment, salvage, trailers, RV's, etc. Company and its Product sellers expressly disclaim the accuracy or completeness of any and all information provided to User regarding Products, whether provided in written, verbal, or digital image form ("Vehicle Information"). Vehicle Information provided by Company and its Product sellers is for convenience only. User shall not rely on Vehicle Information in deciding whether or how much to pay for a Product offered for sale through Company. Vehicle Information includes but is not limited to: year, make, model, condition, ACV, damage amount, damage type, drivability, accessories, mileage, odometer disclosures, Product identification number (e.g. "VIN", "HIN", and serial number) title and title history. Company and its Product sellers expressly disclaim any and all representations, warranties, and guarantees regarding Products sold through Company. Company does not guarantee that keys are available for any Product sold through Company, regardless of whether keys are present in online Product images, or were present in the Product prior to the time of purchase. Certain jurisdictions permit Products to be sold with missing VIN plates; as a result, Company does not guarantee that Products are equipped with any or all VIN plates. Parts may be missing. Company does not guarantee that Products meet or can be modified to meet local emission and/or safety requirements. User agrees that Company Products are sold AS IS and are not represented as being in a road worthy condition, mechanically sound, or maintained at any guaranteed level of quality. The Products may not be fit for use as a means of transportation and may require substantial repairs and expense.

C. It is the sole responsibility of the User to ascertain, confirm, research, inspect, and/or investigate Products and any and all Vehicle Information prior to paying for Products. Users are free to inspect the Products they intend to purchase or have purchased and can make arrangement for conducting same with Company. In addition, independent third party services are available to assist User in the inspection and repair of Products, as may be necessary.

D. Company does not guarantee that any Product sold can be legally registered in any state or country, and User accepts all risks associated with variations in Product title and registration laws between states, provinces, and countries that may negatively impact the marketability of Products purchased from Company.

14. LIMITATION OF LIABILITY.

IN NO EVENT SHALL COMPANY BE LIABLE FOR LOST PROFITS OR ANY SPECIAL, INCIDENTAL OR CONSEQUENTIAL DAMAGES ARISING OUT OF OR IN CONNECTION WITH OUR WEB SITE, OUR SERVICE, OR THIS AGREEMENT (HOWEVER ARISING, INCLUDING NEGLIGENCE). OUR LIABILITY, AND THE LIABILITY OF OUR PARENT, SUBSIDIARIES, AFFILIATES, OFFICERS, EMPLOYEES AND SUPPLIERS, TO YOU OR ANY THIRD PARTIES IN ANY CIRCUMSTANCE IS LIMITED TO THE ACTUAL AMOUNT OF DIRECT DAMAGES.

15. INDEMNIFICATION, COSTS AND ATTORNEYS FEES.

User agrees to indemnify and hold Company, its parent, subsidiaries, affiliates, officers, directors and employees harmless from any claim or demand (including costs and attorneys' fees) made or incurred by any third party due to or arising out of User breach of this Agreement or the documents it incorporates by reference, or User violation of any law or the rights of a third party relating to User use of the Service.

If User uses the Company services in a manner that violates our policies, User account will be subject to limitation or immediate termination.

User agrees that, if Company commences arbitration or litigation against User in connection with this Agreement and Company is the prevailing party, it will also be entitled to recover reasonable attorneys fees and any other costs incurred in such proceeding, in addition to any other relief to which Company may be entitled.

16. DISPUTE RESOLUTION, JURISDICTION AND GOVERNING LAW

A. User and Company each agree that any and all disputes or claims that have arisen or may arise between User and Company relating in any way to or arising out of this or previous versions of the User Agreement, Users use of or access to Company's Services, or any Products or services sold, offered, or purchased through Company's Services shall be resolved exclusively through final and binding arbitration, rather than in court.

The Federal Arbitration Act governs the interpretation and enforcement of this Agreement to Arbitrate. The application of the United Nations Convention of Contracts for the International Sale of Goods is expressly excluded. User consents to the forum selection, choice of law, jurisdiction, and venue provisions described below.

B. Prohibition of Class and Representative Actions and Non-Individualized Relief.

USER AND COMPANY AGREE THAT EACH OF US MAY BRING CLAIMS AGAINST THE OTHER ONLY ON AN INDIVIDUAL BASIS AND NOT AS A PLAINTIFF OR CLASS MEMBER IN ANY PURPORTED CLASS OR REPRESENTATIVE ACTION OR PROCEEDING. UNLESS BOTH USER AND COMPANY AGREE OTHERWISE, THE ARBITRATOR MAY NOT CONSOLIDATE OR JOIN MORE THAN ONE PERSON'S OR PARTY'S CLAIMS, AND MAY NOT OTHERWISE PRESIDE OVER ANY FORM OF A CONSOLIDATED, REPRESENTATIVE, OR CLASS PROCEEDING. ALSO, THE ARBITRATOR MAY AWARD RELIEF (INCLUDING MONETARY, INJUNCTIVE, AND DECLARATORY RELIEF) ONLY IN FAVOR OF THE INDIVIDUAL PARTY SEEKING RELIEF AND ONLY TO THE EXTENT NECESSARY TO PROVIDE RELIEF NECESSITATED BY THAT PARTY'S INDIVIDUAL CLAIM(S). ANY RELIEF AWARDED CANNOT AFFECT OTHER COMPANY USERS.

C. Arbitration Procedures, Jurisdiction and Choice of Law

Any arbitrator shall apply the terms of the User Agreement as a court would. The arbitrator, and not any federal, state, or local court or agency, shall have exclusive authority to resolve any dispute arising out of or relating to the interpretation, applicability, enforceability or formation of this Agreement to Arbitrate, any part of it, or of the User Agreement including, but not limited to, any claim that all or any part of the Agreement to Arbitrate or User Agreement is void or voidable.

The arbitration will be conducted by the American Arbitration Association ("AAA") under its rules and procedures, including the AAA's Supplementary Procedures for Consumer-Related Disputes (as applicable), as modified by this Agreement to Arbitrate. The AAA's rules are available at www.adr.org. A form for initiating arbitration proceedings is available on the AAA's site at <http://www.adr.org>. In addition to filing this form with the AAA in accordance with its rules and procedures, User must send a copy of the completed form to us at the Company corporate headquarters in the State of Pennsylvania.

The arbitration shall be held in Philadelphia, Pennsylvania, or at another mutually agreed location. If the value of the relief sought is \$5,000 or less, User or Company may mutually agree to have the arbitration conducted by telephone or based solely on written submissions, which mutual agreement shall be binding on User and Company subject to the arbitrator's discretion to require an in-person hearing, if the circumstances warrant.

The arbitrator will decide the substance of all claims in accordance with the laws of the State of Pennsylvania, including recognized principles of equity, and will honor all claims of privilege recognized by law. The arbitrator shall not be bound by rulings in prior arbitrations involving different Company users, but is bound by rulings in prior arbitrations involving the same Company user to the extent required by applicable law. The arbitrator's award shall be final and binding and judgment on the award rendered by the arbitrator may be entered in any court having jurisdiction thereof.

Disputes between User and Company regarding our Services may be reported to Customer Support online, through EFFECTAUTO.COM at any time, or by calling Company from 9 AM to 5 PM Eastern Time, or by contacting Company in writing submitted to Company corporate headquarters in the State of Pennsylvania.

17. NOTICE.

To the fullest extent permitted by applicable law, this Agreement and any other agreements, notices or other communications regarding User account and/or User's use of the Service ("Communications"), may be provided to User electronically and User agrees to receive all Communications from Company in electronic form. Electronic Communications may be posted on the pages within the Company website and/or delivered to User's e-mail address. User may print a copy of any Communications and retain it for User's records. All Communications in either electronic or paper format will be considered to be in "writing."

Except as explicitly stated otherwise, any notices shall be given by postal mail to Company, Attn: Legal Department, at the Company corporate headquarters in the State of Pennsylvania located at:

Alternatively, Company may give User notice by email to the email address User provided during the registration process or by regular mail to the address provided to Company during the Purchase Order process.

18. MISCELLANEOUS.

This Agreement contains the entire agreement between User and Company regarding use of services, and all matters directly and indirectly related thereto. This Agreement supersedes all prior written and oral understandings, writings, and representations and may only be amended upon notice by Company. If any provision of this Agreement is held to be unenforceable for any reason, such provision shall be reformed only to the extent necessary to make it enforceable. Failure of Company to enforce any provision shall not be deemed to be a waiver of any rights to enforce any provision of this or any other agreement. User may not transfer any rights or

obligations User may have under this Agreement without the prior written consent of Company. Company reserves the right to transfer this Agreement or any right or obligation under this Agreement without User consent.

19. ACKNOWLEDGEMENT.

USER HEREBY ACKNOWLEDGES AND AFFIRMS THAT USER HAS READ THIS ENTIRE AGREEMENT AND THAT USER UNDERSTANDS AND AGREES AND ACCEPTS ALL ITS TERMS AND CONDITIONS.

DATE LAST MODIFIED: April 1, 2013

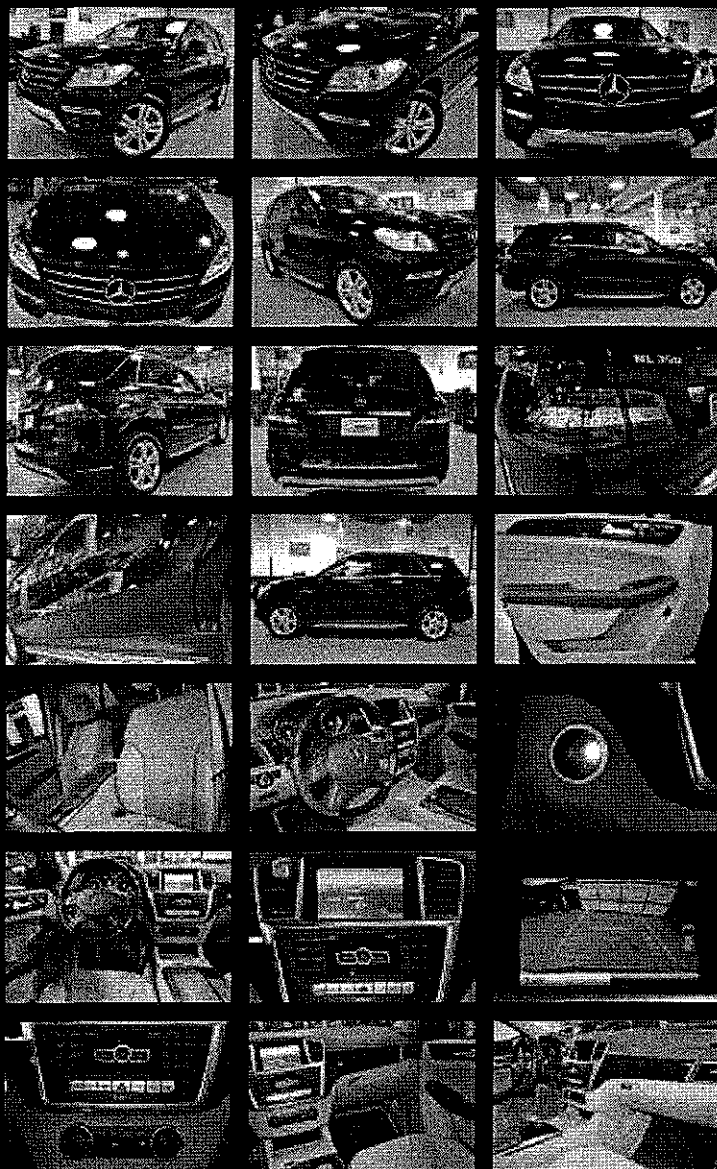
These Terms of Use may be changed at any time.

Appendix 12

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**2013 Mercedes-Benz M Class ML350 P1 + P2
Packages (Prod 11/12)**

Place:	Temporary warehouse
Status	Available
Lot No:	19928
VIN:	4JGDA5JB0DA164906
Condition:	New
Price	\$45,900
Paid in full	\$44,900
RF Customs	See attachment 2 ?

Чтобы ещё увеличить изображения, нажмите на фото сверху.



Color	Black
Interior color:	Tan
Drivetrain:	AWD
Engine:	3.5
Transmission:	Automatic

* Price include: Finland transit plates
for transit entry without paying custom fees



Позвоните на Skype



Проверить VIN

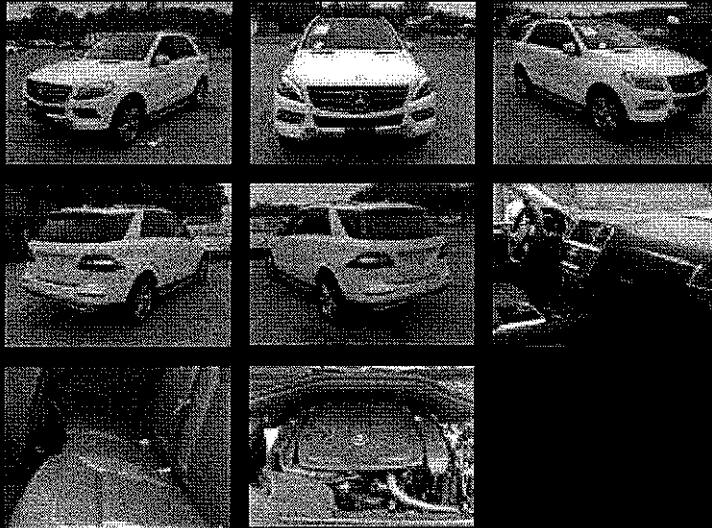
CARFAX

AutoCheck



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Чтобы ещё увеличить изображения, нажмите на фото сверху.



Нажмите на любое из изображений, чтобы увеличить его. Загрузка больших изображений занимает некоторое время на медленных интернет соединениях.

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2013 Mercedes-Benz M Class ML350

Place: Temporary warehouse
 Status: **Sale Pending**
 LOT No: 17773
 VIN: 4JGDA5HB7DA225156
 Condition: Pre-Owned
 Milage: 366 Miles
 Price: \$23,900
 Paid in full: **\$22,900**

Customs RF See attachment ? -

Color: White
 Interior: Black
 Drivetrain: AWD
 Engine: 3.5
 Transmission: Automatic

* Price include: Finland transit plates for transit entry

without paying custom fees



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Проверить VIN

CARFAX



Pre-Sales Price: \$22,900 Price does not include shipping, diagnostic, repair, dealer fee and registration fee. Car sold AS IS.

- CD-Changer
- Alloy Wheels
- Power Memory Seats
- Premium Audio System
- Navigation
- Parking
- Backup Camera
- Leather
- Xenon
- Sunroof
- Power Package
- Cruise Control
- Air Conditioner
- Wood Trim
- Heated Seats

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2013 Mercedes-Benz S Class S550 (Production 14/13!)

Location : Temporary warehouse

Status: **Sold**

Lot №: 18282

VIN: WDDNG9EB5DA493616

Condition: New

Price: \$40,900

Paid in full: **\$39,900**

Customs RF: See attachment

Чтобы ещё увеличить изображения, нажмите на фото сверху.



Color: Gray

Interior: Black

Drivetrain: RWD

Engine: 4.6

Transmission: Automatic

* Price include: Finland transit plates for transit entry

Нажмите на любое из изображений, чтобы увеличить его. Загрузка больших изображений занимает некоторое время на медленных интернет соединениях.

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Проверить VIN

CARFAX

AutoCheck

Pre-Sales Price: \$39,900 Price does not include shipping. Car sold AS IS. Other fees may apply. Category T

- CD-Changer
- Alloy Wheels
- DVD
- Navigation
- Parking
- Backup Camera
- Leather
- Xenon
- Sport Package
- Sunroof
- Power Package
- Cruise Control
- Air Conditioner
- Wood Trim
- Heated Seats

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2013 Mercedes-Benz M Class ML350 P1 + P2 Packages (Prod 11/12)

Местонахождение: Склад временного хранения

Статус: Available

Лот №: 19928

VIN: 4JGDA5JB0DA164906

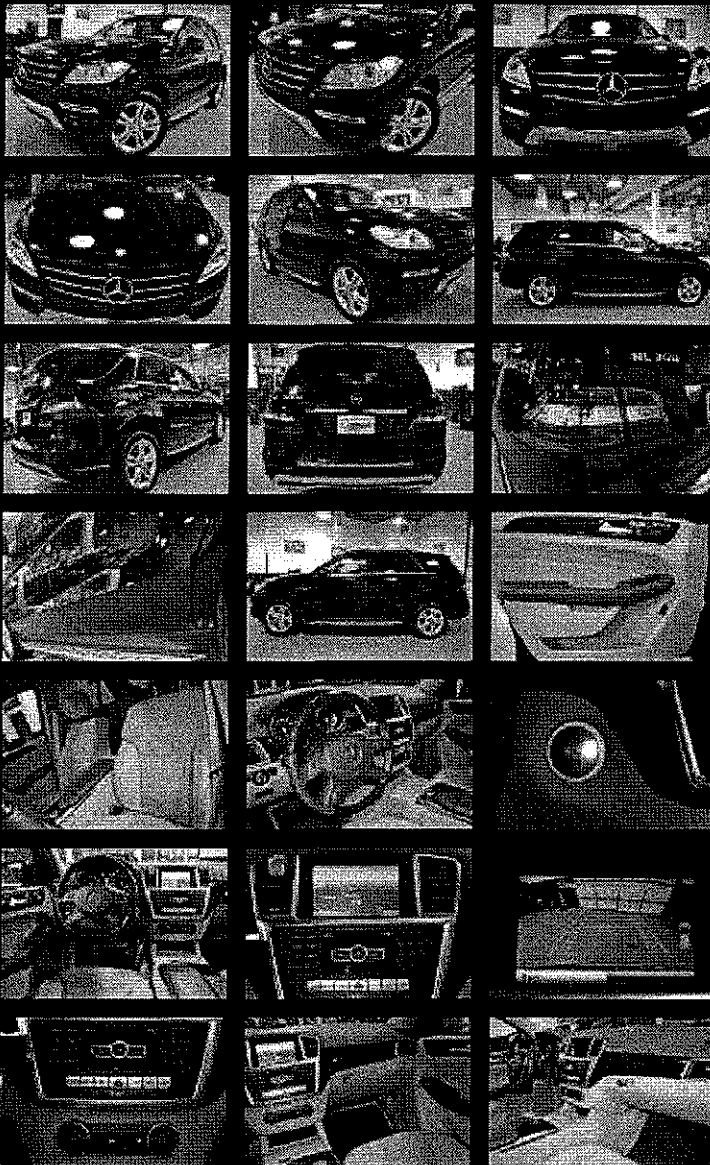
Состояние: New

Цена: \$45,900

При полной
оплате: **\$44,900**

Таможня РФ: см.приложение ?

Чтобы ещё увеличить изображения, нажмите на фото сверху.



Цвет: Black

Цвет интерьера: Tan

Привод: AWD

Двигатель: 3.5

КПП: Automatic

* Цена включает в себя: Физские транзитные номера для пересечения территории транзитом, без уплаты пошлин.



Позвоните на Skype



Проверить VIN

CARFAX

AutoCheck



[< Вернуться к списку](#)[Послать другу](#) - [Задать вопрос](#) - [Зарезервировать](#) - [Печать](#)**2013 Mercedes-Benz M Class ML350**

Местонахождение: Склад временного хранения

Статус: **Sale Pending**

Лот №: 17773

VIN: 4JGDA5HB7DA225156

Состояние: Pre-Owned

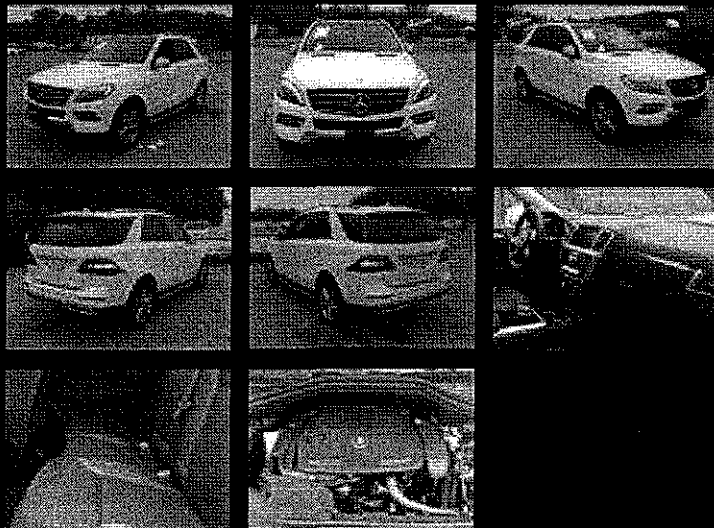
Пробег: 366 Miles

Цена: \$23,900

При полной
оплате: **\$22,900**

Таможня РФ: см.приложение 2

Чтобы ещё увеличить изображения, нажмите на фото сверху.



Цвет: White

Цвет интерьера: Black

Привод: AWD

Двигатель: 3.5

КПП: Automatic

* Цена включает в себя: Финские транзитные номера для пересечения территории транзитом, без уплаты пошлин.



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Проверить VIN**CARFAX**

Pre-Sales Price: \$22,900 Price does not include shipping, diagnostic, repair, dealer fee and registration fee. Car sold AS IS.

- CD-Changer
- Alloy Wheels
- Power Memory Seats
- Premium Audio System
- Navigation
- Parking
- Backup Camera
- Leather
- Xenon
- Sunroof
- Power Package
- Cruise Control
- Air Conditioner
- Wood Trim
- Heated Seats

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2013 Mercedes-Benz S Class S550 (Production 14/13!)

Местонахождение: Склад временного хранения

Статус: **Sold**

Лот №: 18282

VIN: WDDNG9EB5DA493616

Состояние: New

Цена: \$40,900

При полной
оплате: **\$39,900**

Таможня РФ: см.приложение 2

Чтобы ещё увеличить изображения, нажмите на фото сверху.



Цвет: Gray

Цвет интерьера: Black

Привод: RWD

Двигатель: 4.6

КПП: Automatic

* Цена включает в себя: Финские транзитные номера для пересечения территории транзитом, без уплаты пошлин.

Нажмите на любое из изображений, чтобы увеличить его. Загрузка больших изображений занимает некоторое время на медленных интернет соединениях.

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Проверить VIN

CARFAX

AutoCheck

Позвоните на Skype



Pre-Sales Price: \$39,900 Price does not include shipping. Car sold AS IS. Other fees may apply. Category T

- CD-Changer
- Alloy Wheels
- DVD
- Navigation
- Parking
- Backup Camera
- Leather
- Xenon
- Sport Package
- Sunroof
- Power Package
- Cruise Control
- Air Conditioner
- Wood Trim
- Heated Seats

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Appendix 13

EMPIRE UNITED LINES

2303 Coney Island Avenue, Brooklyn, NY 11223
Tel: (718) 998-6900; Fax (718) 998-7014

Empire United Co., Inc.
Bank of America
1415 Ave Z.
Brooklyn, NY 11235

Account# 9380009007
International Routing code: 021000332
Domestic Routing code: 026009593
FT code for Bank of America BOFAUS3N



Statement # 439

ST#439						
103783	2009 VOLKSWAGEN TIGUAN	WVGBV75N29W525297	31-Aug	6-Nov	TGHU8737440	038EUL1039353
103783	2011 JEEP COMPASS	1J4NF5FB7BD282296	18-Oct	25-Oct	TGHU8737440	038EUL1039353
103783	2009 MERCEDES-BENZ C300	WDDGF81X49R073295	25-Oct	6-Nov	TGHU8737440	038EUL1039353

AMOUNT TO PAY	\$2,250.00
AMOUNT PAID	
AMOUNT DUE	\$2,250.00



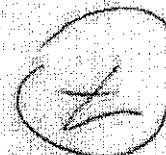
PAID

EMPIRE UNITED LINES

2303 Coney Island Avenue, Brooklyn, NY 11223
Tel: (718) 998-6900; Fax (718) 998-7014

Empire United Co., Inc.
Bank of America
1415 Ave Z
Brooklyn, NY 11235

Account# 9380009007
International Routing code: 021000332
Domestic Routing code: 026009593
FT code for Bank of America BOFAUS3N



Statement # 448

ST#448						
104211	2010 GMC ACADIA SLT-2	1GKLVNED6AJ138200	19-Oct	27-Nov	TCNU8761450	038EUL1046438
104211	2010 ACURA RDX	5J8TB2H29AA000682	13-Dec	13-Dec	TCNU8761450	038EUL1046438

AMOUNT TO PAY	\$1,500.00
AMOUNT PAID	
AMOUNT DUE	\$1,500.00



PAID

EMPIRE UNITED LINES

2303 Coney Island Avenue, Brooklyn, NY 11223
Tel: (718) 998-6900; Fax (718) 998-7014

Empire United Co., Inc.
Bank of America
1415 Ave Z.
Brooklyn, NY 11235

Account# 9380009007
International Routing code: 021000332
Domestic Routing code: 026009593
FT code for Bank of America BOFAUS3N



Statement # 439

ST#439						
103783	2009 VOLKSWAGEN TIGUAN	WVGBV75N29W525297	31-Aug	6-Nov	TGHU8737440	038EUL1039353
103783	2011 JEEP COMPASS	1J4NF5FB7BD282296	18-Oct	25-Oct	TGHU8737440	038EUL1039353
103783	2009 MERCEDES-BENZ C300	WDDGF81X49R073295	25-Oct	6-Nov	TGHU8737440	038EUL1039353

AMOUNT TO PAY	\$2,250.00
AMOUNT PAID	
AMOUNT DUE	\$2,250.00



PAID

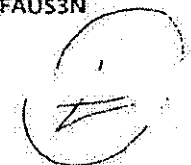
EMPIRE UNITED LINES

2303 Coney Island Avenue, Brooklyn, NY 11223
Tel: (718) 998-6900; Fax (718) 998-7014

Empire United Co., Inc.
Bank of America
1415 Ave Z.
Brooklyn, NY 11235

Account# 9380009007
International Routing code: 021000332
Domestic Routing code: 026009593
FT code for Bank of America BOFAUS3N

Statement # 449



ST#449							
104452	2009 TOYOTA PRIUS	JTDKB20U897858466	12-Oct	27-Dec	TCKU9873233	038EUL1045297	
104452	2009 TOYOTA CAMRY	4T1BE46K19U306703	14-Nov	27-Dec	TCKU9873233	038EUL1045297	

AMOUNT TO PAY	\$1,500.00
AMOUNT PAID	
AMOUNT DUE	

PAID

Appendix 14



G-Auto Sales, Inc.

Договор-Инвойс

www.GlobalAutoUSA.com

www.GAUTOUSA.com

G Auto Sales, Inc.

150-1 Carriage Lane, Delran, NJ 08075

+7 (495) 721-8448

+7 (812) 336-4264

kotkacars@gmail.com

cars@globalautousa.com

Дата: 8/22/2012

Инвойс №: 67779

ZHVAZ (L)

Банковские реквизиты:

Название банка: Citizens Bank

Адрес банка: 1 Citizens Drive
Riverside, RI 02915

Покупатель:

ФИО: Овчинников И.Ю.

Адрес: г. Ханты-Мансийск ул. Обская, д.22 кв.7

Телефон: +79028141265

oiur@rambler.ru

№ счёта: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

Убедительная просьба ко всем клиентам. После перевода денег отправляйте подтверждение (Ваше имя, сумма, номер лота или последние 8 цифр VIN) на e-mail адрес бухгалтерии: account@globalautousa.com

Перед тем как забирать свой автомобиль, обязательно закажите открепление - сверьтесь с бухгалтерией и сообщите ФИО человека, который будет забирать авто. Без открепления будет взиматься штраф в размере 15 евро.

Кол-во	Лот №	Год	Марка/модель	VIN	Цена за ед.	Сумма
1	3179	2012	GMC Acadia	1GKKVRED7CJ311860	19900	19900
<i>transferred to lot 15095 vin # 138200</i>						<i>19900</i>

Скидка (если предоставлена)

Издержки, взимаемые нашим банком за перевод денег

20

Произведена оплата

ИТОГО:

19920



[Signature]

Майкл Головеря,

Президент компании G Auto Sales, Inc.

(35)

1. Предоплата со стороны Покупателя не является окончательной покупкой автомобиля, а гарантирует его

бронирования на определенный срок, обговариваемый отдельно.

2. В случае внесения предоплаты и несвоевременной оплаты полной стоимости автомобиля, компания G Auto Sales, Inc.

оставляет за собой право выставить неоплаченный авто на продажу.

3. В случае расторжения договора на приобретения автомобиля со стороны Покупателя, клиент получает кредит с компании

или возврат денежных средств за вычетом 10% от стоимости автомобиля.

Возврат производится после продажи автомобиля другому клиенту.

4. Зарезервировав автомобиль на сайте компании G Auto Sales, Inc. Покупатель подтверждает, что ознакомился с

правилами оформления сделки купли-продажи автомобиля и согласен с ними.

Банковские затраты и комиссии брокера-посредников оплачиваются покупателем.

5. Компания G Auto Sales, Inc. гарантирует легитимность и законность происхождения продаваемых автомобилей.

7. Покупатель должен заказать открепительное удостоверение за 6 рабочих дней в бухгалтерии компании.

8. Клиент обязуется оплатить портовые расходы и расходы по складу в т. Котка

received # 19900 (2168) 8/23/12

received # 19900 (2168) 10/2/12

received # 14000 (2168) 10/18/12

5.8ea

Благодарим за сотрудничество!

Если у Вас возникли вопросы по оплате, пишите на email: account@globalautousa.com



G-Auto Sales, Inc.

www.GlobalAutoUSA.com

www.GAUTOUSA.com

G Auto Sales, Inc.

150-1 Carriage Lane, Delran, NJ 08075

+7 (495) 721-8449

+7 (812) 336-4264

sales@globalautousa.com

cars@globalautousa.com

Дата: 24/10/2012

Инвойс №: W4722

Банковские реквизиты:

Название банка: Citizens Bank

Адрес банка: 1 Citizens Drive
Riverside, RI 02915

Покупатель:

ФИО: Некипелов Денис Николаевич

Адрес: СПб пр-т Наставников 45-1-183

9112717070

nekipelov@inbox.ru

№ счета: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

Убедительная просьба ко всем клиентам. После перевода денег отправляйте подтверждение (Ваше имя, сумма, номер счета или последние 6 цифр VIN) на e-mail адрес бухгалтерии: account@globalautousa.com

Перед тем как забирать свой автомобиль, обязательно закажите открепление - свяжитесь с бухгалтерией и сообщите ФИО человека, который будет забирать авто. Без открепления будет взиматься штраф в размере 15 евро.

Кол-во	Лот №	Год	Марка/модель	VIN	Цена за ед.	Сумма
1	14653	2009	Mercedes-Benz C300	WDDGF81X49R073295	19,900	
Скидка (если предоставлена)						
Издержки, взимаемые нашим банком за перевод денег						20
Произведена оплата						
ИТОГО:						19,920



Signature

Майкл Гоповеря,

Президент компании G Auto Sales, Inc.

received # 19900 (2168) 10/25/12

1. Предметом настоящего договора является приобретение автомобиля (марки, модели, года выпуска, VIN) и его доставка на территорию Российской Федерации. 2. Цена автомобиля составляет 19 900 евро. 3. Оплата производится в два этапа: первый этап - 10 000 евро, второй этап - 9 900 евро. 4. Автомобиль должен быть доставлен в срок, указанный в договоре. 5. В случае нарушения сроков доставки, покупатель имеет право требовать возмещения убытков. 6. Настоящий договор вступает в силу с момента его подписания. 7. Договор составлен в двух экземплярах, один из которых остается у покупателя, другой - у продавца. 8. Настоящий договор является неотъемлемой частью договора купли-продажи.

Благодарим за сотрудничество!

Если у Вас возникли вопросы по оплате, пишите на email: account@globalautousa.com

released lot 14653 VIN # 073295 12/10/12



G-Auto Sales, Inc.

www.GlobalAutoUSA.com

www.GAUTOUSA.com

G Auto Sales, Inc.

150-1 Carriage Lane, Delran, NJ 08075

+7 (495) 721-8449

+7 (812) 336-4264

kotkacars@gmail.com

cars@globalautousa.com

Дата: 11/29/2012

Инвойс №: 67936

ZAKAZ



Банковские реквизиты:

Название банка: Citizens Bank

Адрес банка: 1 Citizens Drive

Riverside, RI 02915

Покупатель:

ФИО: Нургазинов Кайрат

Адрес: РК

kairat_nura@mail.ru

тел: +77771463483

№ счёта: 6236012168

ABA: 036076150

SWIFT CODE: CTZIUS33

Убедительная просьба ко всем клиентам. После перевода денег отправляйте подтверждение (Ваше имя, сумма, номер лота или последние 6 цифр VIN) на e-mail адрес бухгалтерии: account@globalautousa.com

Перед тем как забирать свой автомобиль, обязательно закажите открепление - сверьтесь с бухгалтерией и сообщите ФИО человека, который будет забирать авто. Без открепления будет взиматься штраф в размере 15 евро.

Кол-во	Лот №	Год	Марка/модель	VIN	Цена за ед.	Сумма
1	14775	2010	Toyota Camry	4T4BF3EK7AR011494	10900	10900
<i>transferred to lot 15212 VIN# 306703</i>						<i>\$ 12900</i>
Скидка (если предоставлена)						400
Издержки, взимаемые нашим банком за перевод денег						20
Произведена оплата						
ИТОГО:						10520



[Signature]

Майкл Головеря,

Президент компании G-Auto Sales, Inc.

received \$ 10520 (2168) 12/5/12

(10)

1. Предоплата со стороны Покупателя является окончательной покупкой автомобиля, а гарантирует его бронирование на определенный срок, обговариваемый отдельно.
2. В случае вынесения предоплаты и заключения рамочной сделки по покупке автомобиля компания G-Auto Sales, Inc. оставляет за собой право выставить окончательный авто на продажу.
3. В случае расторжения договора на приобретение автомобиля со стороны Покупателя, компания получает кредит с компании или возмещает денежные средства за вычетом 10% от стоимости автомобиля.
4. Возврат производится после продажи автомобиля другому клиенту.
5. Завершено оформление автомобиля на сайте компании G-Auto Sales, Inc. Покупатель подтверждает, что ознакомился с правилами оформления сделки купли-продажи автомобиля и согласен с ними.
6. Компания G-Auto Sales, Inc. гарантирует надежность и качество предоставляемых автомобилей.
7. Покупатель должен заказать открепление автомобиля за 5 рабочих дней в бухгалтерии компании.
8. Компания не несет ответственности за любые штрафы и санкции, связанные с этим.

Благодарим за сотрудничество!

Если у Вас возникли вопросы по оплате, пишите на email: account@globalautousa.com

Appendix 15

>Transaction Details

Account: 6236012168 - G Auto Sales INC

Processed on: 10/09/2012

Transaction Type: Wire Transfer In

BAI Code: 196 - Incoming Money Transfer

Bank Ref Number:

Customer Ref Number:

Date: 10/09/2012

Amount Credited: \$15,884.00

Description:

FED NO: 10098108363C01403010090856ET03 SENDER BNK: DEUTSCHE BANK TRUST CO. AMERICAS SENDER
ADDRESS: NEW YORK, NY SENDER ID: 021001033 ORG ID: 42307840228003800098 ORG NAME: 1/RZAEVA IRINA
VLADIMIROVNA ORG ADDRESS: 245 KATAEVA UL 3/RU/SYKTYVKAR ORG FI ID: 021001033 ORG FI: DEUTSCHE
BANK TRUST CO. AMERICAS ORG FI ADDRESS: NEW YORK, NY BNF ID: 6236012168 BNF NAME: G AUTO SALES
INC BNF ADDRESS: 150 CARRIAGE LN # 1 DELRAN NJ 08075 OBI (GIFT RFB (SRF)) 1009539510014583

CLOSE

PRINT

>Transaction Details

Account: 6236012168 - G Auto Sales INC

Processed on: 10/25/2012

Transaction Type: Wire Transfer In

BAI Code: 185 - Incoming Money Transfer

Bank Ref Number:

Customer Ref Number:

Date: 10/25/2012

Amount Credited: \$19,900.00

Description:

FED NO: 1025B1 QGC05C00088610250801FT03 SENDER BNK: JPMORGAN CHASE BANK, NA SENDER ADDRESS:
NEW YORK, NY SENDER ID: 021000021 ORG ID: 42301840600470205285 ORG NAME: NEKIPELOV DENIS
NIKOLAEVICH ORG ADDRESS: PAS8704975508 RUSSIA SANKT PETERBURG PR NASTAVNIKOV 45/1-183 ORG FI
ID: 021000021 ORG FI: JPMORGAN CHASE BANK, NA ORG FI ADDRESS: NEW YORK, NY BNF ID: 6236012168 BNF
NAME: G AUTO SALES INC BNF ADDRESS: 150 CARRIAGE LN #1 DELRAN NJ 08075 OBL PAYMENT FOR
AUTOMOBILE RFB(ORF) SWF OF 12/10/25 RFB(SRF) 5013400299JS

CLOSE

PRINT

Appendix 16

Понедельник, 6 июня 2016, 5:17 +03:00 от Marcus Nussbaum
<marcus.nussbaum@gmail.com>:

Greetings Ildar,

As you may know, I represent four clients in a lawsuit against Empire United Lines Co. Inc. and Michael Hitrinov. You can see the documents for the lawsuit at the following link:
<http://www.fmc.gov/15-11/>

I speak and read Russian and English, but in order to avoid any confusion, I write to you in English. Please respond to me in English, because, as I explain below, Mr. Sergey Kapustin has asked me to bring certain information to the attention of the Court, so English is the preferred method of communication.

I am writing to you with two questions:

1. I am writing to you with regard to the email below from Sergey Kapustin, where he asks me to inform the court that Mr. Hitrinov was attempting to induce him to sign the attached Confession of Judgment. Can you kindly forward me the entire chain of emails which would show me how Mr. Kapustin received the attached document? I need to understand where it came from.
2. I am also forwarding you a second email where Mr. Kapustin explains that Mr. Hitrinov offered him \$75,000 to sign some documents. Can you please forward me any documents or emails which you may have that further prove or explain how or in what manner Mr. Hitrinov offered Mr. Kapustin the \$75,000 and why?

I thank you in advance for your courtesy and consideration. The second email regarding the \$75,000 will follow separately.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

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----- Forwarded message -----

From: Sergey Kapustin <skapustin@yahoo.com>
Date: 2016-03-28 4:45 GMT-04:00
Subject: Fwd: документ от Хитринова
To: Maria Temkin <maria@brownlegalconsulting.com>, "anna@brownlegalconsulting.com" <anna@brownlegalconsulting.com>, "marcus.nussbaum@gmail.com" <marcus.nussbaum@gmail.com>

> Мария , Анна , Маркус , посылаю вам письмо которое для моей подписи составил Хитринов и его Адвокат , что бы сравнить сумму моего приговора с иском который вы предъявляете Хитринову в суде камдон , данным письмом г-н хитринов подчеркивает , что клиенты не должны ничего получить , я не могу заехать на территорию США , так как Хитринов постоянно угрожает расправой как физической так и уголовной , я не могу так больше жить , когда над моей жизнью висит угроза расправы . Постоянно предлагаетца судить адвокатов , все переводы мне готовил Хитринов , да я понимаю что хитринов тот человек , который сделал так как это сегодня происходит , и все заявления в суд пишет Михаил хитринов , также все что делает адвокат Кривашеева делает Хитринов , я готов участвовать в любом суде , как ответчик , свидетель и постродавший .просьба сообщить это в суд .

Appendix 17

От: Sergey Kapustin <skapustin@yahoo.com>

Дата: December 18, 2015 at 8:06:22 PM GMT+2

Кому: "marcus.nussbaum@gmail.com" <marcus.nussbaum@gmail.com>

Отправлено с iPhone To Marcus Nussbaum

It has come to my attention that you are representing customers of Global Auto, Inc., Effect Auto Sales, Inc., and G Auto Sales, Inc. in connection with claims brought before the Federal Maritime Commission.

This representation of these customers is a conflict of interest because you previously represented those companies in connection with the same matters. You are using information provided by myself and the companies in that prior representation and exposing myself and the companies to liability through your actions. I have not agreed to this representation of these customers and I demand that you withdraw from representation of these customers immediately.

Otherwise I will write to the Court to demand that you be disqualified from representing these customers and will write to the bar association to make a complaint about your unethical actions.

As you know you lied to the Federal court on the related matter. By those lies You caused all the companies and me personally a huge damage.

I intend to file a lawsuit against you for malpractice as soon as i return from overseas .

Sergey Kapustin

Appendix 18

**WAIVER OF ATTORNEY-CLIENT PRIVILEGE
AND WRITTEN CONSENT TO DISCLOSURE**

I, Sergey Kapustin, am the president and sole owner of Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc., and SK Imports, Inc. At all times, including the present, I have had full authority to speak on behalf of, and to make decisions with respect to, all of these companies.

I had previously retained the services of Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq., as attorneys for Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc.

The attorney client relationship between Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc. and Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq. has now ended.

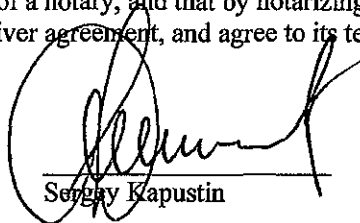
On behalf of Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc. I hereby expressly waive any and all attorney client privileges that the companies hold, or that I hold, as a result of the legal representation of the companies by Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq., and expressly grant permission to Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq., or anyone associated with them, to discuss all issues I raised privately with them and to disclose all written communications I, and anyone associated with Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc., have had with them.

I hereby represent that there was no force or threat to me by anyone for me to prepare and sign this waiver of confidentiality and consent to disclose. I further represent that, on behalf of Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. and SK Imports, Inc., I knowingly and intelligently waive any and all attorney client privileges those companies had, or that I had, with Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and Igor A. Voloshen, Esq. and/or anyone associated with them.

I am fully aware that having signed this waiver agreement, I cannot hold Marcus A. Nussbaum, Esq., Harlan Garrett Greenberg, Esq. and/or Igor A. Voloshen, Esq., or anyone associated with them, whether during or after the attorney-client relationship, liable for disclosing confidential and/or privileged information about me or the companies.

I further agree that I will sign this agreement in the presence of a notary, and that by notarizing this agreement, I have willingly, and knowingly executed this waiver agreement, and agree to its terms voluntarily.

Dated: This 15 day of January, 2016

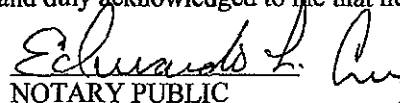

Sergey Kapustin

STATE OF Pennsylvania

COUNTY OF Bucks

On January 15, 2016 before me personally came Sergey Kapustin, to me known, and known to me to be the individual described in, and who executed the foregoing WAIVER OF ATTORNEY-CLIENT PRIVILEGE AND WRITTEN CONSENT TO DISCLOSURE, and duly acknowledged to me that he executed the same.

COMMONWEALTH OF PENNSYLVANIA
NOTARIAL SEAL
EDUARDO L. CRUZ, NOTARY PUBLIC
BRIDGEPORT BORO, MONTGOMERY COUNTY
MY COMMISSION EXPIRES OCTOBER 11, 2016


NOTARY PUBLIC

[Translation into Russian – Перевод на русский]

**НАМЕРЕННЫЙ ОТКАЗ ОТ ПРИВИЛЕГИИ АДВОКАТСКОЙ ТАЙНЫ
ПИСЬМЕННОЕ СОГЛАСИЕ НА РАЗГЛАШЕНИЕ ИНФОРМАЦИИ**

Я, Сергей Капустин, являюсь президентом и единоличным владельцем компаний Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. и SK Imports, Inc. На протяжении всего времени, включая настоящее время, у меня было полное право на обсуждение вопросов от имени всех этих компаний и принимать решения, касающиеся всех этих компаний.

В прошлом я воспользовался услугами г-на Маркуса А. Нассбаума (Marcus A. Nussbaum, Esq.), г-на Харлана Гарретта Гринберга (Harlan Garrett Greenberg, Esq.) и г-на Игоря А. Волошена (Igor A. Voloshen, Esq.) в качестве адвокатов, представляющих интересы компаний Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. и SK Imports, Inc.

В настоящее время взаимоотношения юрист-клиент между компаниями Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. и SK Imports, Inc. и г-ном Маркусом А. Нассбаумом (Marcus A. Nussbaum, Esq.), г-ном Харланом Гарреттом Гринбергом (Harlan Garrett Greenberg, Esq.) и г-ном Игорем А. Волошениным (Igor A. Voloshen, Esq.) прекратились.

От имени компаний Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. и SK Imports, Inc. настоящим я прямо выражаю свой намеренный отказ от любых привилегий адвокатской тайны, которыми могут обладать компании или которыми могу обладать я в результате защиты правовых интересов г-ном Маркусом А. Нассбаумом (Marcus A. Nussbaum, Esq.), г-ном Харланом Гарреттом Гринбергом (Harlan Garrett Greenberg, Esq.) и г-ном Игорем А. Волошениным (Igor A. Voloshen, Esq.), и прямо предоставляю разрешение г-ну Маркусу А. Нассбауму (Marcus A. Nussbaum, Esq.), г-ну Харлану Гарретту Гринбергу (Harlan Garrett Greenberg, Esq.) и г-ну Игорю А. Волошену (Igor A. Voloshen, Esq.) и любым связанным с ними лицам на обсуждение любых вопросов, которые я лично с ними обсуждал, а также на разглашение любой информации, фигурирующей в переписке между ними и мной и любыми лицами, связанными с компаниями Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. и SK Imports, Inc.

Я настоящим заявляю, что меня никто не заставлял и не принуждал подготовить и подписать этот намеренный отказ от прав конфиденциальности и согласия на разглашение информации. Кроме того, я заявляю, что от имени компаний Global Auto, Inc., Effect Auto Sales, Inc., G Auto Sales, Inc. и SK Imports, Inc. я преднамеренно и сознательно отказываюсь от любых привилегий адвокатской тайны, которыми могли обладать эти компании или я в отношениях с г-ном Маркусом А. Нассбаумом (Marcus A. Nussbaum, Esq.), г-ном Харланом Гарреттом Гринбергом (Harlan Garrett Greenberg, Esq.) и г-ном Игорем А. Волошениным (Igor A. Voloshen, Esq.) и (или) с любыми связанными с ними лицами.

Подписывая это соглашение об отказе от прав, я отдаю себе полный отчет в том, что я не могу привлечь г-на Маркуса А. Нассбаума (Marcus A. Nussbaum, Esq.), г-на Харлана Гарретта Гринберга (Harlan Garrett Greenberg, Esq.) и (или) г-на Игоря А. Волошена (Igor A. Voloshen, Esq.) или любых связанных с ними лиц, будь то до или после окончания взаимоотношений юрист-клиент, к ответственности за раскрытие конфиденциальной информации и (или) информации, не подлежащей разглашению, касающейся меня или этих компаний.

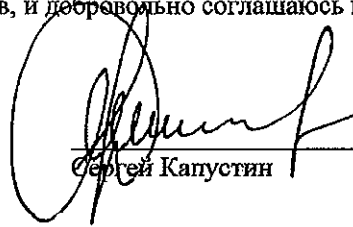
Я далее выражаю свое согласие с тем, что я буду подписывать это соглашение в присутствии нотариуса, и, что нотариальное заверение этого соглашения означает, что я без принуждения и сознательно подписал это соглашение об отказе от прав, и добровольно соглашаюсь на его условия.

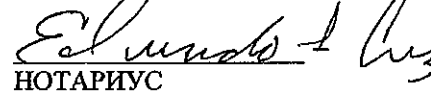
Дата: 15 января 2016 года

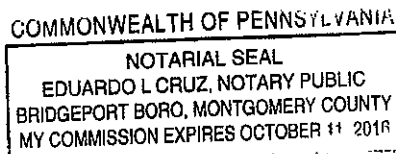
ШТАТ: Pennsylvania

ОКРУГ: Bucks

15 января 2016 года Сергей Капустин, личность которого была установлена, в моем присутствии лично подписал НАМЕРЕННЫЙ ОТКАЗ ОТ ПРИВИЛЕГИИ АДВОКАТСКОЙ ТАЙНЫ И ПИСЬМЕННОЕ СОГЛАСИЕ НА РАЗГЛАШЕНИЕ ИНФОРМАЦИИ, и в надлежащем порядке подтвердил, что он подписал этот документ.


Сергей Капустин


НОТАРИУС



Appendix 19



150-1 Carriage Lane, Delran, NJ 08075

711 Pennsylvania Ave, Southampton, PA 8966

Phone: +1 (215) 942-8570 (71,72),

+1 (908) 351-5888

+1 (908) 351-6299 fax

Empire United Lines

January 18 , 2013

Global Auto Inc, Effect Auto, G Auto is planning to return 422,018 USD used by Global to buy 45 cars by January 27, 2013. By this letter we confirm that if money for the amount of 422,018 USD is not returned by Global Auto USA, Effect Auto and G Auto by January 27 Empire can sell 45 cars as listed from Carcont in Kotka. Global does not want to inspect the cars in Finland. Empire may sell the cars for the best available offer. If any repairs are needed for the cars Empire may take the amount of the repairs from the sale price. The funds from cars sale should be used to cover \$422,000 and all other Global outstanding including not distributed profit.

We expect no delays on releases.

Global Auto Inc
Effect Auto Sales
G Auto

Sergey Kapustin

	Vehicles		Vin#	container
1	YAMAHA BOAT	Kotka	DL1493X	MSCU7912634
2	1999 YAMAHA trailer	Kotka	1DHNAELA1X1090995	MSCU7912634
3	2010 LEXUS RX 350	Kotka	2T2BK1BA5AC009746	MSCU8549457
4	2009 VOLKSWAGEN	Kotka	WVGAV75N49W502230	MSCU9897740
5	2010 VOLKSWAGEN CC	Kotka	WVWML7AN9AE507737	INKU2255403
6	2009 BMW X5	Kotka	5UXFE43579L260951	TGHU7722677
7	2008 VOLKSWAGEN	Kotka	3VWRA71K78M179897	MSCU7496584
8	2009 MERCEDES-BENZ	Kotka	4JGBB25E39A489354	INKU6454152
9	2011 LEXUS LX 570	Kotka	JTJHY7AX4B4060677	MSCU7880692
10	2009 LEXUS LX 570	Kotka	JTJHY00W694027108	INKU6611170
11	2008 MERCEDES-BENZ	Kotka	4JGBB22E88A372761	AMFU8757503
12	2009 MERCEDES-BENZ	Kotka	4JGBB25E79A519374	CAIU8750765
13	2009 BMW X5	Kotka	5UXFE43509L037392	AMFU8757503
14	2009 MERCEDES-BENZ	Kotka	4JGBB25E09A497525	TRLU5762222
15	2009 TOYOTA VENZA	Kotka	4T3ZE11A79U005453	MSCU9950675
16	2012 JEEP COMPASS	Kotka	1C4NJCBA1CD573626	MSCU9808526
17	2011 SAAB 9-4X AERO	Kotka	3G0FNUE62BS800047	MSCU9808526
18	2009 SUBARU	Kotka	JF2SH63619H742041	TTLU224876-4
19	2009 TOYOTA PRIUS	Kotka	JTDKB20U693488352	TGHU8770134
20	2009 MERCURY	Kotka	4M2CU87779KJ12759	TRIU9855139
21	2010 SUBARU	Kotka	4S4BRBBC9A3328479	MSCU7912634
22	2010 VOLKSWAGEN CC	Kotka	WVWNL7AN5AE527150	TGHU8770134
23	2009 MERCURY	Kotka	4M2CU87729KJ12992	TGHU8770134
24	2009 TOYOTA VENZA	Kotka	4T3BE11A49U004942	TTLU981862-1
25	2009 MERCEDES-BENZ	Kotka	4JGCB25E69A095805	TRIU9057653
26	2009 VOLKSWAGEN	Kotka	WVGAV75N49W002956	TTLU499373-0
27	2011 JEEP COMPASS	Kotka	1J4NF5FB7BD282296	TGHU8737440
28	2009 VOLKSWAGEN	Kotka	WVGVBV75N29W525297	TGHU8737440
29	2009 MERCEDES-BENZ	Kotka	WDDGF81X49R073295	TGHU8737440
30	2009 TOYOTA VENZA	Kotka	4T3BE11A99U007805	TTLU6170514
31	2010 HONDA INSIGHT	Kotka	JHMZE2H51AS007600	MEDU8259900
32	2009 TOYOTA CAMRY	Kotka	4T1BE46K99U346317	MSCU9189268
33	2009 TOYOTA VENZA	Kotka	4T3ZE11AX9U017211	TRIU9507220
34	2009 DODGE CALIBER	Kotka	1B3HB48A79D129278	MSCU9187861
35	2009 SUBARU	Kotka	JF2SH61649H717573	MSCU9187861
36	2010 MERCURY	Kotka	4M2CN8B74AKJ17359	CRXU9813340
37	2010 JEEP COMPASS	Kotka	1J4NF4FB6AD583215	CRXU9813340
38	2009 TOYOTA CAMRY	Kotka	4T1BE46K09U812264	MSCU9078156
39	2010 GMC ACADIA SLT-	Kotka	1GKLVNED6AJ138200	TCNU8761450
40	2010 ACURA RDX	Kotka	5J8TB2H29AA000682	TCNU8761450
41	2010 SUBARU LEGACY	Kotka	4S3BMBB65A3210717	MSCU9152382
42	2010 VOLKSWAGEN CC	Kotka	WVWML7AN7AE525508	MSCU9152382
43	2009 FORD ESCAPE	Kotka	1FMCU02729KD02110	MEDU8199205
44	2009 TOYOTA PRIUS	Kotka	JTDKB20U897858466	TCKU9873233
45	2009 TOYOTA CAMRY	Kotka	4T1BE46K19U306703	TCKU9873233

Appendix 20

Russian

От кого: GlobalAutoUSA <kotkacars@gmail.com>

Кому: kairat nurgazinov <kairat_nura@mail.ru>

Дата: Четверг, 20 декабря 2012, 12:22 +02:00

Тема: Re: Re[36]: договор No.67936

Здравствуйте.

Договор исправлен.

Данные с указанием номера контейнера из США еще не получены.

20 декабря 2012 г., 11:51 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

здравствуйте игорь., да машина в котке будет 12900 долларов, в инвойсе стоит на оплату 12 900, в нижней сторочке должно быть 12900-10500 (депозит)=2400, иначе после прихода машины в казахстан при растаможке могут быть разночтения. о приходе машины в котку вы сообщите письмом на почту? остальные вопросы после прихода машины

Пятница, 14 декабря 2012, 18:26 от GlobalAutoUSA <kotkacars@gmail.com>:

+12156512993 Сергей

только он уполномочен отвечать на данные вопросы и принимать репения.

14 декабря 2012 г., 18:24 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Игорь, подскажите процесс возврата денег и сроки возврата, сумму возврата в моем случае

Пятница, 14 декабря 2012, 14:13 от GlobalAutoUSA <kotkacars@gmail.com>:

Сергей не подтвердил скидку!

14 декабря 2012 г., 11:50 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

При разговоре он сказал, что если акция есть, то на меня она распространяется, детали уточнить с вами. поэтому я уточняю

Пятница, 14 декабря 2012, 11:41 от GlobalAutoUSA <kotkacars@gmail.com>:

В данном случаи вопрос по акции Вам следует задать Сергею!

Авто должен быть в Котке через 10-15 дней.

14 декабря 2012 г., 11:38 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Игорь вы можете уточнить дату прихода машины в Котку, в какой срок произвести оплату суммы доставки до Казахстана г. Семей, сумму оплаты и подтвердить объявленные акции (по платежам и подаркам)

Пятница, 14 декабря 2012, 11:31 от GlobalAutoUSA <kotkacars@gmail.com>:

ок

14 декабря 2012 г., 11:22 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Игорь, с Сергеем договоренность на сумму 12 500, пожалуйста переправте дополнение, и доплату, по согласованию с Сергеем, произведу после прихода машины в Котку.

Пятница, 14 декабря 2012, 9:17 от GlobalAutoUSA <kotkacars@gmail.com>:

Здравствуйте.

Автомобиль забронирован за Вами.

Договор на доплату в приложении.

С уважением,

Игорь.

13 декабря 2012 г., 19:12 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:
Здравствуйте Игорь, мне перевели деньги с лота №14775 на лот №15212, после прихода данной машины в Котку в какой приблизительно срок будет произведена поставка, желательно в г. Семей (Семипалатинск)?

Среда, 12 декабря 2012, 13:50 от GlobalAutoUSA <kotkacars@gmail.com>:

обращайте внимание на сайте под фото на эту надпись

Pre-Sales Price: \$10,900 Price does not include shipping, dealer and registration fee
что означает что цена без учета доставки из США и без заработка компании!

12 декабря 2012 г., 13:39 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

по списку цена за форестер 11 900

Среда, 12 декабря 2012, 13:35 от GlobalAutoUSA <kotkacars@gmail.com>:
13900\$

12 декабря 2012 г., 13:29 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Игорь из списка Форестер лот №15237, интересуется скидкой до проплаченной суммы, если да то я ее беру

Среда, 12 декабря 2012, 13:21 от GlobalAutoUSA <kotkacars@gmail.com>:
пробег 30т.м.
цена в Кокте 12900\$

12 декабря 2012 г., 13:19 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

пробег, цена

Среда, 12 декабря 2012, 12:46 от GlobalAutoUSA <kotkacars@gmail.com>:
Toyota Camry SE 2008г.в. 2,4L
предварительные фото в приложении.

12 декабря 2012 г., 11:36 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

данные по тойоте SE пожалуйста вышлите(цена, год выпуска, объем двигателя), когда поступит в Котку

Среда, 12 декабря 2012, 10:36 от GlobalAutoUSA <kotkacars@gmail.com>:
смотрите в списке!

12 декабря 2012 г., 10:36 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Теперь какой выход с моего положения, тойота продана, деньги перпечислены, что можете предложить в данном ценовом диапазоне из японских машин типа кроссоверов или седанов

Среда, 12 декабря 2012, 10:30 от GlobalAutoUSA <kotkacars@gmail.com>:

цена на авто лот №15280 указана без доставки и интереса компании! цена в Котке 16900\$

12 декабря 2012 г., 10:28 пользователь GlobalAutoUSA <kotkacars@gmail.com> написал:
да, конечно т.к. компания оптовая их и продают за ранее!

12 декабря 2012 г., 10:26 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Еще вопрос если на сайте вашей компании заинтересовала какая-то машина, то указанное на сайте месторасположение может быть отличнм от фактического?

Среда, 12 декабря 2012, 9:17 от GlobalAutoUSA <kotkacars@gmail.com>:

Воспримем этот Ваш вопрос как шутку!)

Цены на эти авто составят по 16900\$

12 декабря 2012 г., 6:24 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

игорь, лот №15280 и лот №14425 оба субару аутбак, данные по ним: состояние машины, кол-во ключей, возможность продать за уже перечисленные деньги?

Вторник, 11 декабря 2012, 22:20 от GlobalAutoUSA <kotkacars@gmail.com>:

Данные авто еще в США.

Список автомобилей и мотоциклов которые в Котке и на подходе в приложении.

11 декабря 2012 г., 19:16 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Игорь, рассмотрите варианты: Honda CRV 2010 (10/09) лот №15319 стоимость 11 900, Honda CRV 2009 (12/08) лот №15269 стоимость 10900, возможность скидки, или в

пределах перечисленной суммы без доплаты, более интересен первый вариант. Обе машины в Котке (по данным сайта), пробег машин, кол-во ключей, наличие карфакса, если возможно то время поставки до нового года.

Понедельник, 10 декабря 2012, 22:40 от GlobalAutoUSA <kotkacars@gmail.com>:
Этот авто продан и к тому же он в США.

10 декабря 2012 г., 21:45 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:

Игорь бухгалтерия подтвердила платеж, платеж дошел еще в пятницу, именно по инвойсу выставленному вами за лот 14775, уточните пожалуйста, я запрос еще в бухгалтерию пошлю, т.к. они это запросили

Пятница, 30 ноября 2012, 18:25 от GlobalAutoUSA <kotkacars@gmail.com>:
да, конечно акция действует!

30 ноября 2012 г., 18:14 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:
извините уточните пожалуйста какой телефон?

Fri 30 Nov 2012 17:28:37 от GlobalAutoUSA <kotkacars@gmail.com>:
Да, если это попутно, то возможно разгрузить по дороге.
А телефон Вам отправят по почте DHL

30 ноября 2012 г., 17:09 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:
Игорь, еще небольшие уточнения: прочитал на вашем сайте о новогодней акции она в моем. я надеюсь, случае действует. и если авто доставляется автовозом то возможно ли доставка до семипалатинска, т.к. трасса в алматы возможно будет лежать через нас?, т.е. это ближе к России на 1200 км.

Fri 30 Nov 2012 13:57:06 от GlobalAutoUSA <kotkacars@gmail.com>:
Автомобиль будет отправлен на СВХ "Жакслык" в г.Алматы и там же вы получите автомобиль и документы у брокера.
Документы должны сопровождать автомобиль и придут с ним же.

30 ноября 2012 г., 13:54 пользователь kairat nurgazinov <kairat_nura@mail.ru> написал:
спасибо за информацию, перечисление произведу 3-4 декабря, т.к. у нас праздники и банки не работают. и еще у кого я смогу получить машину в алматы? и помощь по растаможке, контакты? документы идут с машиной или DHL?

Fri 30 Nov 2012 12:12:11 от GlobalAutoUSA <kotkacars@gmail.com>:

Здравствуйте.

1. в договоре сказано что предоплата не явл. полной оплатой! (но если платить 100% то это окончательный расчет)
2. открепление это внутренний документ (право на отдачу авто - делает бухгалтерия)
3. портовые сборы это за разгрузку и оформление входящих и исходящих документов на таможенном СВХ которые не входят в стоимость (около 300евро)
4. пробег 57т.м. 2 ключа
5. После оплаты потребуется все точные данные на кого оформлять в частности РНН.
6. представителей в РК у нас нет уже 2года (офис закрыли после поднятия таможенных пошлин)

С уважением,

Игорь.

Мой номер (812)3364205, +358440233212; kotkacars@gmail.com

игорь я до вас не могу дозвониться, т. 87273185128 вы не поднимаете. договор инвойс получил, но у меня вопросы по нему:

1. не понятен п.1, почему полная оплата в моем случае не является окончательной покупкой ав-ля?
2. что такое открепительное удостоверение, и когда его заказывать после прибытия ав-ля в пункт назначения или до прибытия?
3. что такое портовые и складские расходы, разве они не входят в сумму оплаты?
- 4.какой пробег у машины и сколько ключей идет с ней?
5. до какого я должен оплатить инвойс, как будет проходить процедура оформления документов на меня, если вами не запрошены мои РНН, номер удостоверения и т.д. или это после оплаты?
- 6.кто представитель в РК г. алматы и как с ним связаться?

29 ноября 2012 г., 10:38 пользователь GlobalAutoUSA <kotkacars@gmail.com> написал:
Здравствуйте.

Договор-инвойс на оплату в приложении.

После оплаты не забудьте уведомить об этом бухгалтерию. (account@globalautousa.com)

С уважением,

Игорь.

Мой номер (812)3364205, +358440233212; kotkacars@gmail.com

English translation

From: GlobalAutoUSA <kotkacars@gmail.com>
To: kairat nurgazinov <kairat_nura@mail.ru>
Sent: Thursday, December 20, 2012, 12:22 +02:00
Subject: Re: Re[36]: Agreement No.67936

Hello.

Agreement is corrected.

Information with the container number from the USA has not yet been received.

December 20, 2012, 11:51 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Hello Igor, yes, the car in Kotka will [cost] \$12,900, the invoice states \$12,900 for payment, the line on the bottom should state \$12,900 - \$10,500 (deposit) = \$2,400, otherwise when the car arrives in Kazakhstan there could be discrepancies during customs clearance. Will you inform me about the car's arrival in Kotka by a letter in the mail? The rest of the questions will be asked after the car arrives.

Friday, December 14, 2012, 18:26 from GlobalAutoUSA <kotkacars@gmail.com>:
+12156512993 Sergey
Only he is authorized to answer such questions and make decisions.

December 14, 2012, 18:24 user kairat nurgazinov <kairat_nura@mail.ru> wrote:
Igor, please suggest the process for refunding money and the timeframe for the refund, the amount of refund in my case.

Friday, December 14, 2012, 14:13 from GlobalAutoUSA <kotkacars@gmail.com>:

Sergey did not confirm the discount!

December 14, 2012, 11:50 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

During our conversation he said that if there is a special offer, I am eligible for it, the details should be specified by you, therefore I am asking [for specification].

Friday, December 14, 2012, 11:41 from GlobalAutoUSA <kotkacars@gmail.com>:

In this case, you must ask Sergey about the special offer!
Car should be in Kotka in 10-15 days.

December 14, 2012, 11:38 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Igor, can you specify the date of the car's arrival in Kotka, the payment timeframe for delivery to the city of Semey, Kazakhstan, the amount of payment and confirm the special offers (regarding payments and gifts with purchase).

Friday, December 14, 2012, 11:31 from GlobalAutoUSA <kotkacars@gmail.com>:

ok

December 14, 2012, 11:22 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Igor, the agreement with Sergey was for \$12,500, please forward the addendum, and I will make the additional payment, as per the previous agreement with Sergey, after the car's arrival in Kotka.

Friday, December 14, 2012, 9:17 from GlobalAutoUSA <kotkacars@gmail.com>:

Hello.

The car was reserved for you.

Agreement for additional payment is in the addendum.

Respectfully,

Igor.

December 13, 2012, 19:12 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Hello, Igor, money was transferred to me to lot No. 14775 to lot No. 15212, when the car arrives in Kotka, approximately how long until the delivery occurs, preferably to Semey (Semipalatinsk)?

Wednesday, December 12, 2012, 13:50 from GlobalAutoUSA <kotkacars@gmail.com>:

Pay attention to the following note after the picture on the site

Pre-Sales Price: \$10,900 Price does not include shipping, dealer and registration fee

Which means that the price does not include delivery from the US or the company's fee!

December 12, 2012, 13:39 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

According to the list, the price for the Forester is \$11,900

Wednesday, December 12, 2012, 13:35 from GlobalAutoUSA <kotkacars@gmail.com>:
\$13,900

December 12, 2012, 13:29 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Igor, from the list, Forester lot No. 15237, I am interested in the special offer/discount before the amount paid, if yes – I am taking it.

Wednesday, December 12, 2012, 13:21 from GlobalAutoUSA <kotkacars@gmail.com>:
mileage 30,000 miles.
price in Kotka \$12,900

December 12, 2012, 13:19 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

mileage, price

Wednesday, December 12, 2012, 12:46 from GlobalAutoUSA <kotkacars@gmail.com>:
Toyota Camry SE 2008, 2.4L
Preliminary photos in the attachment.

December 12, 2012, 11:36 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Please send information on Toyota SE (price, model year, engine size), when it will arrive in Kotka

Wednesday, December 12, 2012, 10:36 from GlobalAutoUSA <kotkacars@gmail.com>:
Look at the list!

December 12, 2012, 10:36 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

What is the way out of my situation now? Toyota has been sold, money has been transferred, what Japanese cars can you offer in this price range, like crossovers or sedans

Wednesday, December 12, 2012, 10:30 from GlobalAutoUSA <kotkacars@gmail.com>:

price for car lot No. 15280 is given without delivery and company fee! Price in Kotka is \$16,900

December 12, 2012, 10:28 user GlobalAutoUSA <kotkacars@gmail.com> wrote:
yes, of course, since this is a wholesale company and they are being sold in advance!

December 12, 2012, 10:26 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

One more question: if there is a car on your company's site that I'm interested in, the location shown on the site may be different from actual?

Wednesday, December 12, 2012, 9:17 from GlobalAutoUSA <kotkacars@gmail.com>:
We will assume your last question was a joke!
Prices for these cars are \$16,900 each

December 12, 2012, 6:24 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Igor, lot No. 15280 and lot No. 14425 are both Subaru Outbacks, info on them: car condition, number of keys, possibility of selling for money already listed?

Tuesday, December 11, 2012, 22:20 from GlobalAutoUSA <kotkacars@gmail.com>:

These cars are still in the USA.
The list of cars and motorcycles that are in Kotka and arriving soon, is in the attachment.

December 11, 2012, 19:16 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Igor, look at the choices: Honda CRV 2010 (10/09) lot No. 15319 cost \$11,900, Honda CRV 2009 (12/08) lot No. 15269 cost \$10,900, possibility for discount, or in the range of the amount transferred with no additional payment, the first option is more interesting. Both cars are in Kotka (according to the info on the site), mileage, number of keys, Carfax availability, if

possible – time of delivery before New Year.

Monday, 10 December 2012, 22:40 from GlobalAutoUSA <kotkacars@gmail.com>:
This car has been sold, and it is in the US also.

December 10, 2012, 21:45 user kairat nurgazinov <kairat_nura@mail.ru> wrote:

Igor, accounting department confirmed payment transaction, payment reached you back on Friday, according to invoice made by you for lot 14775, please confirm, I will send a request to the accounting department, they requested that.

Friday, November 30, 2012, 18:25 from GlobalAutoUSA <kotkacars@gmail.com>:
Yes, of course, special offer is valid!

November 30, 2012, 18:14 user kairat nurgazinov <kairat_nura@mail.ru> wrote:
sorry please confirm your phone number

Fri 30 Nov 2012 17:28:37 from GlobalAutoUSA <kotkacars@gmail.com>:
Yes, if it is on the way, it is possible to unload.
And the telephone will be sent to you by DHL

November 30, 2012, 17:09 user kairat nurgazinov <kairat_nura@mail.ru> wrote:
Igor, some more clarifications: I read on your site about the New Year's special offer, I hope it is valid in my case, and if the car is delivered by car carrier, would it be possible to deliver to Semipalatinsk, since the road to Almaty will probably be going through us?, i.e. it is 1,200 kilometers closer to Russia.

Fri 30 Nov 2012 13:57:06 from GlobalAutoUSA <kotkacars@gmail.com>:
The car will be sent to the "Zhaksalyk" warehouse in the city of Almaty for temporary storage and there you can get the car and the paperwork from the broker.
Paperwork should be accompanying the car and will arrive with it.

November 30, 2012, 13:54 user kairat nurgazinov <kairat_nura@mail.ru> wrote:
Thank you for the information, I will make the transfer on December 3-4, since it is a holiday and banks aren't open, and also, where will I be able to get the car from in Almaty? And help with customs, contacts? Is paperwork coming with the car or DHL?

Fri 30 Nov 2012 12:12:11 from GlobalAutoUSA <kotkacars@gmail.com>:

Hello.

1. agreement states that advance payment is not a full payment! (but if 100% is paid then it is a final payment)
2. letter of clearance is an internal document (the car release approval is made by the bookkeeping department)
3. port expenses are for unloading and processing incoming and outgoing documents at the customs warehouse for temporary storage which are not included in the cost (about 300 Euro)
4. mileage 57,000 miles 2 keys
5. after payment all the specific information for the person for whom the car will be registered, in particular, taxpayer registration number.
6. we haven't had representatives in the Republic of Kazakhstan for 2 years (the office was closed after increase in customs fees)

Respectfully,

Igor.

My number (812)3364205, +358440233212; kotkacars@gmail.com

Igor, I cannot reach you at t. 87273185128, you are not picking up. I received the agreement-invoice, but I have questions about it:

1. I don't understand item 1, why is the full payment in my case not the final purchase price for the car?
2. What is a letter of clearance and when do I request it: after the car arrives at the destination or before that?
3. What are the port and warehouse expenses, aren't they included in the cost?
4. What is the car's mileage and how many keys come with it?
5. When I pay the invoice, what will the procedure for registering the car in my name be, if you haven't requested my taxpayer registration number, ID number and so on, or will it be needed after payment?
6. Who is the representative in the city of Almaty, Republic of Kazakhstan and how do I get in touch with him?

November 29, 2012, 10:38 user GlobalAutoUSA <kotkacars@gmail.com> wrote:

Hello.

Agreement-invoice for payment is attached.

After payment, remember to notify the accounting department. (account@globalautousa.com)

Respectfully,

Igor.

My number (812)3364205, +358440233212; kotkacars@gmail.com

Appendix 21

**GLOBAL CARGO OY**

Company: GLOBAL CARGO OY, Business ID: FI 2045870-5

Address: Kotolahdentie 6, 48310 Kotka

E-mail: minfin@globalcargo.fi, Tel: +358 (5) 235 33 00, Fax: +358 (5) 235 34 03

Agent for Global Auto, G- Auto, Effect Auto

Release note to CarCont

Car 2011 JEEP COMPASS
Car VIN # 1J4NF5FB7BD282296

Container information**Release to**

Container TGHU8737440
Issue Date 3/11/14

TSKHAVITARIYA VLADIMIR

Issued by Igor Zadorozhnyy

Account Information

Company: GLOBAL CARGO OY

EUR Account: 106930-228106

IBAN: FI94 1069 3000 2281 06

Bank Information

Bank: Nordea Pankki Suomen 1069 Kotka

Bank Address: Kirkkokatu 7, 48100 KOTKA

SWIFT: NDEAFIHH

**GLOBAL CARGO OY**

Company: GLOBAL CARGO OY, Business ID: FI 2045870-5

Address: Kotolahdentie 6, 48310 Kotka

E-mail: minfin@globalcargo.fi, Tel: +358 (5) 235 33 00, Fax: +358 (5) 235 34 03

Agent for Global Auto, G- Auto, Effect Auto

Release note to CarCont

Car 2010 GMC ACADIA SLT-2
Car VIN # 1GKLVNED6AJ138200

Container information**Release to**

Container TCNU8761450
Issue Date 4/23/13

Pavel Korolev

Issued by Igor Zadorozhnyy

Account Information

Company: GLOBAL CARGO OY

EUR Account: 106930-228106

IBAN: FI94 1069 3000 2281 06

Bank Information

Bank: Nordea Pankki Suomen 1069 Kotka

Bank Address: Kirkkokatu 7, 48100 KOTKA

SWIFT: NDEAFIHH

**GLOBAL CARGO OY**

Company: GLOBAL CARGO OY, Business ID: FI 2045870-5

Address: Kotolahdentie 6, 48310 Kotka

E-mail: minfin@globalcargo.fi, Tel: +358 (5) 235 33 00, Fax: +358 (5) 235 34 03

Agent for Global Auto, G- Auto, Effect Auto

Release note to CarCont

Car 2009 TOYOTA CAMRY
Car VIN # 4T1BE46K19U306703

Container information**Release to**

Container TCKU9873233
Issue Date 1/30/13

ARTUHOV ALEXANDER**Issued by Igor Zadorozhnyy****Account Information**

Company: GLOBAL CARGO OY

EUR Account: 106930-228106

IBAN: FI94 1069 3000 2281 06

Bank Information

Bank: Nordea Pankki Suomen 1069 Kotka

Bank Address: Kirkkokatu 7, 48100 KOTKA

SWIFT: NDEAFIHH

**GLOBAL CARGO OY**

Company: GLOBAL CARGO OY, Business ID: FI 2045870-5

Address: Kotolahdentie 6, 48310 Kotka

E-mail: minfin@globalcargo.fi, Tel: +358 (5) 235 33 00, Fax: +358 (5) 235 34 03

Agent for Global Auto, G- Auto, Effect Auto

Release note to CarCont

Car 2009 MERCEDES-BENZ C300
Car VIN # WDDGF81X49R073295

Container information**Release to**

Container TGHU8737440
Issue Date 2/21/13

Хакимов Рушан

Issued by Igor Zadorozhnyy

Account Information

Company: GLOBAL CARGO OY

EUR Account: 106930-228106

IBAN: FI94 1069 3000 2281 06

Bank Information

Bank: Nordea Pankki Suomen 1069 Kotka

Bank Address: Kirkkokatu 7, 48100 KOTKA

SWIFT: NDEAFIHH

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-11

IGOR OVCHINNIKOV, IRINA RZAEVA, and DENIS NEKIPELOV,

Complainants.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

Respondents.

Consolidated With

DOCKET NO. 1953(I)

KAIRAT NURGAZINOV,

Complainants.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC., and CARCONT, LTD.**

Respondents.

AFFIRMATION OF SERGEY KAPUSTIN

Sergey Kapustin, affirms the following to be true under penalties of perjury under 28

U.S.C. § 1746, and says:

1. I am currently the sole owner, president, and general manager of the following companies: Effect Auto Sales, Inc., G Auto Sales, Inc., Global Auto, Inc., and SK Imports, Inc.

d/b/a Global Cars. From the time these companies were formed until today, I have always been the general manager of these companies, and I had, and still have, ultimate power and authority with respect to all of these companies. From the time it was formed until the end of 2014, I was also the general manager of the Finnish company known as Global Cargo Oy, located in Kotka, Finland.

2. I have read the Complaints filed by the Complainants in these proceedings, as well as the documents that have been produced by the Complainants and Respondents as their initial disclosures in connection with these proceedings.

3. I have personal knowledge about the matters which I state in this affirmation.

4. From March 2013 until May 2015, the attorney representing the Complainants in these proceedings, Mr. Marcus A. Nussbaum, represented myself personally and the companies Effect Auto Sales, Inc., G Auto Sales, Inc., and Global Auto, Inc. in New York Federal court in connection with a dispute involving Empire United Lines Co., Inc. The subject of that Federal court case involved a number of vehicles, included among which were the same four vehicles that are the subject of these proceedings.

5. I still consider Mr. Nussbaum to be my personal attorney and the attorney for the Global Auto Group. I enclose as Appendix 1 the retainer agreement as proposed by Mr. Nussbaum in which he agreed to provide such representation on a *pro bono* basis.

6. Prior to representing the Global Auto Group companies, Mr. Nussbaum had worked as an internal corporate lawyer for the Global Auto Group and was paid in cash for these services.

7. I would like to state that all of the above mentioned companies (Effect Auto Sales, Inc., G Auto Sales, Inc., Global Auto, Inc., SK Imports, Inc. d/b/a Global Cars, and Global

Cargo Oy, Finnish company) are the members of the Global Auto Group. The existence of the Global Auto Group was established by the Federal court in New Jersey by the decision of the Honorable Joel L. Hillman. Judge Hillman found that all of these companies and myself personally were part of the Global Auto Group. The only person who does not accept the decision of Judge Hillman is the mentally sick Mr. Nussbaum.

8. In any event, I deny Mr. Nussbaum's statements in the Complaints filed in these proceedings that an entity described as G Auto / Effect ever existed. All of the companies (Effect Auto Sales, Inc., G Auto Sales, Inc., Global Auto, Inc., SK Imports, Inc. d/b/a Global Cars, and Global Cargo Oy, Finnish company) were acting together as the Global Auto Group -- not just two companies.

9. I fully expect that Mr. Nussbaum, even though he is my attorney, will accuse me of colluding with Empire in preparing and submitting this affirmation. Thus, I want to demonstrate the truthfulness of this affirmation by showing the documents that support every word of my statement.

10. It was always represented to Empire in our business dealings with them that the group of companies was acting together as the Global Auto Group. The members of the Global Auto Group paid for each others' expenses, shared employees, and offices, etc. and it was never the goal to operate as different companies.

11. I also always made it clear to Empire that the head or main company in the Global Auto Group was Global Auto, Inc. such that the majority of the communications between the Global Auto Group and Empire came from that company. All instructions about the four vehicles at issue in these proceedings were given to Empire by Svetlana Zakerzanova, an employee of Global Auto, Inc. See emails attached as Appendix 2. Below is how Svetlana's signature always

appeared in her emails:

Светлана,
Global Auto USA.
Телефон: +1 (215) 942-8570.
Skype: svetlana.global.auto.usa
E-mail: account@globalautousa.com
Веб-сайт: www.GlobalAutoUSA.com - Автомобили из США. Продажа авто из Америки.

12. I confirm that Empire invested 60% value into the ownership of the four vehicles at issue in these proceedings:

- a. 2010 GMC Acadia (VIN# 1GKLVNED6AJ138200), claimed to have been purchased by Complainant Igor Ovchinnikov;
- b. 2011 Jeep Compass (VIN# 1J4NF5FB7BD282296) claimed to have been purchased by Complainant Irina Rzaeva;
- c. 2008 Mercedes-Benz C300 (VIN# WDDGF81X49R073295) claimed to have been purchased by Complainant Denis Nekipelov; and
- d. 2009 Toyota Camry (VIN# 4T1BE46K19U306703) claimed to have been purchased by Complainant Kairat Nurgazinov.

13. It was clear for me that at all times the Global Auto Group and Empire had joint ownership of the vehicle inventory, including the four vehicles involved in these proceedings. Under this agreement Global Auto Group had the right to buy back Empire's interest in the investment vehicles and Empire had the right to possession of the investment vehicles as collateral and the right to liquidate the investment vehicles under certain conditions. I am not a lawyer but in my view I would have described the relationship as a joint venture.

14. Thus, the Global Auto Group was required under the terms of this investment agreement to buy back the ownership of the four vehicles at issue in these proceedings from Empire, but failed to do so. Due to this failure, Empire was within its rights under the investment

agreement to retain possession of these vehicles as collateral and to liquidate these vehicles to recover its 60% investment value in the vehicles.

15. Attached as Appendix 3 is an email dated February 7, 2013, from Irina Kapustina, who at the time was the president and official owner of Effect Auto Sales, Inc. This email (which was produced in related proceedings in Federal court) discusses Empire's ownership in the vehicles involved in these proceedings among others. Appendix 8 (discussed below) shows that all the vehicles at issue in these proceedings were titles in the name of Effect Auto Sales, Inc.

16. Attached as Appendix 4 is an email from Igor Azikov, an employee of Effect Auto Sales, Inc. asking Empire to accept the 2008 Mercedes-Benz C300 (VIN# WDDGF81X49R073295) claimed to have been purchased by Complainant Denis Nekipelov as collateral as part of the investment agreement. As noted above, Empire was the 60% owner of all of the vehicles at issue in these proceedings under the terms of the investment agreement with the Global Auto Group.

17. I decided to use CarCont Oy in Finland as an unloading warehouse and as a facility servicing the Global Auto Group as a sale and distribution point. While as mentioned above, the Global Auto Group had its own facility in Finland (Global Cargo Oy), I preferred to use CarCont because of the additional free services provided by CarCont. For example, I saw Complainants produced the picture of vehicles cleaned at CarCont from snow. Cleaning vehicles from snow when needed for demonstration (sometimes every day), charging batteries, putting air into tires, and providing customs entry into Finland were all free services Global Auto Group received at CarCont. Not mentioning that CarCont allowed Global Auto Group to put our advertisement fliers for the Global Auto Group in all the vehicles at CarCont. Nobody ever forced Global Auto Group to use CarCont as an unloading facility. Attached as Appendix 5 is

correspondence from 2011 showing when the Global Auto Group chose to use CarCont as an unloading agent in Kotka, Finland.

18. Operationally the USA companies that were part of the Global Auto Group would never communicate directly with CarCont and instead all such communications would be routed through Empire. Based on my review of the records of the Global Auto Group, it does not appear that CarCont was ever paid by the Global Auto Group for any services related to the four vehicles at issue in these proceedings. Those charges are still due and owing to CarCont.

19. The Global Auto Group and Empire had a mutual agreement that Empire would not issue any house bills of lading regarding the shipment of investment vehicles. Instead I asked that the steamship bills of lading cover the shipments.

20. The loading of the investment vehicles in the USA and the transportation of the loaded vehicles to the port in the USA were provided by Empire as a majority owner of the investment vehicles. Empire would then arrange for the ocean transportation of the containers with the investment vehicles but its services and obligations with respect to transportation would end upon release of the containers to CarCont in Finland.

21. All further services with respect to the investment vehicles, including the four vehicles at issue in these proceedings, would be provided and agreed with by Empire as the investor into the vehicles, not as a transportation provider.

22. This arrangement allowed the Global Auto Group to be the beneficiary of numerous additional services provided by Empire. Attached as Appendix 6 are master bill of lading instructions provided with respect to the investment vehicles as agreed between the Global Auto Group and Empire, and the MSC issued bills of lading with respect to transportation of these vehicles, also as agreed to by the Global Auto Group and Empire.

23. On a number of occasions between 2010 and 2012, I was asked by Empire if I was comfortable to operate on the basis of MSC issued bills of lading or whether I would prefer to have Empire issue house bills of lading to govern and document the shipments being carried. In response to these inquiries I insisted that I did not want to deal with additional documents which could confuse the relationship between the Global Auto Group and Empire and therefore, I did not see any reason to change the system by requiring Empire to issue house bills of lading.

24. Incidentally, I have reviewed the documents provided by the Respondents in these proceedings, including the AES documents produced by Empire (see Appendix 7) in which they listed Global Auto, Inc. as the exporter and CarCont as an intermediate and the ultimate consignee. This was done exactly as instructed by me and I believe that these submissions were accurate in terms of the joint venture relationship between the Global Auto Group and Empire, since although the Global Auto Group was only the 40% owner of the vehicles involved, in the end it was always intended that the secured 60% interest of Empire would always be bought back by the Global Auto Group.

25. I have spent a lot of time and effort translating the Complaints and the discovery produced by the Complainants and the Respondents in these proceedings. Based on my reading of the Complaints it appears that Mr. Nussbaum is making a false claim that the Complainants were the holders of the original titles for the four vehicles at issue. This is an attempt to mislead the Court and I can confirm that the Complainants never had possession of the original DMV titles for the vehicles.

26. Attached as Appendix 8 are copies of the titles for the vehicles at issue in these proceedings demonstrating that the vehicles were all titled under the name of Effect Auto Sales, Inc. The transfer of 60 % ownership to Empire was confirmed by listing all of the investment

vehicles, including the four vehicles at issue in these proceedings, on the spreadsheets showing the balance of investment vehicles. There are hundreds of such balance spreadsheet emails showing Empire's 60% ownership in the jointly owned vehicles.

27. I also strongly object to Mr. Nussbaum's fantasy that Empire should have released the vehicles or negotiated in any manner with the Complainants in this case. These individuals did not even pay to the Global Auto Group in full for the vehicles at issue and any suggestion that Empire should even talk to those individuals is insane. In any event, such negotiations with strangers concerning vehicles shipped by the Global Auto Group would be a betrayal of the Global Auto Group and would have resulted in legal and business consequences for Empire.

28. Specifically, if Empire had ever made any attempts to contact customers of the Global Auto Group directly or to discuss any business with them, I would have instructed the Global Auto Group to immediately cease any relationship with Empire, regardless of its status as investor or provider of shipping services.

29. Throughout the course of their dealings, the Global Auto Group never provided anyone outside the group, let alone Empire, with the identity of the buyers of vehicles from the Global Auto Group. Such information is a commercial asset of the Global Auto Group and thus, was treated as confidential. Global Cargo Oy, which operated a location in Finland and is a member of the Global Auto Group, served at the group's own agent in Finland for dealing with buyers.

30. In fact, not only did the Global Auto Group never advise Empire of the identity of the Complainants, but at the time the four vehicles at issue were being shipped from the USA to Finland, the Global Auto Group had represented to Empire that these vehicles were not yet sold.

And this was the case not only for these four vehicles but for all the investment vehicles exported as part of the joint venture between the Global Auto Group and Empire.

31. Attached as Appendix 9 are the invoices produced by Complainants in these proceedings. Item 1 of the terms states that “Advance payment of the Buyer is not the final purchase of the automobile, but guarantees its reservation for a definite term stipulated separately.” Based on the Global Auto Group’s records, it appears that all four Complainants still owe some substantial amounts with respect to the vehicles at issue in these proceedings. I am ready to produce the documents showing that each Complainant still owes money to the Global Auto Group.

32. Thus, if the Complainants had any issues regarding these vehicles they had to address their complaints to the Global Auto Group – not Empire.

33. To the best of my knowledge and recollection, all of the vehicles at issue in these proceedings were selected by the Complainants via the website maintained by the Global Auto Group at www.globalautousa.com. Indeed, the Complainants provided signed certifications stating that they purchased the vehicles from Global Auto, Inc. See Appendix 10.

34. However, it should also be understood that the Complainants had not, and still have not, paid all the charges which were outstanding to the Global Auto Group with respect to these four vehicles. Specifically, the freight charges, including but not limited to, ocean freight, loading the vehicles into the containers, inland transportation in the USA to the warehouse in Elizabeth, New Jersey, and unloading of the vehicles overseas, are still due to the Global Auto Group and were never paid to any member of the Global Auto Group by any of the Complainants.

35. The sales price quoted in the invoices presented by the Complainants for these

vehicles did not include the above mentioned charges, and also did not include the cost of repairs, dealers fees, and other miscellaneous charges. Attached as Appendix 11 are the Global Auto Group's terms and conditions which were previously produced by the Global Auto Group in related proceedings in Federal court. Section 3 of the terms and conditions states in relevant part that the buyer is "responsible for paying all delivery, shipping, transit and storage charges applicable to the purchased product and which [buyer] understands are separate from the price paid by [buyer] for the [vehicle] itself."

36. Attached as Appendix 12 is a print out of the website for the Global Auto Group (also previously produced in related proceedings in Federal court) showing that the website clearly stated that the Pre-Sales Price of vehicles "does not include shipping, diagnostic, repair, dealer fee, and registration fee."

37. I would like to also explain to the Commission that the Complainants and their and MY attorney, Mr. Nussbaum, have intentionally provided and relied upon fabricated, altered and stolen documents in support of these proceedings.

38. Specifically, attached as Appendix 13 are invoices on Empire's letterhead showing charges owed which were fabricated and designed by Mr. Nussbaum as a corporate lawyer for the Global Auto Group, although Svetlana Zakerzanova, an employee of Global Auto, Inc. transmitted the invoices. I admit it was wrongful for myself and the Global Auto Group to conspire with Mr. Nussbaum in preparation and transmission of these forged invoices, but I am trying to make amends by alerting the Commission that Mr. Nussbaum is aware that these invoices are fabricated and designed by him, but he continues to produce them in discovery and to rely upon them as evidence in multiple proceedings.

39. Attached as Appendix 14 are invoices reflecting the sale of the vehicles at issue in

these proceedings which contain handwritten notes. These documents are internal documents maintained on behalf of the Global Auto Group and were never provided to Complainants. On this basis, I believe that these documents were stolen by Mr. Nussbaum from the files of the Global Auto Group when he was serving as its corporate counsel, and are now being used without permission or authorization, and have even been altered by Mr. Nussbaum without the approval of the Global Auto Group.

40. Incidentally, all communications between the Complainants and the Global Auto Group were conducted via email exclusively, rather than faxes or paper mail. I dare Mr. Nussbaum to have Complainants produce the emails where they received such invoices. You will see they will never be produced because such emails do not exist!

41. Similarly, attached as Appendix 15 are documents showing incoming wire transfers to accounts maintained by the Global Auto Group. I believe that these documents could only have been stolen by Mr. Nussbaum from the files maintained by the Global Auto Group since Complainants were never provided these documents by the Global Auto Group.

42. I would like to enlighten this Court about the real goals and purpose behind these proceedings. Mr. Nussbaum is a sick individual and unfortunately I have realized this too late. When Mr. Nussbaum first contacted me sometime around January 2013 and convinced me to go for his scheme to defraud Empire in order to try to obtain the release of the investment vehicles without buying back Empire's 60% interest in the investment vehicles, he told that he was ready to do anything to finally put Empire out of business. Mr. Nussbaum further promised me that he would serve as my attorney in this respect for a deep discount because the rest of his fees would be received from the Igor Cherkassky, the owner of a competitor of Empire, known as Unitrans-PRA. Mr. Due to my desperation caused by a poor financial situation I allowed Mr. Nussbaum to

induce me into cooperating with his scheme.

43. Nussbaum further explained to me that nobody can win any court cases without hiding material evidence and fabricating documents, and on a number of occasions Mr. Nussbaum knowingly induced me to testify falsely or to otherwise produce evidence that he knew was false, by promising me to act as my counsel for free and/or to refund monies previously paid to him for services already rendered.

44. Attached as Appendix 16 is an email that my attorney Mr. Nussbaum literally dictated to me over the phone on March 28, 2016, and said that I had to send to him, and difficult to imagine, to the plaintiffs lawyers in the Federal court case in New Jersey, stating that Michael Hitrinov threatened my life. Then on June 6, 2016, Mr. Nussbaum is asking for documents to be produced showing how Hitrinov has offered me \$75,000. Only a mentally sick person can suggest that Hitrinov threatened my life and offered me \$75,000 at the same time.

45. I want this Court to realize that I believe that Mr. Nussbaum is a seriously sick person mentally, and to further be aware that I truly believe he will continue to produce fake and altered documents without any fear of reprisal or other consequences, and will then refuse to produce original documents, including original emails and attachments.

46. Mr. Nussbaum continues his lies to the court that I took money from Empire as a personal loan. It is not only a false statement, it is an intentional lie. Money was never given to me personally. Not a single penny. And I never took a penny from the money Empire invested into the vehicles for myself. I made a lot of mistakes but I never used company money for myself. Empire's money was used to buy vehicles and were never used by myself for my personal purposes. I believe all of the Empire wire transfers has a purpose of transfer saying "investment in car inventory with the fixed profit" and all the funds were paid to Global Auto,

Inc. and were used by the Global Auto Group to buy vehicles, including the four vehicles in these proceedings.

47. It is also a complete lie by Mr. Nussbaum to say that the money provided by Empire was not given to the Global Auto Group. I want to state that my ex-wife and the mother of my three children was the sole owner and the president of Effect Auto Sales, Inc. in 2009-2014. What Mr. Nussbaum suggests is that I sold a 60% share of the vehicles of Effect Auto Sales, Inc. for money which was given either to me personally or to Global Auto, Inc. In other words, if Mr. Nussbaum's lies are to be believed, you would have to believe that I was stealing vehicles from my children for several years.

48. It may well be irrelevant to these proceedings, but Mr. Nussbaum explained to me that he already produced to the Commission numerous fabricated documents in the case of Empire against Baltic where he represented Baltic, and he seemed to be proud of this achievement.

49. When I learned that Mr. Nussbaum was representing the Complainants with respect to these claims against Empire, I wrote to him to demand that he stop this representation which was in clear conflict of interest to his ongoing representation of me personally and my companies with respect to the same vehicles. Attached as Appendix 17 is my email to Mr. Nussbaum demanding he cease such representation.

50. Mr. Nussbaum never responded to my email in writing but he promised me on the telephone that he would be withdrawing as attorneys for the Complainants in these proceedings, and foolishly I believed his lies. About one month ago I learned that despite his promises Mr. Nussbaum was continuing with this case on behalf of the Complainants. Now I see that my only option is to ask the Commission to disqualify Mr. Nussbaum because he will never withdraw on

his own as he should.

51. In July of 2013, when Mr. Nussbaum was representing me and the Global Auto Group in the related Federal court case in New York, Empire offered to release the 2011 Jeep Compass (now claimed by Complainant Rzaeva in this case) to the buyer upon payment of the storage charges owed in Finland. Mr. Nussbaum insisted to me that we should not care about the people who reserved the vehicles and promised again to me that we would get all the money back to the Global Auto Group. Ironically, Mr. Nussbaum now represents both me and Rzaeva. It is impossible to imagine that Mr. Nussbaum by betraying me personally and the Global Auto Group can now represent the same individuals who are the victims of the fraudulent scheme he designed. And those four innocent people in this action have no idea that Mr. Nussbaum is the mastermind of the fraudulent scheme that ended in the loss of those four victims' vehicles.

52. Because of this outrageous situation which is almost certain to expose me personally and the Global Auto Group to even more liability, I plan to ask for Mr. Nussbaum to be disqualified from representing these Complainants. I am also preparing a lawsuit against Mr. Nussbaum.

53. Therefore, I am asking for permission to intervene in these proceedings on my own behalf, and on behalf of the Global Auto Group, for the purpose of seeking the immediate disqualification of Mr. Nussbaum as counsel for the Complainants on the basis of this conflict of interest and because he has breached my attorney client privilege by using stolen and confidential Global Auto Group documents in this case. By producing and using these private documents and even altering them, he is exposing me personally and the Global Auto Group companies to civil and perhaps even criminal liability.

54. I believe that I and the Global Auto Group have the right to intervene because of

the obvious overlapping interest in the vehicles at issue, and because the outcome of these proceedings would affect that interest, which interest is not being represented by anyone else in these proceedings. In any event, permission to intervene should be granted because of these common interests and because intervention will not delay or broaden the scope of these proceedings and will not prejudice the rights of any party. Intervention is only being sought for the purpose of requesting that Mr. Nussbaum be disqualified as counsel for the Complainants and thus, will not delay these proceedings or substantially add to the discovery process. Intervention is timely because although I learned about these proceedings in December 2015, Mr. Nussbaum assured me that he would be withdrawing from these proceedings and it was not until about one month ago that I learned that Mr. Nussbaum had broken his promise.

55. In connection with the motion for disqualification, I understand that any claim of attorney client privilege with respect to my communications with Mr. Nussbaum on my own behalf and on behalf of the Global Auto Group will be waived, and I voluntarily relinquish same. Attached as Appendix 18 is a waiver of such attorney client privilege and I demand that Mr. Nussbaum produce all such communications between himself and the Global Auto Group so that this Court can realize the truth about his behavior with respect to these proceedings.

56. I already know the remedies of Mr. Nussbaum when people begin saying the truth. Threats with depositions, accusations of being in collusion, again accusing others of dictating my statements, stating that I do not speak English, etc. My English is good for Mr. Nussbaum's lies but not good for when I decide to say the truth. This document was written by me and my attorneys in Russia and I fully understand the meaning of every statement.

57. If the Commission has to contact me my e-mail is: skapustin@yahoo.com.

58. As I was afraid of, after I filed my initial motion seeking permission to intervene

it came to my attention that another lawsuit was filed in New Jersey against me personally, the Global Auto Group, and my family. I understand that it is retaliation for my refusal to be a part of Marcus Nussbaum's scheme. As I understand it, the new lawsuit is already based on the stolen documents produced by Mr. Nussbaum in these proceedings.

59. I have information that Mr. Nussbaum is behind a new lawsuit which is being used by Mr. Nussbaum to put pressure on me and to try to avoid taking responsibility for his having been the chief designer of the fabricated and altered documents.

60. It would be irreparable damage to me, to the Global Auto Group and to my family if the Commission allows Mr. Nussbaum to continue his betrayal of my privilege as his client even for a short time from now.

61. Due to the financial situation faced by the Global Auto Group at the time, I authorized Empire to liquidate the vehicle inventory as per the terms of the agreement between the Global Auto Group and Empire. See letter authorizing sale of vehicles attached as Appendix 19. At this point in time the Global Auto Group has absolutely no claims against Empire since Empire fulfilled all its obligations to the Global Auto Group.

62. Finally, I would like to show the Commission the documents which Mr. Nussbaum asked me to hide from the court. Attached as Appendix 20 is email correspondence between Global Cargo Oy, agent for the Global Auto Group in Finland and Complainant Kairat Nurgazinov. On page 2 of Appendix 20 it says (text is underlined by me):

Wednesday, December 12, 2012, 13:50 from GlobalAutoUSA <kotkacars@gmail.com>:
Pay attention to the following note after the picture on the site
Pre-Sales Price: \$10,900 Price does not include shipping, dealer and registration fee
Which means that the price does not include delivery from the US or the company's fee!

63. This shows that the Global Auto Group always did notify all their clients

including the four Complainants in this case that shipping is not included in the sales price for the vehicles.

64. Last week on or about July 28, 2016 my attorney Marcus Nussbaum contacted me again by phone and asked me not to produce any agreements and contracts between Global Auto Group and Empire. Mr. Nussbaum threatened me that he with the assistance of my other attorney Maria Temkina will get me arrested in Russia using his and Maria Temkina's connections if I continue to produce evidence to the FMC and if I do not withdraw this motion before this Commission.

65. On or about Friday July 29, 2016 and ex-client of Global Auto, Mr. Iordanov, who resides in Russia, called me and told me that he is now working for Mr. Nussbaum and for Maria Temkina. He repeated the threats to me that he will get me arrested with Interpol if I continue to produce evidence in this case before the Commission and in other cases. He demanded under threats that I should not produce any agreement and contracts with Empire and Mr. Iordanov further requested that I deny any agreements and contracts with Empire.

66. I decided not to be blackmailed again by Mr. Nussbaum and Mr. Iordanov and all the agreements and contracts with Empire will thus be produced as directed by the court. I again state that all previously produced documents in the appendixes attached that are signed by me are real documents. I again state that Empire by selling the cars, including 4 cars in this case, acted as per written agreement between Empire United and Global Auto Group .

67. Additionally, I had a chance recently to go to Kotka, Finland and to request some documents from Global Cargo Oy regarding the four vehicles involved in these proceedings. These additional documents are attached as Appendix 21 and they show how the authorization was given by Global Cargo Oy as an agent for the Global Auto Group to Carcont as Global's

unloading agent for the vehicles at issue in these proceedings to be released.

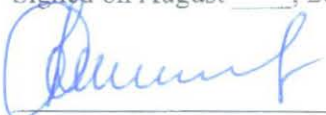
68. I also can show to the Commission that for each and every of the several hundred vehicles shipped by the Global Auto Group, the Global Cargo Oy paid CarCont through our Finnish Branch for the services provided by CarCont as the consignee and for unloading and storage of vehicles for the Global Auto Group.

69. If the Commission will require any other documents the Global Auto Group will produce them on confidential basis on request.

70. I also want the Commission to be aware that Mr. Nussbaum has lied regarding the reasons for delaying his answer to my motion. The only reason Mr. Nussbaum delayed the answer to my motion is so he would have more time to try to force me with threats to abandon my motion and to tamper with other witnesses. The Commission must be made aware that Mr. Nussbaum is nothing but a sick person and a common criminal who tries to use altered documents and thinks that this is the proper way to avoid justice.

The foregoing is true and correct to the best of my knowledge under penalties of perjury under 28 U.S.C. § 1746.

Signed on August 3, 2016


Sergey Kapustin